

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[48 NE3d 960, 28 NYS3d 679]

NANCY CRUZ, Respondent, v BRONX LEBANON HOSPITAL CENTER,
Appellant.

Decided March 24, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 30, 2015. The Appellate Division, with two Justices dissenting, modified a judgment of the Supreme Court, Bronx County (Mark Friedlander, J.), entered upon a jury verdict in favor of plaintiff, which had awarded plaintiff damages for past and future pain and suffering in the amounts of \$140,000 and \$60,000, respectively, as reduced by a prior order of that Supreme Court. The modification consisted of restoring the amounts awarded by the jury for past and future pain and suffering, \$300,000 and \$270,000, respectively. The Appellate Division affirmed the judgment as modified.

Plaintiff was injured when, as she entered a playground on defendant's property, her foot became caught in a hole in a rubber mat on the floor of the playground and she fell forward onto the ground. Plaintiff described the hole as being caused by "worn out" rubber. Defendant's witness testified that the maintenance staff inspected and cleaned the accident area at least once per day, and that his records did not contain a work order for the claimed defect in the rubber mat. The jury returned a verdict in favor of plaintiff. The majority at the Appellate Division concluded that the liability verdict was based on legally sufficient evidence of defendant's constructive notice of a dangerous condition on its premises and was not against the weight of the evidence.

Cruz v Bronx Lebanon Hosp. Ctr., 129 AD3d 631, affirmed.

HEADNOTE**Negligence — Maintenance of Premises — Constructive Notice of Defective Condition**

In an action to recover damages for injuries plaintiff sustained when, as she entered a playground on defendant's property, her foot became caught in a hole in a rubber mat on the floor of the playground and she fell forward onto the ground, the Appellate Division correctly determined that legally sufficient evidence supported the jury's finding that defendant had constructive notice of the alleged defect.

APPEARANCES OF COUNSEL

Mauro Lilling Naparty LLP, Woodbury (*Caryn L. Lilling* of counsel), for appellant.

Burns & Harris, New York City (*Blake G. Goldfarb* and *Judith F. Stempler* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. The Appellate Division correctly determined that legally sufficient evidence supported the jury's finding that defendant had constructive notice of the alleged defect.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Stein, Fahey and Garcia. Taking no part: Judge Abdus-Salaam.

[48 NE3d 958, 28 NYS3d 677]

In the Matter of KENNETH S., a Person Alleged to be a Juvenile Delinquent, Appellant.

Argued February 17, 2016; decided March 24, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 28, 2014. The Appellate Division affirmed an order of disposition of the Family Court of New York County (Mary E. Bednar, J.), which had adjudicated respondent a juvenile delinquent upon his admission that he committed an act that, if committed by an adult, would constitute unlawful possession of an air pistol.

Matter of Kenneth S., 121 AD3d 593, affirmed.

HEADNOTE

Infants — Juvenile Delinquents — Unlawful Search and Seizure — Warrantless Search of Backpack

In a juvenile delinquency proceeding arising from the discovery of an air pistol in respondent's backpack after respondent was arrested and placed in an unmarked police vehicle, there was record support for the conclusion that the police officers reasonably believed that respondent might gain possession of a weapon, so that exigent circumstances—a legitimate concern about the safety of the arresting officers—justified the warrantless search of respondent's backpack. After the initial and lawful detention of respondent as a suspected truant, respondent's backpack came into contact with the police vehicle and produced a distinctive noise, which one of the officers recognized as the sound a gun makes when it strikes a motor vehicle. Respondent gave evasive answers when asked what had caused the sound and the officers, who knew that respondent had previously been arrested for robbery, asked him to remove the backpack. Respondent complied, but he appeared nervous after he gave it up, and one of the officers felt what seemed to be a gun in an exterior pocket. Even assuming that those actions amounted to an investigative touching, there was a view of the evidence supporting the Appellate Division's determination that the officers had a reasonable suspicion that respondent was armed. Respondent became agitated and upset upon his arrest and resisted being handcuffed before being placed in the vehicle as a crowd gathered and yelled at the officers. Significantly, the vehicle had no partition, and the officer who searched the backpack was seated next to respondent in the backseat.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Raymond E. Rogers* and *Tamara A. Steckler* of counsel), for appellant.

Zachary W. Carter, Corporation Counsel, New York City (*Ronald E. Sternberg* and *Richard Dearing* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

The initial detention of appellant was lawful on the basis of the police officer's authority to detain a suspected truant (*see Matter of Shannon B.*, 70 NY2d 458, 462 [1987]). Appellant relies on *People v Reid* (24 NY3d 615 [2014]), but that decision, which analyzed a search incident to lawful arrest with reference to the timing of an officer's intent to arrest, does not apply to the legality of the detention here. Whether the officer who detained appellant intended to transport him to the precinct or to a Department of Education facility is not relevant to the lawfulness of the initial detention. Therefore, we need

not decide whether it would have been lawful for the police officers to take appellant to the precinct as a truant.

After the initial detention, appellant's bag produced a distinctive noise when it came into contact with the police vehicle, which one of the officers recognized as the sound a gun makes when it strikes a motor vehicle (*see generally Matter of Gregory M.*, 82 NY2d 588, 591 [1993]). Appellant gave evasive answers when asked what had caused the sound. The officers, who knew that appellant had previously been arrested for robbery, asked appellant to remove the backpack. Appellant complied, but he appeared nervous after he gave up his bag. Upon taking possession of the backpack, one of the officers felt what seemed to be a gun in an exterior pocket.

Under these circumstances, even assuming that this amounted to an investigative touching, there is a view of the evidence supporting the Appellate Division's determination that the officers had a reasonable suspicion that appellant was armed.

When the touching revealed the shape of a gun in the bag, appellant was arrested. Appellant became agitated and upset, and resisted being handcuffed, such that two officers were required to handcuff him. Notably, the officers knew that on the occasion of appellant's prior arrest he had started to walk away while being handcuffed. By this time, a crowd had gathered, yelling at the officers, who placed appellant in their police vehicle. Once in the vehicle, one of the officers opened and searched the backpack. He found what was later confirmed to be an air pistol. Significantly, the unmarked police vehicle had no partition, and the officer who searched the bag was seated next to appellant on the backseat.

In these circumstances, there is record support for the conclusion that the officers reasonably believed that appellant might gain possession of a weapon, so that exigent circumstances—a legitimate concern about the safety of the arresting officers—justified the warrantless search of appellant's backpack.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, without costs, in a memorandum.

[48 NE3d 960, 28 NYS3d 679]

DOUGLAS L. LEIGHT et al., Plaintiffs, and JOHN H. MASTEN, Appellant, v W7879 LLC et al., Respondents.

Decided March 24, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 5, 2015. The Appellate Division (1) reversed, on the law, an order and judgment (one paper) of the Supreme Court, New York County (Joan M. Kenney, J.), which, to the extent appealed from as limited by the briefs, had denied defendants' motion to dismiss with respect to plaintiffs John H. Masten and Dianne Wiest, and granted plaintiffs certain relief; (2) granted defendants' motion as to plaintiffs John H. Masten and Dianne Wiest; and (3) declared that those plaintiffs' apartments were not rent-stabilized. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as reversed by this Court, properly made?"

Leight v W7879 LLC, 128 AD3d 417, affirmed.

HEADNOTE**Landlord and Tenant — Rent Regulation — Luxury De-control — Execution of Subsequent Market Rate Lease**

In an action seeking a declaration that plaintiff's apartment was rent-stabilized, plaintiff failed to establish that his apartment, which was deregulated in 2000 by an unchallenged order of the Division of Housing and Community Renewal, became re-regulated when he executed a renewal lease at market rate.

APPEARANCES OF COUNSEL

Collins, Dobkin & Miller LLP, New York City (*Seth A. Miller* of counsel), for appellant.

Kucker & Bruh, LLP, New York City (*Patrick K. Munson* of counsel), for respondents.

Himmelstein, McConnell, Gribben, Donoghue & Joseph, New York City (*Ronald S. Langedoc* of counsel), for Metropolitan Council on Housing, amicus curiae.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question not answered upon the ground that it is unnecessary. Plaintiff John H. Masten

failed to establish that his apartment, which was deregulated in 2000 by an unchallenged order of the Division of Housing and Community Renewal, became re-regulated when he executed a renewal lease at market rate.

Concur: Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA.

[48 NE3d 960, 28 NYS3d 679]

PAF-PAR LLC, Appellant, v MICHAEL SILBERBERG et al.,
Respondents.

Argued February 18, 2016; decided March 24, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 5, 2014. The Appellate Division affirmed an order of the Supreme Court, New York County (Jeffrey K. Oing, J.), which had (1) denied plaintiff's motion for summary judgment in lieu of complaint (CPLR 3213), and (2) granted defendants' cross motion to dismiss the complaint.

In plaintiff's action to enforce a guaranty for the original loan amount, despite the fact that the borrower had satisfied its obligations under the note as modified pursuant to an agreement signed by plaintiff, the Appellate Division concluded that plaintiff was not entitled to summary judgment because it failed to establish standing. Plaintiff submitted an affidavit saying that the original lender had assigned it the note, mortgage, and guaranty, and its assertions were contradicted by documentary evidence submitted by defendants.

PAF-PAR LLC v Silberberg, 118 AD3d 446, affirmed.

HEADNOTE

Parties — Standing — Guarantee of Promissory Note

Plaintiff failed to demonstrate its standing to maintain its action pursuant to CPLR 3213.

APPEARANCES OF COUNSEL

Pryor Cashman LLP, New York City (*William L. Charron* and *Vanessa Costantini* of counsel), for appellant.

Tannenbaum Helpert Syracuse & Hirschtritt LLP, New York City (*Vincent J. Syracuse* and *Maryann C. Stallone* of counsel),

and *Stahl & Zelmanovitz*, New York City (*Joseph Zelmanovitz* of counsel), for respondents.

OPINION OF THE COURT

Order affirmed, with costs. In this action pursuant to CPLR 3213, PAF-PAR LLC failed to demonstrate standing to maintain the action.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[50 NE3d 224, 30 NYS3d 600]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NELSON MIRANDA, Appellant.

Argued February 11, 2016; decided March 24, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered August 22, 2014. The Appellate Term affirmed a judgment of the Criminal Court of the City of New York, New York County (Rita M. Mella, J.), which had convicted defendant, after a nonjury trial, of attempted possession of burglar's tools (six counts) and attempted petit larceny (three counts).

People v Miranda, 44 Misc 3d 140(A), 2014 NY Slip Op 51289(U), affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendant failed to preserve for appellate review his argument that the warrantless search of his satchel, which took place after a police officer felt a bag on defendant's person underneath his coat during a pat down, was unlawful as beyond the scope of a search incident to his arrest for attempting to damage locks on three bicycles using a hacksaw. CPL 470.05 (2) provides that a question of law regarding a ruling is presented in a criminal proceeding "when a protest thereto was registered, by the party claiming error, at [a] time . . . when the court had an opportunity of effectively changing the same . . . or if in response to a protest by a party, the court expressly decided the question raised on appeal." The hearing court did not expressly decide, in response to protest, the issues raised on appeal. The issue at the suppression hearing was whether the officers had probable cause to arrest defendant, and the hearing court's reference to "search incident to a lawful arrest" was insufficient to preserve defendant's argument for review by the Court of Appeals.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (*Frances A. Gallagher* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Andrew E. Seewald* and *Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Term should be affirmed.

Defendant made a motion to suppress physical evidence “seized from his person” on the basis that the property seized was the fruit of an unlawful arrest. At the conclusion of the suppression hearing, the court found probable cause for the arrest based on the officers’ “observations over a nearly 30-minute period,” during which defendant attempted to damage the locks on three different bicycles using a tool in a “sawing” motion. As one officer stopped defendant, defendant dropped a hacksaw. The officer put defendant’s hands on a car, handcuffed him, and performed an initial pat down for the safety of the officers and felt a bag on his person underneath his coat. The officers searched the satchel and found pliers, screwdrivers and rubber gloves. The hearing court concluded that the search was incident to a lawful arrest.

“CPL 470.05 (2) provides that a question of law regarding a ruling is presented in a criminal proceeding ‘when a protest thereto was registered, by the party claiming error, at [a] time . . . when the court had an opportunity of effectively changing the same . . . or if in response to a protest by a party, the court expressly decided the question raised on appeal’ ” (*People v Graham*, 25 NY3d 994, 996 [2015]).

The issue argued on this appeal is whether the warrantless search of defendant’s satchel was unlawful as beyond the scope of a search incident to arrest. In particular, defendant contends that the exigencies that existed at the time of the arrest no longer existed at the time of the search because he was handcuffed and the seizure of the satchel was outside of a permissible full search of his person incident to arrest.

Here, the hearing court did not expressly decide, in response to protest, the issues now raised on appeal. The issue at the suppression hearing was whether the officers had probable

cause to arrest defendant. The hearing court's mere reference to "search incident to a lawful arrest" is insufficient to preserve defendant's current arguments for this Court's review.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

[50 NE3d 222, 30 NYS3d 598]

SPOLETA CONSTRUCTION, LLC, Respondent, v ASPEN INSURANCE UK LIMITED c/o ASPEN SPECIALTY INSURANCE MANAGEMENT COMPANY, Appellant, et al., Defendants.

Argued February 16, 2016; decided March 24, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered July 11, 2014. The Appellate Division (1) reversed a judgment (denominated order) of the Supreme Court, Monroe County (Thomas A. Stander, J.), which had granted the motion of defendant Aspen Insurance UK Limited c/o Aspen Specialty Insurance Management Company to dismiss the complaint against it; and (2) reinstated the complaint against defendant Aspen Insurance UK Limited c/o Aspen Specialty Insurance Management Company. The following question was certified by the Appellate Division, "Was the order of this Court entered July 11, 2014, properly made?"

Spoleta Constr., LLC v Aspen Ins. UK Ltd., 119 AD3d 1391, affirmed.

HEADNOTE

Insurance — Duty to Defend and Indemnify — Notice of Occurrence

The Appellate Division properly denied the motion by defendant, the insurer of plaintiff's subcontractor, to dismiss plaintiff's action seeking a declaration that defendant was obligated to defend and indemnify plaintiff in an action by the subcontractor's employee, where the documentary evidence did not establish as a matter of law that plaintiff's letter to the subcontractor about the claim, which did not expressly indicate that plaintiff was seeking coverage as an additional insured, failed to provide defendant with timely notice of an occurrence. The letter, forwarded to defendant by the subcontractor's broker at plaintiff's request, did not identify the indemnification provision of the subcontract as the basis for the communication—it requested a defense and indemnity under the contract without specifically invoking either the indemnification or additional insurance provisions. Moreover, the letter

requested that the subcontractor “place [its] insurance carrier on notice of this claim” and provided information about the identity of the injured employee, as well as the date, location and general nature of the accident. That is, in addition to requesting that the insurer be put on notice, the letter provided the details that the policy required to be included by an insured in notice of an occurrence.

APPEARANCES OF COUNSEL

Lewis Brisbois Bisgaard & Smith LLP, New York City (*Stephanie A. Nashban* of counsel), for appellant.

White Fleischer & Fino, LLP, New York City (*Janet P. Ford* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Plaintiff Spoleta Construction seeks a declaration that defendant Aspen Insurance UK Limited c/o Aspen Specialty Insurance Management Company is obligated to defend and indemnify Spoleta in a personal injury action commenced by an employee of Spoleta’s subcontractor, Hub-Langie Paving, Inc. The subcontract required that Spoleta be named as an additional insured on Hub-Langie’s commercial general liability insurance policy, and that Hub-Langie defend and indemnify Spoleta for all claims of bodily injury or physical injury to property arising out of Hub-Langie’s work. Shortly after receiving notice of the injury to Hub-Langie’s employee, Spoleta’s insurer sent a letter to Hub-Langie about the claim, seeking the contact information for Hub-Langie’s insurer and its insurance policy number, stating that Hub-Langie had agreed to defend and indemnify Spoleta and hold it harmless, and requesting that Hub-Langie “place [its] insurance carrier on notice of this claim so that they m[ay] do their own investigation of this claim.” Hub-Langie’s broker forwarded the letter to Aspen—as its insurer—along with a general liability notice of occurrence/claim form describing the employee’s injury. Hub-Langie also sent a copy of the subcontract at Aspen’s request.

Approximately three months later, Hub-Langie’s employee commenced the underlying action against Spoleta and the property owner, seeking to recover for his injuries. Spoleta’s counsel notified Aspen thereof, by letter, and indicated that Spoleta had not yet received a response to its previous request for defense and indemnification. This time, counsel expressly

stated that Hub-Langie was required to defend and indemnify Spoleta and name it as an additional insured, and included a certificate of insurance demonstrating that Spoleta was named as an additional insured on the policy that Aspen issued to Hub-Langie. Aspen denied coverage due to late notice because, in its initial letter, Spoleta “framed” itself only as a claimant against Hub-Langie, not as an additional insured of Aspen, and coverage had been denied to Hub-Langie for unrelated reasons.

Spoleta then commenced this declaratory judgment action against Aspen, among others. In lieu of answering, Aspen moved to dismiss the complaint based on documentary evidence pursuant to CPLR 3211 (a) (1). Supreme Court granted the motion. However, on Spoleta’s appeal, the Appellate Division reversed, holding that the documentary evidence proffered did not establish a defense to Spoleta’s claim as a matter of law (119 AD3d 1391, 1394 [2014]). The Appellate Division, therefore, denied Aspen’s motion and reinstated the complaint against it (*see id.* at 1391). The Court thereafter certified the following question: “Was the order of this Court entered July 11, 2014, properly made?”

At the relevant time,

“the rule in New York [was] that where a contract of primary insurance require[d] notice ‘as soon as practicable’ after an occurrence, the absence of timely notice of an occurrence [constituted] a failure to comply with a condition precedent which, as a matter of law, vitiate[d] the contract . . . [and] [n]o showing of prejudice [was] required” (*Argo Corp. v Greater N.Y. Mut. Ins. Co.*, 4 NY3d 332, 339 [2005]).

The Appellate Division, therefore, properly stated the issue as whether Spoleta’s initial letter—forwarded to Aspen by Hub-Langie’s broker at Spoleta’s request—constituted notice of an “occurrence” under the policy issued by Aspen. The pertinent notice provision of the policy stated: “You must see to it that [Aspen is] notified as soon as practicable of an ‘occurrence’ or an offense which may result in a claim.” Notice was to include, to the extent possible: “(1) How, when and where the ‘occurrence’ or offense took place; (2) The names and addresses of any injured persons and witnesses; and (3) The nature and location of any injury or damage arising out of the ‘occurrence’ or offense.”

We reject Aspen’s argument that the documentary evidence established as a matter of law that Spoleta did not timely see

to it that Aspen was notified of an occurrence. Aspen claims that it interpreted Spoleta's initial letter as seeking only a defense and indemnity from Hub-Langie pursuant to the indemnification provision of the subcontract because Spoleta did not expressly state that it was seeking coverage as an additional insured. However, the letter itself did not identify the indemnification provision of the subcontract as the basis for the communication—it simply requested a defense and indemnity under the contract without specifically invoking either the indemnification or additional insurance provisions. Moreover, the letter requested that Hub-Langie “place [its] insurance carrier on notice of *this claim*” (emphasis added) and provided information about the identity of the injured employee, as well as the date, location and general nature of the accident. That is, in addition to requesting that the insurer be put on notice, the letter provided the details that the policy required to be included by an insured in notice of an occurrence.

Under these circumstances, it cannot be said that the “documentary evidence submitted conclusively establishe[d] a defense to the asserted claims as a matter of law” (*Beal Sav. Bank v Sommer*, 8 NY3d 318, 324 [2007]; see *Leon v Martinez*, 84 NY2d 83, 88 [1994]). Accordingly, the Appellate Division properly denied Aspen's motion and reinstated the complaint. Aspen's remaining arguments have been considered and determined to be lacking in merit.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[50 NE3d 225, 30 NYS3d 601]

In the Matter of NEW YORK STATE CORRECTIONAL OFFICERS AND POLICE BENEVOLENT ASSOCIATION, INC., et al., Appellants, v GOVERNOR'S OFFICE OF EMPLOYEE RELATIONS et al., Respondents.

Argued February 9, 2016; decided March 29, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered

March 26, 2015. The Appellate Division, with two Justices dissenting, affirmed a judgment (denominated decision and order) of the Supreme Court, Albany County (Patrick J. McGrath, J.), entered in a proceeding pursuant to CPLR article 78, which had dismissed petitioners' application to review a determination of respondent Governor's Office of Employee Relations denying petitioner Thomas Tierney's out-of-title work grievance.

Matter of New York State Corr. Officers & Police Benevolent Assn., Inc. v Governor's Off. of Empl. Relations, 126 AD3d 1267, affirmed.

HEADNOTE

Civil Service — Classification — Out-of-Title Work Grievance

In a proceeding to review respondent Governor's Office of Employee Relations' determination denying the out-of-title work grievance brought by petitioner employee, an Office of Mental Health Safety and Security Officer 2 (SSO2) who alleged he had served as Acting Chief Safety and Security Officer (CSSO) at his assigned facility for approximately seven months when the former CSSO was transferred to another facility, respondent's determination that petitioner was performing duties consistent with his position as an SSO2 and was not performing the key distinctive duties of the CSSO position was rationally based. Civil Service Law § 61 (2) proscribes the assignment of an employee to "perform the duties of any position unless he [or she] has been duly appointed, promoted, transferred or reinstated to such position" other than when those duties are performed on a temporary emergency basis. There was evidence in the record to support the determination that petitioner was performing duties that were consistent with, and a natural extension of, his title as an SSO2. Accordingly, the combination of out-of-title work and the work being performed for an extended period of time was not present.

APPEARANCES OF COUNSEL

Sheehan Green Golderman & Jacques LLP, Albany (*Erin N. Parker* of counsel), for appellants.

Eric T. Schneiderman, Attorney General, Albany (*Laura Ettlinger*, *Barbara D. Underwood* and *Andrea Oser* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Petitioner Thomas Tierney was employed by respondent Office of Mental Health (OMH) as a Safety and Security Officer 2 (SSO2). He was assigned to the Hudson River Psychiatric Center in Dutchess County and represented by petitioner New

York State Correctional Officers and Police Benevolent Association, Inc. (NYSCOPBA). The position of SSO2 is a salary grade 15 position. In June 2011, when the Chief Safety and Security Officer (CSSO) of the Hudson River facility transferred to another facility, Tierney was advised that he would be serving as Acting CSSO. He served in that capacity until the facility closed in January 2012.

In August 2011, Tierney filed an out-of-title work grievance with OMH, in accordance with the three-step review process as outlined in the collective bargaining agreement, seeking additional compensation (a salary grade of 20) for the duties he performed as Acting CSSO. In his grievance form, he claimed that he was performing the work of a CSSO by overseeing day-to-day operations, attending committee and subcommittee meetings, compiling Environment of Care Committee reports, overseeing vendors, generating reports, conducting TIMR conference calls,* monitoring and tracking overtime and adjusting day schedules to minimize usage. He also stated that he supervised two Safety and Security Officers (SSO1s) and one SSO1 trainee.

Step 1 of the grievance process, which is review at the facility level, is customarily conducted by the CSSO. Because Tierney was acting in that capacity, this step was bypassed. At step 2, which was OMH's review of the grievance, OMH did not dispute that Tierney was performing the tasks detailed in his grievance form. OMH sustained the grievance and noted that under the terms of the NYSCOPBA contract, monetary awards for out-of-title grievances can only be made retroactive to 15 calendar days prior to the certified mailing of the grievance. Because, according to OMH, "[o]nly the Director of the Governor's Office of Employee Relations [GOER] has the authority to issue monetary awards," OMH requested that the Director of Classification and Compensation at the Department of Civil Service (DCC) affirm the decision and take appropriate action.

At step 3 of the review, where GOER seeks an opinion from DCC as to whether the grieved duties are substantially different from those appropriate to the title to which the employee is certified, DCC undertook its own comparison of the duties and responsibilities of CSSOs and SSO2s, and, finding that the

* TIMR refers to testing, inspection, maintenance and repair/replacement contracts.

grieved duties were consistent with the SSO2 title, denied the grievance. Specifically, it found that SSO2s are working supervisors responsible for all the activities of SSO1s, and that the duties performed by Tierney as Acting CSSO were consistent with those activities. DCC also detailed some of the duties that are assigned to CSSOs and that would have been out-of-title for an SSO2 but were not included in Tierney's grievance, such as supervising and directing all safety and security personnel, reviewing all marginal and unsatisfactory employee ratings, developing protocols and education programs that address a safe, secure and therapeutic environment, maintaining safety equipment and records, and directing the enforcement of the New York State Uniform Fire Prevention and Building Code. GOER adopted the findings of DCC and denied the grievance.

In his CPLR article 78 petition, Tierney alleged, in sum and substance, that in addition to the duties he included in his grievance form, he performed the out-of-title duties detailed by DCC in its decision. Those additional duties were not included in the grievance form and apparently were not considered by OMH. Accordingly, they were not considered by the motion court or the Appellate Division (see *Matter of Rizzo v New York State Div. of Hous. & Community Renewal*, 6 NY3d 104, 110 [2005] ["judicial review of administrative determinations is confined to the facts and record adduced before the agency"] [brackets omitted]). The motion court concluded that GOER's determination that petitioner's responsibilities as an Acting CSSO were substantially similar to the job description of an SSO2 was not arbitrary and capricious and dismissed the proceeding. A divided Appellate Division affirmed (126 AD3d 1267 [3d Dept 2015]), and we now affirm.

Where respondents' determination "is supported by a rational basis, and is neither arbitrary nor capricious, it will not be disturbed" (*Matter of Nehorayoff v Mills*, 95 NY2d 671, 675 [2001]). Civil Service Law § 61 (2) proscribes the assignment of an employee to "perform the duties of any position unless he [or she] has been duly appointed, promoted, transferred or reinstated to such position" other than when those duties are performed on a temporary emergency basis. There was evidence in the record to support the determination that Tierney was performing duties that were consistent with, and a natural extension of, his title as an SSO2. Thus, here, we do not have the combination of out-of-title work and the work be-

ing performed for an extended period of time (*cf. Matter of Sprague v Governor's Off. of Empl. Relations*, 13 AD3d 849 [3d Dept 2004]).

The conclusion reached by DCC and adopted by GOER is not arbitrary or capricious simply because it differs from the conclusion of OMH. In sum, GOER's determination that Tierney was performing duties consistent with his position as an SSO2 and was not performing the key distinctive duties of the CSSO position is rationally based.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, with costs, in a memorandum.

ACQUEST WEHRLE, LLC, Respondent-Appellant, v TOWN OF AMHERST, Appellant-Respondent.

Decided March 24, 2016

Reported below, 129 AD3d 1644.

Appeals dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

AMBAC ASSURANCE CORPORATION et al., Appellants, v COUNTRY-WIDE HOME LOANS, INC., et al., Defendants, and BANK OF AMERICA CORP., Respondent.

Submitted March 14, 2016; decided March 24, 2016

Reported below, 124 AD3d 129.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of CELSO L. CASTILLO, Appellant, v JOHN B. LATTELLA, Respondent.

Submitted December 14, 2015; decided March 24, 2016

Reported below, 112 AD3d 922.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 996 (2015)].

Chief Judge DiFiore and Judge Garcia taking no part.

CITY OF NEW YORK, Respondent, v KRIS GOUNDEN, Defendant.
POSR A. POSR, Nonparty Appellant.

Decided March 24, 2016

Reported below, 131 AD3d 560; 2015 NY Slip Op 65905(U).

Appeal, insofar as taken from the March 2015 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal, insofar as taken from the August 2015 Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that appellant is not a party aggrieved (*see* CPLR 5511).

CONCERNED HOME CARE PROVIDERS, INC., Appellant, v NEW YORK STATE DEPARTMENT OF HEALTH et al., Respondents.

Decided March 24, 2016

Reported below, 134 AD3d 1065.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

KIERAN G. CUNNINGHAM et al., Appellants, v SECURITY MUTUAL INSURANCE COMPANY, Respondent.

Decided March 24, 2016

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies from the order of County Court affirming the Ithaca City Court judgment (*see* NY Const, art VI, § 3 [b]; CPLR 5601).

BERNARD H. GLATZER, Appellant, v MICHAEL F. HANLEY MOVING & STORAGE, INC., et al., Respondents.

Decided March 24, 2016

Reported below, 2015 NY Slip Op 83741(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

ANDREW J. HAIN, Individually and as Executor of HOLLY J. HAIN, Deceased, Respondent, v ANGELA J. JAMISON et al., Appellants, and DRUMM FAMILY FARM, INC., Respondent.

Submitted March 21, 2016; decided March 24, 2016

Reported below, 130 AD3d 1562.

Motion by Nicholas Rivers for leave to file a brief amicus curiae on the appeal herein denied. Motion for poor person relief dismissed as academic.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided March 24, 2016

Reported below, 2015 NY Slip Op 88044(U), 2015 NY Slip Op 88045(U), 2015 NY Slip Op 88046(U), 2015 NY Slip Op 78404(U), 2015 NY Slip Op 78405(U), 2015 NY Slip Op 78406(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution.

LINDA P. NASH, Respondent, v PORT AUTHORITY OF NEW YORK AND NEW JERSEY, Appellant.

Decided March 24, 2016

Reported below, 131 AD3d 164.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it does not lie. The terms of this Court's remittitur were not violated and an appeal therefore does not lie as of right.

Judge ABDUS-SALAAM taking no part.

In the Matter of TATIANA NERONI, an Attorney, Appellant.
GRIEVANCE COMMITTEES OF THE FOURTH JUDICIAL DEPARTMENT, Respondent.

Submitted January 11, 2016; decided March 24, 2016

Reported below, 135 AD3d 97.

Motion, insofar as it seeks disqualification of Judges Stein and Fahey, dismissed as academic; motion, insofar as it seeks disqualification of Chief Judge DiFiore, dismissed upon the ground that the Court of Appeals has no authority to entertain the motion made on nonstatutory grounds. The application seeking recusal of the Chief Judge is referred to her for individual consideration and determination. Chief Judge DiFiore denies the referred motion for recusal. Motion for ancillary relief denied. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

Judges STEIN and FAHEY taking no part.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

RUBY E. KONSTANTIN, Individually and as Executrix of DAVE JOHN KONSTANTIN, Deceased, Respondent, v 630 THIRD AVENUE ASSOCIATES et al., Defendants, and TISHMAN LIQUIDATING CORPORATION, Appellant.

Submitted March 14, 2016; decided March 24, 2016

Reported below, 121 AD3d 230.

Motion by Business Council of New York State et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TREVOR ANDERSON, Appellant.

Submitted March 21, 2016; decided March 24, 2016

Reported below, 130 AD3d 1055.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PETER
AUSTIN, Appellant.

Submitted February 29, 2016; decided March 24, 2016

Reported below, 134 AD3d 559.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROSS
CAMPBELL, Appellant.

Submitted February 22, 2016; decided March 24, 2016

Reported below, 131 AD3d 882.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN
GAYDEN, Appellant.

Submitted February 22, 2016; decided March 24, 2016

Reported below, 126 AD3d 1518.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURLIE
GREEN, Appellant.

Submitted February 29, 2016; decided March 24, 2016

Reported below, 122 AD3d 1342.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS JACKSON, Appellant.

Submitted March 14, 2016; decided March 24, 2016

Reported below, 128 AD3d 1181.

Motion for assignment of counsel granted and Mitch Kessler, Esq., 63 Pike Creek Drive, Cohoes, New York 12047 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL E. PRINDLE, Appellant.

Submitted February 22, 2016; decided March 24, 2016

Reported below, 129 AD3d 1506.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RONI SMITH, Respondent.

Submitted February 29, 2016; decided March 24, 2016

Reported below, 132 AD3d 511.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THEODORE JEROME SMITH, JR., Appellant.

Submitted March 14, 2016; decided March 24, 2016

Reported below, 50 Misc 3d 134(A), 2016 NY Slip Op 50043(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARRELL SPENCER, Appellant.

Submitted March 21, 2016; decided March 24, 2016

Reported below, 135 AD3d 608.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HARVERT STEPHENS, Also Known as HAVERT STEPHENS, Appellant.

Submitted February 22, 2016; decided March 24, 2016

Reported below, 128 AD3d 1497.

Motion by City of Syracuse for leave to appear amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE VALENTIN, Appellant.

Submitted March 21, 2016; decided March 24, 2016

Reported below, 132 AD3d 499.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DENNIS WATKINS, Appellant.

Submitted March 21, 2016; decided March 24, 2016

Reported below, 134 AD3d 478.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. LEVON ISAAC,
Appellant, v DONNA LEWIN, Superintendent, Hudson Cor-
rectional Facility, et al., Respondents.

Decided March 24, 2016

Reported below, 2015 NY Slip Op 93302(U).

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that no substantial constitutional
question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK by ERIC T. SCHNEIDER-
MAN, Attorney General of the State of New York, Respon-
dent, v MAURICE R. GREENBERG et al., Appellants.

Submitted March 7, 2016; decided March 24, 2016

Reported below, 127 AD3d 529.

Motion by AARP for leave to file a brief amicus curiae on the
appeal herein granted and the proposed brief is accepted as
filed. Three copies of the brief must be served and an original
and nine copies filed within seven days.

Judge GARCIA taking no part.

ARMAND RETAMOZZO, Appellant, v DIANA FRIEDLAND et al., Re-
spondents.

Decided March 24, 2016

Reported below, 2015 NY Slip Op 88147(U).

On the Court's own motion, appeal dismissed, without costs,
upon the ground that the order appealed from does not finally
determine the action within the meaning of the Constitution.
Motions for leave to appeal dismissed upon the ground that the
orders sought to be appealed from do not finally determine the
action within the meaning of the Constitution.

STEVEN G. SCHULMAN, Appellant, v APRYL N. MILLER, Respon-
dent.

Decided March 24, 2016

Reported below, 134 AD3d 616.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

JAMES BRADY, Appellant, v 450 WEST 31ST STREET OWNER'S CORP. et al., Respondents. (And Another Action.)

Submitted January 19, 2016; decided March 29, 2016

Reported below, 2015 NY Slip Op 92288(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of DEVON D.T. CHILDREN'S AID SOCIETY et al., Respondents; DAVINA T., Appellant.

Submitted February 29, 2016; decided March 29, 2016

Reported below, 135 AD3d 947.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of ENRIQUE S. and Others, Children Alleged to be Neglected. KELBA C.S., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et al., Respondent.

Submitted January 19, 2016; decided March 29, 2016

Reported below, 134 AD3d 576.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

EXECUTOR OF CELIA KATES et al., Appellants, v JAMES G. PRESSLY et al., Respondents.

Submitted January 19, 2016; decided March 29, 2016

Reported below, 132 AD3d 723.

Motion for reconsideration of this Court's December 15, 2015 dismissal order denied [*see* 26 NY3d 1072 (2015)].

Chief Judge DiFiore and Judge Garcia taking no part.

JIAN-GUO YU et al., Plaintiffs, v GREENWAY MEWS REALTY L.L.C. et al., Defendants. GREENWAY MEWS REALTY L.L.C., Third-Party Plaintiff/Respondent, et al., Third-Party Plaintiff, v UAD GROUP, Third-Party Defendant/Appellant.

Submitted January 25, 2016; decided March 29, 2016

Reported below, 134 AD3d 446.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Burke v Crosson*, 85 NY2d 10, 18 n 5 [1995]).

Judge Abdus-Salaam taking no part.

SETH MITCHELL, Appellant, v NEW YORK UNIVERSITY et al., Respondents.

Submitted January 19, 2016; decided March 29, 2016

Reported below, 2015 NY Slip Op 93563(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES MILLER, Appellant.

Submitted February 1, 2016; decided March 29, 2016

Reported below, 122 AD3d 492.

Motion to vacate this Court's January 8, 2016 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RALPH OYAGUE, Appellant, v STEVEN RACETTE, as Warden/Superintendent of Clinton Correctional Facility, Respondent.

Submitted February 8, 2016; decided March 29, 2016

Reported below, 2015 NY Slip Op 87648(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

In the Matter of R.M., Appellant.

Submitted January 4, 2016; decided March 29, 2016

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

STEWART TITLE INSURANCE COMPANY, Suing in its Own Right and as Subrogee and Assignee of Herold Duroseau and Others, Respondent, v WINGATE, KEARNEY & CULLEN, Also Known as WINGATE, KEARNEY & CULLEN, ESQS., et al., Appellants.

Submitted February 1, 2016; decided March 29, 2016

Reported below, 134 AD3d 924.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANTHONY VILLAFANE, Appellant, v THOMAS J. SPOTA III, Respondent.

Submitted January 25, 2016; decided March 29, 2016

Reported below, 2015 NY Slip Op 93993(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ISAAC WIDERMAN, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted January 19, 2016; decided March 29, 2016

Reported below, 128 AD3d 599.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 912 (2015)].

Judge ABDUS-SALAAM taking no part.

ROBERT E. WILSON, III, Respondent, v DANIEL VALENTE DANTAS et al., Appellants, et al., Defendants.

Submitted March 14, 2016; decided March 29, 2016

Reported below, 128 AD3d 176.

Motion by respondent to strike appellants' brief on appeal denied. Motion by respondent for reargument of motion to dismiss appeal denied [see 26 NY3d 1077 (2015)]. Motion by appellants for a stay denied.

AMBAC ASSURANCE CORPORATION et al., Appellants, v COUNTRY-WIDE HOME LOANS, INC., et al., Defendants, and BANK OF AMERICA CORP., Respondent.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 124 AD3d 129.

Motion by New York State Academy of Trial Lawyers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

AMBAC ASSURANCE CORPORATION et al., Appellants, v COUNTRY-WIDE HOME LOANS, INC., et al., Defendants, and BANK OF AMERICA CORP., Respondent.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 124 AD3d 129.

Motion by Chamber of Commerce of the United States of America et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Chief Judge DiFIORE taking no part.

APF 286 MAD LLC et al., Respondents, v CHITTUR & ASSOCIATES P.C. et al., Appellants.

Submitted February 8, 2016; decided March 31, 2016

Reported below, 132 AD3d 610.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of ARIANNA-SAMANTHA LADY MELISSA S. and Another, Children Alleged to be Neglected. CARISSA S., Appellant; COMMUNITY COUNSELING & MEDIATION, Respondent.

Submitted February 2, 2016; decided March 31, 2016

Reported below, 134 AD3d 582.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Family Court's denial of the motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of AUSTROLYN O., Respondent, v MICHELLE R., Appellant, et al., Respondent.

Submitted February 1, 2016; decided March 31, 2016

Reported below, 135 AD3d 414.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

RAMANDEEP BADWAL, Respondent, v AVTAR S. BADWAL, Appellant.

Submitted February 1, 2016; decided March 31, 2016

Reported below, 126 AD3d 736.

Motion for reargument denied [*see* 26 NY3d 1046 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of BEATRICE R.H., Respondent. DEAN E.H., Respondent. PENNY F.H., Nonparty Respondent; ESTATE OF RONALD H., Nonparty Appellant.

Submitted February 1, 2016; decided March 31, 2016

Reported below, 131 AD3d 1058.

Motion for reargument of motion for leave to appeal dismissed upon the ground that movant was not a party to the original motion for leave to appeal [*see* 26 NY3d 1077 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C-C., Respondent. R. THOMAS RANKIN, Attorney for the Child, Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 129 AD3d 1578.

Motion by National Center for Lesbian Rights et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

STEPHANE COSMAN CONNERY et al., Respondents, v BURTON S. SULTAN, Appellant.

Submitted January 25, 2016; decided March 31, 2016

Reported below, 129 AD3d 455.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 1080 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of EIGHTH JUDICIAL DISTRICT ASBESTOS LITIGATION.

JOANN H. SUTTNER, as Executrix of GERALD W. SUTTNER, Deceased, Respondent, v A.W. CHESTERTON COMPANY et al., Defendants, and CRANE Co., Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 115 AD3d 1218.

Motion by CBS Corporation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of EIGHTH JUDICIAL DISTRICT ASBESTOS LITIGATION.

JOANN H. SUTTNER, as Executrix of GERALD W. SUTTNER, Deceased, Respondent, v A.W. CHESTERTON COMPANY et al., Defendants, and CRANE Co., Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 115 AD3d 1218.

Motion by Chamber of Commerce of the United States of America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of ESTRELLITA A., Respondent, v JENNIFER L.D., Appellant.

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C-C., Respondent. R. THOMAS RANKIN, Attorney for the Child, Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 123 AD3d 1023.

Motion by National Association of Social Workers et al. for leave to file a brief amici curiae on the appeals herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

In the Matter of ESTRELLITA A., Respondent, v JENNIFER L.D., Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 123 AD3d 1023.

Motion by National Center for Lesbian Rights et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

MARILYN HOPEMAN, Appellant, v ALBERT A. HOPEMAN III, Respondent.

Submitted January 25, 2016; decided March 31, 2016

Reported below, 128 AD3d 488.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 913 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

GEORGE NEWMAN et al., Appellants, v RCPI LANDMARK PROPERTIES, LLC, et al., Respondents.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 124 AD3d 551.

Motion by Defense Association of New York, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et al., Defendants, and CRANE Co., Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 121 AD3d 230.

Motion by General Electric for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

DORIS KAY DUMMITT, Individually and as Executrix of RONALD DUMMITT, Deceased, Respondent, v A.W. CHESTERTON et al., Defendants, and CRANE Co., Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 121 AD3d 230.

Motion by CBS Corporation for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of NEW YORK CITY ASBESTOS LITIGATION.

RUBY E. KONSTANTIN, Individually and as Executrix of DAVE JOHN KONSTANTIN, Deceased, Respondent, v 630 THIRD AVENUE ASSOCIATES et al., Defendants, and TISHMAN LIQUIDATING CORPORATION, Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 121 AD3d 230.

Motion by John Crane Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

NOMURA ASSET CAPITAL CORPORATION et al., Respondents-
Appellants v CADWALADER, WICKERSHAM & TAFT LLP,
Appellant-Respondent.

Submitted November 30, 2015; decided March 31, 2016

Reported below, 115 AD3d 228.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements.

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of the Claim of CHRISTOPHER NORTH, Respon-
dent. YOUNG PEOPLE'S CHORUS OF NEW YORK, Appellant;
COMMISSIONER OF LABOR, Respondent.

Submitted January 19, 2016; decided March 31, 2016

Reported below, 133 AD3d 1071.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MARIA PAPPAS, Respondent, v ANTHONY PAPPAS, Appellant.

Submitted February 1, 2016; decided March 31, 2016

Reported below, 134 AD3d 1000.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of PATRICK A., Respondent, v ROCHELLE B., Ap-
pellant. (And Another Related Proceeding.)

Submitted February 29, 2016; decided March 31, 2016

Reported below, 135 AD3d 1025.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NIRUN
HONGHIRUN, Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 133 AD3d 882.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANZE
R. MASON, Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 132 AD3d 777.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAW-
RENCE PARKER, Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 135 AD3d 52.

Motion for assignment of counsel granted and Seymour W. James, Jr., Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMEL
UPSON, Appellant.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 134 AD3d 1058.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Chief Judge DiFiore taking no part.

THE PEOPLE OF THE STATE OF NEW YORK by ERIC T. SCHNEIDERMAN, Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 127 AD3d 529.

Motion by American Securities Administrators Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK by ERIC T. SCHNEIDERMAN, Respondent, v MAURICE R. GREENBERG et al., Appellants.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 127 AD3d 529.

Motion by Chamber of Commerce of the United States of America et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge GARCIA taking no part.

ROBERT L. SCHULZ, Appellant, v SHELDON SILVER, Individually and as Speaker of the New York State Assembly, Respondent.

Decided March 31, 2016

Reported below, 134 AD3d 1369.

Appeal, insofar as taken from that portion of the Appellate Division order dismissing the appeal from the October 2014 Supreme Court order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; appeal otherwise dismissed, without costs,

by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge DiFIORE taking no part.

S.L., Appellant, v J.R., Respondent.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 126 AD3d 682.

Motion by Domestic Violence Legal Empowerment and Appeals Project et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

In the Matter of STATE OF NEW YORK, Respondent, v WALTER J.R., Appellant.

Submitted January 19, 2016; decided March 31, 2016

Reported below, 2015 NY Slip Op 92941(U).

Motion for leave to appeal dismissed upon the ground that no motion for leave to appeal lies from an Appellate Division order which dismissed an appeal taken from a verdict sheet (*see* CPLR 5602). Motion for poor person relief dismissed as academic.

WALLY G., an Infant, by His Mother and Natural Guardian, YOSELIN T., Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION (METROPOLITAN HOSPITAL), Respondent.

Submitted March 28, 2016; decided March 31, 2016

Reported below, 120 AD3d 1082.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

[49 NE3d 1155, 29 NYS3d 863]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASHID
BILAL, Appellant.

Argued February 11, 2016; decided March 31, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 5, 2014. The Appellate Division affirmed (1) a judgment of the Supreme Court, New York County (Robert M. Stolz, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree; and (2) an order of that Supreme Court (op 41 Misc 3d 1203[A], 2013 NY Slip Op 51568[U] [2013]) which had denied defendant's CPL 440.10 motion to vacate the judgment.

People v Bilal, 118 AD3d 448, modified.

HEADNOTE

Crimes — Right to Counsel — Effective Representation — Failure to File Suppression Motion

On the record and in light of the issues framed by the parties in connection with defendant's CPL 440.10 motion in his prosecution for criminal possession of a weapon in the second degree, defendant was denied the effective assistance of counsel by defense counsel's failure to move to suppress the gun that was recovered during defendant's encounter with the police. Defendant established, through his counsel's affidavit, that there was no strategic or other legitimate explanation for defense counsel's failure to file a motion to suppress.

APPEARANCES OF COUNSEL

Robert S. Dean, Center for Appellate Litigation, New York City (*Rachel T. Goldberg* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Philip Morrow* and *David M. Cohn* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified by remitting to Supreme Court for a suppression hearing. In the event that defendant prevails at the suppression hearing, a new trial should be ordered; alternatively, in the event that the People prevail, the judgment should be amended to reflect that result. As so modified, the order should be affirmed.

On this record and in light of the issues framed by the parties in connection with defendant's CPL 440.10 motion, we conclude that defendant was denied the effective assistance of counsel. In this case, defendant was indicted on a charge of criminal possession of a weapon in the second degree (*see* Penal Law § 265.03 [3]), and defense counsel failed to move to suppress the gun that was recovered during defendant's encounter with the police. Defendant established, through his counsel's affidavit, that there was no "strategic or other legitimate explanation[]" (*People v Rivera*, 71 NY2d 705, 709 [1988]) for defense counsel's failure to file a motion to suppress. Thus, we conclude that counsel did not provide defendant with meaningful representation under these particular circumstances. Accordingly, defendant is entitled to a suppression hearing and, if he prevails at the hearing, a new trial, but if the People prevail, the judgment should be amended to reflect that result (*see People v Clermont*, 22 NY3d 931, 934 [2013]; *People v Millan*, 69 NY2d 514, 521-522 [1987]).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order modified by remitting to Supreme Court, New York County, for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2016 through March 31, 2016)

Zito v New York City Off. of Payroll Admin.	3d Dept: 130 AD3d 1326	3/14/16
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2016 through March 31, 2016)

People v Alvarado	2d Dept: 126 AD3d 803 (Kings)	denied 3/17/16 (Abdus-Salaam, J.)
People v Armstrong	4th Dept: 134 AD3d 1401 (Monroe)	denied 3/31/16 (DiFiore, Ch. J.)
People v Barksdale	3d Dept: 134 AD3d 1349 (St. Lawrence)	denied 3/16/16 (Pigott, J.)
People v Barnes	2d Dept: 136 AD3d 665 (Kings)	denied 3/31/16 (DiFiore, Ch. J.)

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People v Bates	1st Dept: 135 AD3d 529 (Bronx)	denied 3/17/16 (Stein, J.)
People v Bellamy	4th Dept: 136 AD3d 1326 (Onondaga)	denied 3/31/16 (DiFiore, Ch. J.)
People v Benjamin	App Div, 1st Dept: 2013 NY Slip Op 66337(U) (NY)	dismissed 3/1/16 (Pigott, J.)
People v Billingsley	4th Dept: 128 AD3d 1520 (Erie)	denied 3/16/16 (Abdus-Salaam, J.)
People v Bishop	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 46 Misc 3d 142(A) (Kings)	denied 3/1/16 (Abdus-Salaam, J.)
People v Blackwood	1st Dept: 123 AD3d 468 (NY)	denied 3/31/16 (Rivera, J.)
People v Boyd (John)	3d Dept: 135 AD3d 1163 (Albany)	denied 3/31/16 (DiFiore, Ch. J.)
People v Boyd (Preston)	4th Dept: 128 AD3d 1424 (Oneida)	denied 3/14/16 (Abdus-Salaam, J.)
People v Brown	2d Dept: 134 AD3d 1043 (Queens)	denied 3/31/16 (Stein, J.)
People v Bullock	1st Dept: 135 AD3d 574 (NY)	denied 3/28/16 (DiFiore, Ch. J.)
People v Burke-Wells	4th Dept: 134 AD3d 1436 (Monroe)	denied 3/31/16 (DiFiore, Ch. J.)
People v Butler	3d Dept: 134 AD3d 1349 (St. Lawrence)	denied 3/16/16 (Pigott, J.)
People v C	4th Dept: 134 AD3d 1472 (Erie)	denied 3/31/16 (Stein, J.)
People v Camillo	1st Dept: 135 AD3d 450 (Bronx)	denied 3/16/16 (Pigott, J.)
People v Campbell	App Term, 1st Dept: 50 Misc 3d 135(A) (Bronx)	denied 3/31/16 (DiFiore, Ch. J.)
People v Chery	2d Dept: 127 AD3d 1227 (Queens)	denied 3/18/16 (Abdus-Salaam, J.)
People v Cisnero	1st Dept: 135 AD3d 528 (NY)	denied 3/18/16 (Fahey, J.)
People v Cody	1st Dept: 135 AD3d 565 (NY)	denied 3/31/16 (DiFiore, Ch. J.)
People v Cohen	2d Dept: 123 AD3d 733 (Nassau)	denied reconsideration 3/14/16 (Abdus-Salaam, J.)
People v Coleman	4th Dept: 134 AD3d 1555 (Monroe)	denied 3/28/16 (Stein, J.)
People v Cotton	4th Dept: 120 AD3d 1564 (Erie)	denied 3/2/16 (Rivera, J.)
People v Curry	1st Dept: 127 AD3d 642 (Bronx)	denied 3/7/16 (Abdus-Salaam, J.)

People v Davis	App Div, 4th Dept, 11/17/15 (Monroe)	dismissed 3/2/16 (Rivera, J.)
People v Denis	1st Dept: 128 AD3d 543 (Bronx)	denied 3/16/16 (Abdus-Salaam, J.)
People v Deveau	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 50 Misc 3d 133(A) (Kings)	denied 3/31/16 (DiFiore, Ch. J.)
People v Dewitt	1st Dept: 126 AD3d 579 (Bronx)	denied 3/1/16 (Abdus-Salaam, J.)
People v Diaz	1st Dept: 134 AD3d 511 (NY)	denied 3/29/16 (Stein, J.)
People v Dillon	1st Dept: 135 AD3d 420 (Bronx)	denied 3/11/16 (Pigott, J.)
People v Douglas	1st Dept: 135 AD3d 450 (Bronx)	denied 3/16/16 (Pigott, J.)
People v Dunbar	2d Dept: 134 AD3d 851 (Orange)	denied 3/10/16 (Fahey, J.)
People v Edwards	4th Dept: 129 AD3d 1499 (Niagara)	denied 3/2/16 (Rivera, J.)
People v Ested	2d Dept: 129 AD3d 858 (Kings)	denied reconsideration 3/23/16 (DiFiore, Ch. J.)
People v Fogel	App Div, 2d Dept: 2015 NY Slip Op 91970(U) (Queens)	dismissed 3/14/16 (Fahey, J.)
People v Fountain	2d Dept: 127 AD3d 784 (Queens)	denied 3/14/16 (Abdus-Salaam, J.)
People v Francis	1st Dept: 128 AD3d 457 (Bronx)	denied 3/8/16 (Abdus-Salaam, J.)
People v Freeman (Brandon)	1st Dept: 135 AD3d 489, 2016 NY Slip Op 00110 (NY)	denied 3/18/16 (Fahey, J.)
People v Freeman (Matthew)	4th Dept: 129 AD3d 1554 (Onondaga)	denied 3/2/16 (Rivera, J.)
People v Fuentes	1st Dept: 135 AD3d 415 (Bronx)	denied 3/10/16 (Fahey, J.)
People v Gabbidon	2d Dept: 134 AD3d 736 (Dutchess)	denied 3/31/16 (DiFiore, Ch. J.)
People v Garcia	1st Dept: 129 AD3d 524 (NY)	denied 3/8/16 (Abdus-Salaam, J.)
People v Gaston	4th Dept: 126 AD3d 1400 (Orleans)	denied 3/7/16 (Abdus-Salaam, J.)
People v Gayle	1st Dept: 123 AD3d 468 (NY)	denied 3/31/16 (Rivera, J.)
People v Gillespie	4th Dept: 128 AD3d 1519 (Monroe)	denied 3/16/16 (Abdus-Salaam, J.)

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People v Goldring	2d Dept: 133 AD3d 684 (Queens)	denied 3/16/16 (Pigott, J.)
People v Gonzalez-Guevara	2d Dept: 129 AD3d 745 (Suffolk)	denied 3/8/16 (Abdus-Salaam, J.)
People v Goodbread	2d Dept: 127 AD3d 1106 (Suffolk)	denied 3/7/16 (Abdus-Salaam, J.)
People v Graves	App Div, 2d Dept: 2015 NY Slip Op 91972(U) (Kings)	dismissed 3/29/16 (Stein, J.)
People v Gray	4th Dept: 126 AD3d 1541 (Monroe)	denied 3/7/16 (Abdus-Salaam, J.)
People v Green (David)	1st Dept: 134 AD3d 501 (NY)	denied 3/16/16 (Pigott, J.)
People v Green (Edward)	1st Dept: 134 AD3d 418 (NY)	denied 3/10/16 (Fahey, J.)
People v Green (Shaun)	3d Dept: 127 AD3d 1473 (Albany)	denied 3/7/16 (Abdus-Salaam, J.)
People v Griffin	4th Dept: 128 AD3d 1424 (Monroe)	denied 3/14/16 (Abdus-Salaam, J.)
People v Grist	2d Dept: 126 AD3d 999 (Kings)	denied 3/7/16 (Abdus-Salaam, J.)
People v Gucciardo	2d Dept: 128 AD3d 983 (Suffolk)	denied 3/14/16 (Abdus-Salaam, J.)
People v Guzman	1st Dept: 134 AD3d 637 (NY)	denied 3/17/16 (Stein, J.)
People v Hall	2d Dept: 120 AD3d 588 (Queens)	denied 3/2/16 (Rivera, J.)
People v Harrell	1st Dept: 132 AD3d 507 (NY)	denied reconsideration 3/10/16 (Fahey, J.)
People v Harris	1st Dept: 134 AD3d 487 (NY)	denied 3/14/16 (Fahey, J.)
People v Heckerman	4th Dept: 134 AD3d 1548 (Livingston)	denied 3/31/16 (DiFiore, Ch. J.)
People v Holley	4th Dept: 126 AD3d 1468 (Monroe)	denied 3/1/16 (Abdus-Salaam, J.)
People v Holmes	App Div, 2d Dept: 2015 NY Slip Op 95325(U) (Nassau)	dismissed 3/31/16 (Rivera, J.)
People v Honghirun	2d Dept: 133 AD3d 882 (Queens)	granted 3/3/16 (Fahey, J.)
People v Howard	3d Dept: 134 AD3d 1153 (Clinton)	denied 3/16/16 (Pigott, J.)
People v Hubbard	2d Dept: 132 AD3d 1013 (Suffolk)	denied 3/2/16 (Rivera, J.)

People v Huddleston	4th Dept: 134 AD3d 1458 (Onondaga)	denied 3/29/16 (Stein, J.)
People v Hughes	3d Dept: 134 AD3d 1301 (St. Lawrence)	denied 3/10/16 (Fahey, J.)
People v Hunter	2d Dept: 135 AD3d 958 (Dutchess)	denied 3/31/16 (DiFiore, Ch. J.)
People v Hymes	App Div, 4th Dept, 12/4/15 (Oneida)	dismissed 3/2/16 (Rivera, J.)
People v Jackson	4th Dept: 134 AD3d 1527 (Monroe)	denied 3/10/16 (Stein, J.)
People v Jaffal	1st Dept: 134 AD3d 494 (NY)	denied 3/29/16 (Stein, J.)
People v James	2d Dept: 135 AD3d 787 (Suffolk)	denied 3/7/16 (Stein, J.)
People v JB	3d Dept: 135 AD3d 1163 (Albany)	denied 3/31/16 (DiFiore, Ch. J.)
People v Jenkins	App Div, 4th Dept, 9/9/15 (Erie)	dismissed 3/10/16 (Abdus-Salaam, J.)
People v Jiminez	App Term, 1st Dept: 47 Misc 3d 127(A) (NY)	denied 3/1/16 (Abdus-Salaam, J.)
People v Johnson (Lynden)	App Div, 2d Dept: 2015 NY Slip Op 92428(U) (Kings)	dismissed 3/29/16 (Stein, J.)
People v Johnson (Maurice)	2d Dept: 127 AD3d 785 (Queens)	denied 3/7/16 (Abdus-Salaam, J.)
People v Johnson (Navarro)	2d Dept: 127 AD3d 1234 (Kings)	denied 3/7/16 (Abdus-Salaam, J.)
People v Johnson (William)	1st Dept: 134 AD3d 553 (NY)	denied 3/18/16 (Fahey, J.)
People v Jones	1st Dept: 129 AD3d 424 (NY)	denied 3/8/16 (Abdus-Salaam, J.)
People v Kastner	1st Dept: 132 AD3d 420 (NY)	dismissed 3/10/16 (Stein, J.)
People v Kennedy (Michael)	App Term, 1st Dept: 50 Misc 3d 130(A) (Bronx)	denied 3/16/16 (Pigott, J.)
People v Kennedy (Timothy)	1st Dept: 134 AD3d 507 (NY)	denied 3/16/16 (Pigott, J.)
People v King (Anthony)	4th Dept: 134 AD3d 1430 (Onondaga)	denied 3/16/16 (Pigott, J.)
People v King (Russell)	1st Dept: 134 AD3d 546 (NY)	denied 3/1/16 (Stein, J.)
People v Kramer	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 50 Misc 3d 27 (Kings)	denied 3/14/16 (Fahey, J.)
People v Kroemer	4th Dept: 134 AD3d 1472 (Ontario)	denied 3/7/16 (Stein, J.)
People v Kumar	2d Dept: 127 AD3d 882 (Nassau)	denied 3/16/16 (Abdus-Salaam, J.)

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People v Lawrence	1st Dept: 128 AD3d 457 (Bronx)	denied 3/8/16 (Abdus-Salaam, J.)
People v Lindsay	4th Dept: 134 AD3d 1452 (Chautauqua)	denied 3/11/16 (Pigott, J.)
People v Lormil	2d Dept: 134 AD3d 958 (Kings)	denied 3/2/16 (Fahey, J.)
People v Love (John)	4th Dept: 134 AD3d 1569 (Monroe)	denied 3/23/16 (DiFiore, Ch. J.)
People v Love (Robert)	App Div, 2d Dept: 2015 NY Slip Op 89388(U) (Suffolk)	dismissed 3/10/16 (Abdus-Salaam, J.)
People v Mabeus	App Div, 3d Dept: 2015 NY Slip Op 93284(U) (Schenectady)	denied 3/16/16 (Pigott, J.)
People v Manor	4th Dept: 134 AD3d 1400 (Monroe)	denied 3/16/16 (Pigott, J.)
People v Martinez	1st Dept: 127 AD3d 606 (NY)	denied 3/14/16 (Abdus-Salaam, J.)
People v McClough	4th Dept: 128 AD3d 1471 (Monroe)	denied 3/8/16 (Abdus-Salaam, J.)
People v McIntosh (Gary)	1st Dept: 127 AD3d 627 (NY)	denied 3/14/16 (Abdus-Salaam, J.)
People v McIntosh (Travis)	2d Dept: 127 AD3d 993 (Kings)	denied 3/7/16 (Abdus-Salaam, J.)
People v McLane	4th Dept: 134 AD3d 1400 (Monroe)	denied 3/16/16 (Pigott, J.)
People v McLean	4th Dept: 134 AD3d 1400 (Monroe)	denied 3/16/16 (Pigott, J.)
People v Mead	2d Dept: 134 AD3d 960 (Kings)	denied 3/10/16 (Fahey, J.)
People v Medley	4th Dept: 132 AD3d 1255 (Erie)	denied reconsideration 3/10/16 (Stein, J.)
People v Miller (Charles)	2d Dept: 128 AD3d 855 (Nassau)	denied 3/14/16 (Abdus-Salaam, J.)
People v Miller (Clarence)	4th Dept: 134 AD3d 1472 (Onondaga)	denied 3/31/16 (Stein, J.)
People v Murchison	1st Dept: 134 AD3d 632 (Bronx)	denied 3/23/16 (DiFiore, Ch. J.)
People v Nolan	1st Dept: 135 AD3d 417 (NY)	denied 3/14/16 (Fahey, J.)
People v Ortiz	1st Dept: 135 AD3d 502 (Bronx)	denied 3/18/16 (Fahey, J.)
People v Owens	1st Dept: 135 AD3d 556 (Bronx)	denied 3/24/16 (Stein, J.)
People v Parbhudial	3d Dept: 135 AD3d 978 (Schenectady)	denied 3/31/16 (DiFiore, Ch. J.)

People v Paul	1st Dept: 134 AD3d 640 (NY)	denied 3/7/16 (Stein, J.)
People v Perez (James)	2d Dept: 127 AD3d 884 (Kings)	denied 3/7/16 (Abdus-Salaam, J.)
People v Perez (Victor)	App Div, 1st Dept: 2015 NY Slip Op 69608(U) (Bronx)	denied 3/2/16 (Rivera, J.)
People v Pinto	App Div, 2d Dept: 2015 NY Slip Op 91484(U) (Westchester)	dismissed 3/16/16 (Abdus-Salaam, J.)
People v Pogroski	4th Dept: 128 AD3d 1385 (Onondaga)	denied 3/7/16 (Abdus-Salaam, J.)
People v Pugh	4th Dept: 134 AD3d 1582 (Monroe)	denied 3/28/16 (DiFiore, Ch. J.)
People v Purnell	1st Dept: 134 AD3d 558 (Bronx)	denied 3/11/16 (Pigott, J.)
People v Ramirez	1st Dept: 127 AD3d 624 (NY)	denied 3/14/16 (Abdus-Salaam, J.)
People v Raysor	2d Dept: 130 AD3d 1079 (Suffolk)	denied 3/15/16 (Pigott, J.)
People v Riley	1st Dept: 134 AD3d 444 (NY)	denied 3/1/16 (Fahey, J.)
People v Rios	1st Dept: 122 AD3d 413 (NY)	denied 3/31/16 (Rivera, J.)
People v Rivera	1st Dept: 127 AD3d 622 (NY)	denied 3/14/16 (Abdus-Salaam, J.)
People v Roberson	2d Dept: 133 AD3d 793 (Queens)	denied 3/16/16 (Pigott, J.)
People v Roberts	2d Dept: 128 AD3d 858 (Queens)	denied 3/14/16 (Abdus-Salaam, J.)
People v Rodriguez (Daniel)	2d Dept: 132 AD3d 781 (Kings)	denied 3/2/16 (Rivera, J.)
People v Rodriguez (Louis)	App Div, 1st Dept: 2015 NY Slip Op 93117(U) (NY)	denied 3/18/16 (Fahey, J.)
People v Rodriguez (Maria)	1st Dept: 134 AD3d 512 (Bronx)	denied 3/10/16 (Fahey, J.)
People v Rodriguez (Vanderpool)	1st Dept: 134 AD3d 582 (NY)	denied 3/16/16 (Pigott, J.)
People v Rodriguez (William)	2d Dept: 133 AD3d 619 (Queens)	denied 3/11/16 (Pigott, J.)
People v Rosa	1st Dept: 135 AD3d 434 (Bronx)	denied 3/31/16 (DiFiore, Ch. J.)
People v Rotolo	1st Dept: 134 AD3d 642 (NY)	denied 3/18/16 (Fahey, J.)
People v Sabori	1st Dept: 132 AD3d 436 (NY)	denied 3/2/16 (Rivera, J.)
People v Samuels (Albert)	1st Dept: 135 AD3d 561 (NY)	denied 3/28/16 (Stein, J.)

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People v Samuels (Craig)	2d Dept: 127 AD3d 1001 (Kings)	denied 3/7/16 (Abdus-Salaam, J.)
People v Santana	1st Dept: 135 AD3d 417 (NY)	denied 3/10/16 (Fahey, J.)
People v Santiago	1st Dept: 135 AD3d 412 (Bronx)	denied 3/10/16 (Fahey, J.)
People v Sattan	2d Dept: 129 AD3d 747 (Kings)	denied 3/8/16 (Abdus-Salaam, J.)
People v Saunders	1st Dept: 127 AD3d 587 (NY)	denied 3/14/16 (Abdus-Salaam, J.)
People v Scarver	4th Dept: 134 AD3d 1472 (Erie)	denied 3/31/16 (Stein, J.)
People v SG	3d Dept: 127 AD3d 1473 (Albany)	denied 3/7/16 (Abdus-Salaam, J.)
People v Simcoe	4th Dept: 136 AD3d 1355 (Niagara)	denied 3/31/16 (DiFiore, Ch. J.)
People v Simmons (Devan)	4th Dept: 129 AD3d 1553 (Monroe)	denied 3/8/16 (Abdus-Salaam, J.)
People v Simmons (Jamall)	1st Dept: 135 AD3d 442 (Bronx)	denied 3/15/16 (Stein, J.)
People v Singleton (Derick)	3d Dept: 135 AD3d 1165 (Chemung)	denied 3/31/16 (DiFiore, Ch. J.)
People v Singleton (Willie)	County Ct, 10/30/14 (Ontario)	denied 3/2/16 (Rivera, J.)
People v Slocum	3d Dept: 133 AD3d 972 (Washington)	granted 3/2/16 (Fahey, J.)
People v Smith (Dwight)	1st Dept: 134 AD3d 472 (NY)	denied 3/14/16 (Stein, J.)
People v Smith (Rory)	2d Dept: 131 AD3d 1270 (Kings)	denied 3/2/16 (Rivera, J.)
People v Sosa	1st Dept: 128 AD3d 443 (Bronx)	granted 3/16/16 (Pigott, J.)
People v Stalker	4th Dept: 122 AD3d 1317 (Orleans)	denied 3/2/16 (Rivera, J.)
People v Staton	1st Dept: 135 AD3d 569 (NY)	denied 3/31/16 (DiFiore, Ch. J.)
People v Stokes	4th Dept: 129 AD3d 1556 (Erie)	denied reconsideration 3/16/16 (Pigott, J.)
People v Sunderland	2d Dept: 134 AD3d 1137 (Suffolk)	denied 3/10/16 (Fahey, J.)
People v Sykes	1st Dept: 135 AD3d 535 (NY)	denied 3/31/16 (DiFiore, Ch. J.)
People v Thomas	App Div, 3d Dept: 2015 NY Slip Op 65190(U) (Albany)	denied 3/14/16 (Abdus-Salaam, J.)

People v Torres	1st Dept: 129 AD3d 491 (Bronx)	denied 3/2/16 (Rivera, J.)
People v Umstead	1st Dept: 134 AD3d 522 (NY)	denied 3/16/16 (Pigott, J.)
People v Valverde	3d Dept: 122 AD3d 1074 (Schenectady)	denied 3/2/16 (Rivera, J.)
People v Vann	App Div, 2d Dept: 2015 NY Slip Op 80579(U) (Kings)	denied reconsideration 3/2/16 (Rivera, J.)
People v Vaughn	4th Dept: 134 AD3d 1415 (Onondaga)	denied 3/10/16 (Stein, J.)
People v Vecchio	1st Dept: 135 AD3d 487 (NY)	denied 3/10/16 (Stein, J.)
People v Ward (Jardell)	2d Dept: 126 AD3d 730 (Orange)	denied 3/17/16 (Abdus-Salaam, J.)
People v Ward (Yvette)	1st Dept: 135 AD3d 451 (NY)	denied 3/18/16 (Fahey, J.)
People v Warren	2d Dept: 124 AD3d 699 (Queens)	denied* 3/31/16 (Rivera, J.)
People v Weezorak	4th Dept: 134 AD3d 1590 (Monroe)	denied 3/28/16 (Stein, J.)
People v Welcome	2d Dept: 128 AD3d 990 (Kings)	denied 3/14/16 (Abdus-Salaam, J.)
People v West	2d Dept: 123 AD3d 850 (Putnam)	denied 3/16/16 (Pigott, J.)
People v Williams (Isiah)	4th Dept: 126 AD3d 1426 (Monroe)	denied 3/17/16 (Abdus-Salaam, J.) (Appeal No. 2)
People v Williams (Isiah)	App Div, 4th Dept: 2015 NY Slip Op 66668(U) (Monroe)	denied reconsideration 3/17/16 (Abdus-Salaam, J.)
People v Williams (Kaseem)	1st Dept: 134 AD3d 639 (NY)	denied 3/14/16 (Fahey, J.)
People v Wingate	1st Dept: 134 AD3d 456 (NY)	denied 3/7/16 (Stein, J.)
People v Witcher	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 49 Misc 3d 135(A) (Queens)	denied 3/2/16 (Rivera, J.)
People v Woods	4th Dept: 126 AD3d 1543 (Monroe)	denied 3/7/16 (Abdus-Salaam, J.)
People v Yorro	1st Dept: 136 AD3d 555 (NY)	denied 3/31/16 (DiFiore, Ch. J.)

* Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Gayden* (126 AD3d 1518 [4th Dept 2015]), *lv granted* 26 NY3d 1088 [2015]).

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People v Young (Christopher)	4th Dept: 132 AD3d 1327 (Monroe)	denied reconsideration 3/11/16 (Pigott, J.) (Appeal No. 1)
People v Young (Christopher)	4th Dept: 132 AD3d 1327 (Monroe)	denied reconsideration 3/11/16 (Pigott, J.) (Appeal No. 2)
People v Zeigler	2d Dept: 128 AD3d 737 (Suffolk)	denied 3/7/16 (Abdus-Salaam, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices ***

(March 1, 2016 through March 31, 2016)

People v Doe	4th Dept: 134 AD3d 1503 (Monroe)	granted 3/18/16 (Lindley, J.)
People v Frumusa	4th Dept: 134 AD3d 1503 (Monroe)	granted 3/18/16 (Lindley, J.)
People v Spencer	1st Dept: 135 AD3d 608 (Bronx)	granted 3/3/16 (Tom, J.)

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted February 16, 2016; decided April 5, 2016

Reported below, 2015 NY Slip Op 79506(U), 2015 NY Slip Op 74791(U).

Motion, insofar as it seeks leave to appeal from the June 2015 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved in the Court of Appeals for leave to appeal (26 NY3d 944 [2015]) from the same Appellate Division order from which he currently seeks leave to appeal (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as it seeks leave to appeal from the July 2015 Appellate Division order, dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOSEPH F. BORRELLI, Appellant, v CHRISTINA BORRELLI, Respondent.

Submitted February 16, 2016; decided April 5, 2016

Reported below, 134 AD3d 1467.

* Includes only applications that were granted.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROBERT CASS, Appellant, v STATE OF NEW YORK, Respondent.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 134 AD3d 1207.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ELVIS CASTILLO, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted February 16, 2016; decided April 5, 2016

Reported below, 133 AD3d 1380.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

JOAN COCCIA, Respondent, v THOMAS F. LIOTTI, Appellant.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 129 AD3d 763.

Motion for reargument of motion for leave to appeal denied [*see* 26 NY3d 1096 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

THE DIVERSIFIED GROUP, INC., et al., Appellants, v MARCUM & KLIEGMAN LLP et al., Respondents.

Submitted February 29, 2016; decided April 5, 2016

Reported below, 129 AD3d 552.

Motion to substitute Zaida Rodriguez-Cohen, as personal representative of the estate of Gerald Cohen, as party respondent herein in place of deceased respondent Gerald Cohen granted.

DONALD FELIX, Respondent, v LAW OFFICES OF THOMAS F. LIOTTI, Appellant.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 129 AD3d 773.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 1096 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

JEFFREY GURAL, Appellant, et al., Plaintiff, v FRED DRASNER, Respondent.

Submitted February 1, 2016; decided April 5, 2016

Reported below, 114 AD3d 25.

Motion for leave to appeal dismissed upon the ground that the Appellate Division order does not finally determine the action within the meaning of the Constitution and that the stipulation does not qualify as a final judgment within the meaning of CPLR 5602 (a) (1) (ii) to bring up for review a prior nonfinal Appellate Division order because it was entered into without prejudice.

MARY JANE HAYES, Respondent, v WILLIAM AMES HAYES, Appellant.

Submitted February 29, 2016; decided April 5, 2016

Reported below, 127 AD3d 1021.

Motion for reargument of motion for leave to appeal etc. denied [see 26 NY3d 1081 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

ROSEMARIE A. HERMAN et al., Respondents, v JULIAN MAURICE HERMAN et al., Appellants, et al., Defendants.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 133 AD3d 434.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARILYN HOPEMAN, Appellant, v ERIC A. SEIFF, Respondent.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 2015 NY Slip Op 86570(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 1095 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

JERRY L. JOHNSON, Appellant, v STATE OF NEW YORK, Respondent.

Submitted February 29, 2016; decided April 5, 2016

Reported below, 2015 NY Slip Op 93690(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KANIC REALTY ASSOCIATES, INC., Appellant, v SUFFOLK COUNTY WATER AUTHORITY, Respondent.

Submitted February 8, 2016; decided April 5, 2016

Reported below, 130 AD3d 876.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ELIZABETH MARIE BARNSON KARNAZES, a Disbarred Attorney.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 133 AD3d 1027.

On the Court's own motion, appeal, insofar as taken from the Appellate Division order denying reconsideration, dismissed, without costs, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for poor person relief dismissed as academic.

DONETTE KINGSTON, Appellant, v NEW YORK CITY POLICE DEPARTMENT, Respondent.

Submitted February 29, 2016; decided April 5, 2016

Reported below, 2014 NY Slip Op 75277(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LAW OFFICES OF THOMAS F. LIOTTI et al., Appellants, v DONALD FELIX et al., Respondents.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 129 AD3d 783.

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 1097 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

DENNIS LEE, Also Known as LEE MAN FOR DENNIS, Respondent, v CHUN KA LUK, Appellant.

Submitted February 1, 2016; decided April 5, 2016

Reported below, 132 AD3d 515.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

TEDDY MOORE, Appellant, v FRANK GUERRA, Defendant, and CITY OF NEW YORK et al., Respondents.

Submitted February 8, 2016; decided April 5, 2016

Reported below, 2016 NY Slip Op 62113(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CHAUDRY NOOR, Respondent, v CITY OF NEW YORK et al., Appellants.

Submitted February 16, 2016; decided April 5, 2016

Reported below, 130 AD3d 536.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL AZIZ ZARIF SHABAZZ, Also Known as MICHAEL HURLEY, Appellant, v JEROME J. RICHARDS, Acting Judge of Franklin County Court, et al., Respondents.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 2015 NY Slip Op 70507(U), 2012 NY Slip Op 66089(U).

Motion, insofar as it seeks leave to appeal from the February 2012 Appellate Division order, dismissed upon the ground that it does not lie, appellant having previously moved for leave to appeal to the Court of Appeals (20 NY3d 983 [2012]) from the same Appellate Division order from which leave to appeal is currently sought (*see Selinger v Selinger*, 90 NY2d 842 [1997]); motion, insofar as it seeks leave to appeal from the portion of the April 2015 Appellate Division order relating to this civil proceeding, dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

PNC BANK, NATIONAL ASSOCIATION, Respondent, v AARON KLEIN, Appellant, et al., Defendants.

Submitted February 1, 2016; decided April 5, 2016

Reported below, 125 AD3d 953.

Motion for reargument of motion for leave to appeal denied [*see* 26 NY3d 1078 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of RITE AID CORPORATION, Appellant, v STEPHEN HAYWOOD, Assessor, et al., Respondents. (Proceeding Nos. 1 and 2.)

Submitted February 22, 2016; decided April 5, 2016

Reported below, 130 AD3d 1510.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 26 NY3d 915 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of RITE AID CORPORATION, Appellant, v TERIE HUSEBY, Assessor, et al., Respondents. (Appeal No. 2.)

Submitted February 22, 2016; decided April 5, 2016

Reported below, 130 AD3d 1518.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 26 NY3d 916 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

SFR HOLDINGS LTD. et al., Appellants, v JOHN RICE et al., Respondents.

Submitted February 16, 2016; decided April 5, 2016

Reported below, 132 AD3d 424.

Motion, insofar as it seeks leave to appeal as against respondents John Rice; Joseph Ingrassia; Capstone Capital Management, Inc.; Capstone Cayman Special Purpose Fund, LP; and Capstone Special Purpose Fund, LP, dismissed upon the ground that as to those respondents the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of MAXINE TODD, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION OFFICE OF LEGAL AFFAIRS, CLAIMS DIVISION, Respondent.

Submitted February 22, 2016; decided April 5, 2016

Reported below, 129 AD3d 433.

Motion for reargument denied [*see* 26 NY3d 1102 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of the Estate of STANLEY A. WAGNER, Deceased.
JAAN AARISMAA, IV, Appellant; JOHN L. WAGNER, as Execu-
tor of STANLEY A. WAGNER, Deceased, Respondent.

Submitted February 16, 2016; decided April 5, 2016

Reported below, 2015 NY Slip Op 88321(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of the Estate of STANLEY A. WAGNER, Deceased.
JAAN AARISMAA, IV, Appellant; JOHN L. WAGNER, as Execu-
tor of STANLEY A. WAGNER, Deceased, Respondent.

Submitted March 7, 2016; decided April 5, 2016

Reported below, 2015 NY Slip Op 91881(U).

Motion by appellant for affirmative relief dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3). Cross motion by respondent for the imposition of sanctions denied.

WOMEN'S INTERART CENTER, INC., Appellant, v NEW YORK CITY
ECONOMIC DEVELOPMENT CORPORATION et al., Respondents.

WOMEN'S INTERART CENTER, INC., Appellant, v CLINTON HOUS-
ING DEVELOPMENT FUND CORP., Respondent.

Submitted February 8, 2016; decided April 5, 2016

Reported below, 132 AD3d 442.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). The prior motion for leave to appeal made at the Appellate Division was untimely.

Judges RIVERA and ABDUS-SALAAM taking no part.

[50 NE3d 913, 31 NYS3d 446]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
RONNELL JORDAN, Appellant.

Decided March 29, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 11, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Joel M. Goldberg, J.), which had convicted defendant, upon a jury verdict, of attempted assault in the first degree, attempted robbery in the first degree, and criminal possession of a weapon in the second degree.

People v Jordan, 125 AD3d 787, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Discharge of Prospective Jurors Based on Hardship

Defendant failed to preserve for appellate review his contention that the trial court discharged prospective jurors based on hardship without conducting a sufficient inquiry.

APPEARANCES OF COUNSEL

White & Case LLP, New York City (*Kevin C. Adam*, *James Trainor* and *Louis O'Neill* of counsel), and *Lynn W.L. Fahey, Appellate Advocates*, New York City, for appellant.

Kenneth P. Thompson, District Attorney, Brooklyn (*Amy Appelbaum* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant failed to preserve his contention that the trial court discharged prospective jurors based on hardship without conducting a sufficient inquiry (*see People v King*, 27 NY3d 147 [2016] [decided herewith]). Defendant's remaining contentions are without merit.

RIVERA, J. (dissenting). For the reasons stated in my dissenting opinion in *People v King* (27 NY3d 147 [2016] [decided herewith]), I would reverse the order of the Appellate Division

on the sole ground that the judge's jury selection process denied defendant his right to a jury trial.

Judges PIGOTT, ABDUS-SALAAM, STEIN and FAHEY concur; Judge RIVERA dissents in an opinion; Chief Judge DiFIORE and Judge GARCIA taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[50 NE3d 922, 31 NYS3d 454]

LUIS CARRION, Appellant, v JOHN FAULKNER, Individually and Doing Business as FALCON MEWS ASSOCIATES, et al., Respondents.

Decided April 28, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 9, 2015. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Kenneth L. Thompson, J.; op 2013 NY Slip Op 34041[U] [2013]), which had granted defendants' motion for summary judgment dismissing the complaint.

In an action to recover for personal injuries sustained when plaintiff allegedly slipped on a marble step tread as he descended the stairs in defendants' building, the Appellate Division determined that the worn marble edge of the step was not an actionable defect.

Carrion v Faulkner, 129 AD3d 456, reversed.

HEADNOTE

Negligence — Maintenance of Premises — Slip and Fall on Worn Marble Step Tread

In an action to recover for personal injuries sustained when plaintiff allegedly slipped on a marble step tread as he descended the stairs in defendants' building, an order of the Appellate Division, which granted defendants' motion for summary judgment dismissing the complaint, was reversed. On the record, material questions of fact existed and, therefore, summary judgment for defendants was inappropriate.

APPEARANCES OF COUNSEL

Arnold E. DiJoseph, P.C., New York City (*Arnold E. DiJoseph, III*, of counsel), for appellant.

Gannon, Rosenfarb & Drossman, New York City (*Lisa L. Gokulsingh* of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and defendants' motion for summary judgment denied. On this record, material questions of fact exist and, therefore, summary judgment for defendants was inappropriate.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[51 NE3d 554, 32 NYS3d 43]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANTHONY ROMERO, Also Known as ROBERT ROSA, Appellant.

Decided April 28, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 31, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (James P. Griffin, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree and criminal possession of a weapon in the third degree. The appeal to the Appellate Division brought up for review the denial by that Supreme Court, after a hearing, of those branches of defendant's omnibus motion which were to suppress identification testimony and a statement he made to a law enforcement official.

People v Romero, 123 AD3d 1147, affirmed.

HEADNOTE**Crimes — Harmless and Prejudicial Error — Suppression of Statement**

The trial court's error in denying suppression of defendant's pre-Miranda statement, made while in custody, in response to a detective's question

regarding whether he would like to make a statement was harmless, where there was overwhelming evidence against defendant and no reasonable possibility that his statement contributed to the verdict. Additionally, there was record support for the court's decision to deny defendant's motion to suppress the showup identification, and that decision was beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, Appellate Advocates, New York City (Patricia Pazner of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (John M. Castellano of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Defendant's pre-*Miranda* statement, while in custody, in response to a detective's question regarding whether he would like to make a statement should have been suppressed. However, the error in failing to suppress the statement was harmless beyond a reasonable doubt in light of the overwhelming evidence against defendant and there being no reasonable possibility that his statement contributed to the verdict (*see People v Rivera*, 57 NY2d 453, 456 [1982]). Additionally, there is record support for Supreme Court's decision to deny defendant's motion to suppress the showup identification (*see People v Clark*, 85 NY2d 886 [1995]), and that decision is beyond our further review.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, in a memorandum.

[51 NE3d 553, 32 NYS3d 42]

KAMEL R. SADEK, Respondent, v JENKINS A. WESLEY et al., Appellants.

Argued March 23, 2016; decided April 28, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order

of that Court, entered April 15, 2014. The Appellate Division (1) reversed, on the law and the facts and in the exercise of discretion, an order of the Supreme Court, New York County (Eileen A. Rakower, J.), which had precluded the testimony of plaintiff's neurological expert and directed that judgment be entered dismissing the complaint; and (2) restored the matter to the trial calendar. The appeal to the Appellate Division brought up for review an earlier ruling of that Supreme Court, which had precluded the testimony of plaintiff's first-proposed neurological expert. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of Supreme Court, properly made?"

Sadek v Wesley, 117 AD3d 193, affirmed.

HEADNOTE

Witnesses — Expert Witness — Improper Preclusion of Expert Testimony

The Appellate Division did not abuse its discretion as a matter of law in refusing to preclude plaintiff's proposed expert neurological testimony with respect to what was alleged to have been a neurological injury inasmuch as the subject matter of that testimony was within the competence of plaintiff's experts and was supported by medical literature. Any defects in the opinions of plaintiff's experts or the foundation on which those opinions were based went to the weight to be accorded that evidence by the trier of fact, not to its admissibility in the first instance.

APPEARANCES OF COUNSEL

Landman Corsi Ballaine & Ford P.C., New York City (*Gerald T. Ford*, *Diane J. Ruccia* and *Natalie Garcia* of counsel), for appellants.

Robert A. Skoblar, Hackensack, New Jersey, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

In view of the Appellate Division's substitution of its discretion for that of the trial court, our review is limited (*see Brady v Ottaway Newspapers*, 63 NY2d 1031, 1032 [1984]; *Matter of Von Bulow*, 63 NY2d 221, 225 [1984]; *see also Andon v 302-304 Mott St. Assoc.*, 94 NY2d 740, 745 [2000]). That narrow scope of review and the unique facts present here drive our determination of this case. We conclude that the Appellate Division did not abuse its discretion as a matter of law in refusing to preclude plaintiff's proposed expert neurological testimony

with respect to what is alleged to have been a neurological injury inasmuch as the subject matter of that testimony is within the competence of plaintiff's experts and is supported by medical literature.* As the Appellate Division noted, any defects in the opinions of plaintiff's experts or the foundation on which those opinions are based should go to the weight to be accorded that evidence by the trier of fact, not to its admissibility in the first instance.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[50 NE3d 922, 31 NYS3d 454]

In the Matter of ALAN M. SIMON.

Decided April 28, 2016

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion, pursuant to Judiciary Law § 44 (8), of whether the Honorable Alan M. Simon should be suspended from the offices of Justice of the Spring Valley Village Court, Rockland County, and the Ramapo Town Court, Rockland County, and the office of Acting Justice of the Hillburn Village Court, Rockland County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals, on its own motion, pursuant to Judiciary Law § 44 (8), suspended a Village and Town Court Justice and Acting Village Court Justice from office, with pay, effective immediately, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

Kantor, Davidoff, Mandelker, Twomey, Gallanty & Olenick, P.C., New York City (*Lawrence A. Mandelker* of counsel), for Hon. Alan M. Simon.

* We agree that this case is not one to which *Frye v United States* (293 F 1013 [DC Cir 1923]) applies, and we have no reason to address the Appellate Division's *Frye* discussion.

Robert H. Tembeckjian, New York City, for New York State Commission on Judicial Conduct.

OPINION OF THE COURT

On the Court's own motion, it is determined that the Honorable Alan M. Simon is suspended, with pay, effective immediately, from the offices of Justice of the Spring Valley Village Court, Rockland County, and the Ramapo Town Court, Rockland County, and the office of Acting Justice of the Hillburn Village Court, Rockland County, pursuant to Judiciary Law § 44 (8), pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[50 NE3d 923, 31 NYS3d 455]

In the Matter of STEAM PIPE EXPLOSION AT 41ST STREET AND LEXINGTON AVENUE.

CARRIE TASSA, Plaintiff, v CONSOLIDATED EDISON INC. et al., Respondents/Third-Party Plaintiffs-Respondents, and TEAM INDUSTRIAL SERVICES, INC., Appellant/Third-Party Defendant-Appellant, et al., Defendant. (And Other Actions.)

Decided April 28, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 21, 2015. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Barbara Jaffe, J.; op 2013 NY Slip Op 33072[U] [2013]), which had (1) granted the motion of defendants/third-party plaintiffs Consolidated Edison, Inc. and Consolidated Edison Company of New York, Inc. (collectively, Con Ed) for leave to reargue and/or renew their motion to compel defendant/third-party defendant Team Industrial Services, Inc. to produce its file related to another action to the extent of granting leave to renew; (2) upon renewal, adhered to that court's prior order, which had denied the motion; and (3) denied Con Ed's motion for an order imposing spoliation sanctions. The modification consisted of granting Con Ed's motion to

compel. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: “Was the order of Supreme Court, as modified, on the law, and otherwise affirmed, by this Court, properly made?”

In an action arising out of the explosion of a steam pipe, the Appellate Division concluded that the motion court applied too harsh a standard in determining that documents concerning earlier litigation arising from a fire at a refinery for which third-party defendant’s excess application of leak sealant was a contributing factor, as it was in the steam pipe explosion, were not discoverable. The Appellate Division held that the precipitating causes and circumstances surrounding both incidents were sufficiently similar so as to warrant discovery concerning the prior incident, and that Con Ed was therefore entitled to “all matter material and necessary” to its claims and defenses.

Matter of Steam Pipe Explosion at 41st St. & Lexington Ave., 127 AD3d 554, affirmed.

HEADNOTE

Disclosure — Discovery and Inspection — Documents Concerning Earlier Litigation — Similar Precipitating Causes and Circumstances

The Appellate Division did not abuse its discretion in granting third-party plaintiffs’ motion to compel third-party defendant to produce its file related to another action.

APPEARANCES OF COUNSEL

Shaub, Ahmuty, Citrin & Spratt, LLP, New York City (*Juan C. Gonzalez* and *Timothy R. Capowski* of counsel), for appellant.

Davis Polk & Wardwell LLP, New York City (*Frances E. Bivens* of counsel), *Douglas J. McKay*, New York City, and *Clark Gagliardi & Miller, P.C.*, White Plains, for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. The Appellate Division did not abuse its discretion in granting the motion to compel Team Industrial Services, Inc. to produce its file related to another action.

Concur: Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA. Taking no part: Chief Judge DiFiore.

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C.C.,
Respondent. R. THOMAS RANKIN, Esq., Attorney for the
Child, Appellant.

Submitted April 11, 2016; decided April 28, 2016

Reported below, 129 AD3d 1578.

Motion by the Association of the Bar of the City of New York
et al. for leave to appear amici curiae on the appeal herein
granted only to the extent that the proposed brief is accepted
as filed.

Judge FAHEY taking no part.

ELLEN CAPERS, Plaintiff, v PARKSHORE HEALTHCARE, LLC, et
al., Respondents. LOLA CAPERS, Nonparty Appellant.

Decided April 28, 2016

Reported below, 2014 NY Slip Op 86205(U).

Appeal, insofar as taken from the March 2010 Supreme
Court order, transferred, without costs, by the Court of Ap-
peals, sua sponte, to the Appellate Division, Second Depart-
ment, upon the ground that a direct appeal does not lie when
questions other than the constitutional validity of a statutory
provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b];
CPLR 5601 [b] [2]). Appeal, insofar as taken from the October
2014 Appellate Division order, dismissed, without costs, by the
Court of Appeals, sua sponte, upon the ground that appellant
is not a party aggrieved (*see* CPLR 5511).

In the Matter of ESTRELLITA A., Respondent, v JENNIFER L.D.,
Appellant.

Submitted April 11, 2016; decided April 28, 2016

Reported below, 123 AD3d 1023.

Motion by the Association of the Bar of the City of New York
et al. for leave to appear amici curiae on the appeal herein
granted only to the extent that the proposed brief is accepted
as filed.

Judge FAHEY taking no part.

SHEILA FREED, Respondent, v YOCHAI KAPLA, Appellant.

Submitted February 22, 2016; decided April 28, 2016

Reported below, 129 AD3d 615.

Motion for reargument of motion for leave to appeal etc. denied [*see* 26 NY3d 1097 (2016)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TED ANTOINE, Appellant.

Submitted April 11, 2016; decided April 28, 2016

Reported below, 131 AD3d 1178.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES L. CARR, Appellant.

Submitted April 25, 2016; decided April 28, 2016

Reported below, 128 AD3d 1402.

Motion for assignment of counsel granted and Evan M. Lumley, Esq., Cornell Mansion, 484 Delaware Avenue, Buffalo, New York 14202 assigned as counsel to the appellant on the appeal herein.

Judge FAHEY taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK NONNI, Appellant.

Submitted April 25, 2016; decided April 28, 2016

Reported below, 135 AD3d 52.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

S.L., Appellant, v J.R., Respondent.

Submitted April 18, 2016; decided April 28, 2016

Reported below, 126 AD3d 682.

Motion by appellant to strike, deemed a motion to strike the supplemental appendix and related references to the documents contained therein in the briefs of the respondent and the Attorney for the Child, granted and said material deemed stricken.

Chief Judge DiFIORE taking no part.

In the Matter of REGINALD SWINTON, Appellant, v DORA SCHRIRO, Respondent.

Submitted February 29, 2016; decided April 28, 2016

Reported below, 2015 NY Slip Op 93991(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ANTHONY TURTURRO, an Infant, by His Mother and Natural Guardian, ELIDA TURTURRO, et al., Respondents, v CITY OF NEW YORK, Appellant, and LOUIS PASCARELLA et al., Respondents.

Submitted April 25, 2016; decided April 28, 2016

Reported below, 127 AD3d 732.

Motion by County of Suffolk for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

XIU JIAN SUN, Appellant, v WUHUA JING, M.D., Ph.D., et al., Respondents.

Decided April 28, 2016

Reported below, 136 AD3d 613.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(April 1, 2016 through April 30, 2016)

People v Francis	2d Dept: 132 AD3d 893	4/25/16
People v White	4th Dept: 129 AD3d 1642	4/14/16

APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2016 through April 30, 2016)

Dawley, Matter of, v Whitetail 414, LLC	4th Dept: 130 AD3d 1570	4/12/16
Rollins v Fencers Club, Inc.	1st Dept: 128 AD3d 401	4/25/16
Sheridan v Sheridan	4th Dept: 129 AD3d 1567	4/5/16

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2016 through April 30, 2016)

People v Abdullah	3d Dept: 133 AD3d 925 (Broome)	denied 4/1/16 (Rivera, J.)
People v Ackerman	4th Dept: 133 AD3d 1196 (Wyoming)	denied reconsideration 4/8/16 (Stein, J.)
People v Acosta (Anthony)	2d Dept: 124 AD3d 907 (Queens)	denied 4/5/16 (Rivera, J.)
People v Acosta (Luis)	4th Dept: 134 AD3d 1525 (Monroe)	denied 4/5/16 (Pigott, J.)
People v Acosta (Raymond)	1st Dept: 132 AD3d 466 (Bronx)	denied 4/11/16 (Rivera, J.)
People v Adams	3d Dept: 135 AD3d 1154 (Franklin)	denied 4/22/16 (Fahey, J.)
People v Agosto	1st Dept: 134 AD3d 643 (Bronx)	denied 4/14/16 (Rivera, J.)
People v Albert	4th Dept: 129 AD3d 1652 (Onondaga)	denied 4/12/16 (Abdus-Salaam, J.)
People v Alexander	2d Dept: 133 AD3d 868 (Queens)	denied 4/4/16 (Stein, J.)
People v Allen	1st Dept: 134 AD3d 633 (NY)	denied 4/6/16 (Fahey, J.)

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People v Ambroise	2d Dept: 133 AD3d 770 (Kings)	denied 4/22/16 (Abdus-Salaam, J.)
People v Anderson	4th Dept: 120 AD3d 1549 (Erie)	denied reconsideration 4/12/16 (Abdus-Salaam, J.)
People v Antonucci	App Div, 4th Dept, 12/18/15 (Oneida)	dismissed 4/13/16 (Rivera, J.)
People v Appolon	1st Dept: 121 AD3d 596 (NY)	denied 4/4/16 (Rivera, J.)
People v Arroyo	2d Dept: 125 AD3d 987 (Westchester)	denied 4/5/16 (Rivera, J.)
People v Austin	1st Dept: 134 AD3d 583 (NY)	denied 4/14/16 (Rivera, J.)
People v Authers	1st Dept: 134 AD3d 526 (NY)	denied 4/1/16 (Stein, J.)
People v Azam	1st Dept: 135 AD3d 654 (NY)	denied 4/8/16 (Fahey, J.)
People v Backus	4th Dept: 129 AD3d 1621 (Onondaga)	denied 4/15/16 (Abdus-Salaam, J.)
People v Bailey	2d Dept: 127 AD3d 1222 (Kings)	denied 4/5/16 (Rivera, J.)
People v Baker	2d Dept: 135 AD3d 868 (Queens)	denied 4/28/16 (DiFiore, Ch. J.)
People v Balbuena	App Div, 3d Dept: 2015 NY Slip Op 95158(U) (Ulster)	denied 4/6/16 (Pigott, J.)
People v Baly	App Term, 1st Dept: 50 Misc 3d 130(A) (NY)	denied 4/6/16 (Fahey, J.)
People v Banks	1st Dept: 129 AD3d 401 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Baptista	4th Dept: 130 AD3d 1541 (Onondaga)	denied 4/15/16 (Abdus-Salaam, J.)
People v Baptiste	2d Dept: 131 AD3d 1178 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Barksdale (Reginald)	2d Dept: 131 AD3d 704 (Kings)	denied 4/7/16 (Abdus-Salaam, J.)
People v Barksdale (Roger)	1st Dept: 132 AD3d 602 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Barnaby	1st Dept: 121 AD3d 596 (NY)	denied 4/4/16 (Rivera, J.)
People v Barnhill	2d Dept: 130 AD3d 839 (Queens)	denied 4/12/16 (Abdus-Salaam, J.)
People v Bastardo	2d Dept: 127 AD3d 776 (Queens)	denied 4/5/16 (Rivera, J.)

People v Baugh	2d Dept: 127 AD3d 1223 (Queens)	denied 4/12/16 (Abdus-Salaam, J.)
People v Bautista	1st Dept: 132 AD3d 523 (NY)	granted 4/5/16 (Pigott, J.)
People v Bazil	App Term, 1st Dept: 49 Misc 3d 143(A) (NY)	denied 4/5/16 (Rivera, J.)
People v Beatty	1st Dept: 129 AD3d 495 (Bronx)	denied 4/12/16 (Abdus-Salaam, J.)
People v Beckingham	3d Dept: 134 AD3d 1255 (Otsego)	denied 4/5/16 (Pigott, J.)
People v Beekman	3d Dept: 134 AD3d 1355 (Schenectady)	denied 4/5/16 (Pigott, J.)
People v Bethea (Terell)	3d Dept: 133 AD3d 1033 (Schenectady)	denied 4/22/16 (Abdus-Salaam, J.)
People v Bethea (Terell)	App Div, 3d Dept: 2015 NY Slip Op 94066(U) (Schenectady)	dismissed 4/12/16 (Pigott, J.)
People v Bey (Kasiin)	2d Dept: 129 AD3d 997 (Suffolk)	denied 4/12/16 (Abdus-Salaam, J.)
People v Bey (Kasiin)	2d Dept: 134 AD3d 1137 (Suffolk)	denied 4/5/16 (Pigott, J.)
People v Big Pun	1st Dept: 132 AD3d 466 (Bronx)	denied 4/11/16 (Rivera, J.)
People v Bizardi	4th Dept: 130 AD3d 1492 (Cayuga)	denied 4/15/16 (Abdus-Salaam, J.)
People v Blalark	3d Dept: 126 AD3d 1124 (Albany)	denied 4/5/16 (Rivera, J.)
People v Blocker	4th Dept: 132 AD3d 1287 (Monroe)	denied 4/22/16 (Abdus-Salaam, J.)
People v Blount	3d Dept: 129 AD3d 1303 (Albany)	denied 4/5/16 (Abdus-Salaam, J.)
People v Bodie	2d Dept: 131 AD3d 481 (Westchester)	denied 4/15/16 (Abdus-Salaam, J.)
People v Boney	2d Dept: 130 AD3d 1057 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Bonton	2d Dept: 127 AD3d 1224 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Bostic	1st Dept: 135 AD3d 661 (NY)	denied 4/6/16 (Fahey, J.)
People v Boykin	1st Dept: 135 AD3d 603 (NY)	denied 4/6/16 (Fahey, J.)
People v Brandon	3d Dept: 133 AD3d 901 (Clinton)	denied 4/1/16 (Rivera, J.)

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People v Brasmeister	3d Dept: 136 AD3d 1122 (Montgomery)	denied 4/15/16 (Fahey, J.)
People v Briggs	4th Dept: 134 AD3d 1414 (Onondaga)	denied 4/5/16 (Pigott, J.)
People v Brown (Allen)	1st Dept: 135 AD3d 495 (NY)	denied 4/6/16 (Fahey, J.)
People v Brown (David)	1st Dept: 134 AD3d 657 (NY)	denied 4/14/16 (Rivera, J.)
People v Brown (Duane)	2d Dept: 132 AD3d 891 (Queens)	denied reconsideration 4/25/16 (Stein, J.)
People v Brown (Frederick)	3d Dept: 128 AD3d 1183 (Cortland)	denied 4/5/16 (Abdus-Salaam, J.)
People v Brown (Henry)	1st Dept: 134 AD3d 554 (NY)	denied 4/4/16 (Stein, J.)
People v Brown (Herbie)	1st Dept: 135 AD3d 605 (NY)	denied 4/14/16 (Pigott, J.)
People v Brown (Lamar)	4th Dept: 124 AD3d 1341 (Erie)	denied 4/5/16 (Rivera, J.)
People v Brown (Leon)	1st Dept: 135 AD3d 626 (NY)	denied 4/28/16 (Rivera, J.)
People v Brown (Raymond)	1st Dept: 134 AD3d 637 (NY)	denied 4/5/16 (Pigott, J.)
People v Brown (Sean)	1st Dept: 135 AD3d 626 (NY)	denied 4/28/16 (Rivera, J.)
People v Brown (Taye)	4th Dept: 125 AD3d 1550 (Monroe)	denied 4/4/16 (Rivera, J.)
People v Brown (Thomas)	3d Dept: 123 AD3d 1298 (Broome)	denied reconsideration 4/5/16 (Abdus-Salaam, J.)
People v Bruno	2d Dept: 127 AD3d 986 (Kings)	denied 4/6/16 (Fahey, J.)
People v Bryant	App Div, 1st Dept: 2015 NY Slip Op 88710(U) (Bronx)	denied 4/1/16 (Rivera, J.)
People v Burgess	1st Dept: 133 AD3d 527 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Burgos	1st Dept: 121 AD3d 596 (NY)	denied 4/4/16 (Rivera, J.)
People v Burley	4th Dept: 136 AD3d 1404 (Niagara)	denied 4/26/16 (DiFiore, Ch. J.)
People v Burnice	4th Dept: 129 AD3d 1498 (Monroe)	denied 4/12/16 (Abdus-Salaam, J.)
People v Burno	2d Dept: 130 AD3d 747 (Nassau)	denied 4/15/16 (Abdus-Salaam, J.)
People v Burns	1st Dept: 133 AD3d 443 (NY)	denied 4/5/16 (Abdus-Salaam, J.)

People v Burritt	3d Dept: 127 AD3d 1433 (Albany)	denied 4/5/16 (Rivera, J.)
People v Burrus	1st Dept: 136 AD3d 484 (NY)	denied 4/18/16 (Pigott, J.)
People v Bushuyeva	2d Dept: 130 AD3d 840 (Queens)	denied 4/15/16 (Abdus-Salaam, J.)
People v Buxo	1st Dept: 136 AD3d 470 (NY)	denied 4/18/16 (Pigott, J.)
People v Caban	2d Dept: 126 AD3d 808 (Westchester)	denied 4/5/16 (Rivera, J.)
People v Cabrera	1st Dept: 135 AD3d 412 (NY)	denied 4/14/16 (Rivera, J.)
People v Canela	1st Dept: 136 AD3d 444 (Bronx)	denied 4/12/16 (Pigott, J.)
People v Canjura	App Term, 2d Dept, 9th & 10th Jud Dists: 46 Misc 3d 66 (Rockland)	denied 4/4/16 (Rivera, J.)
People v Capers	3d Dept: 129 AD3d 1313 (Schenectady)	denied 4/7/16 (Abdus-Salaam, J.)
People v Carbonaro	4th Dept: 134 AD3d 1543 (Monroe)	denied 4/26/16 (Stein, J.)
People v Carney	4th Dept: 129 AD3d 1511 (Erie)	denied 4/12/16 (Abdus-Salaam, J.)
People v Carrion	2d Dept: 133 AD3d 610 (Suffolk)	denied 4/22/16 (Abdus-Salaam, J.)
People v Carroll	1st Dept: 134 AD3d 584 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Carter (Antoine)	1st Dept: 134 AD3d 447 (NY)	denied 4/11/16 (Rivera, J.)
People v Carter (Steven)	1st Dept: 128 AD3d 580 (NY)	denied 4/5/16 (Rivera, J.)
People v Casabuena	1st Dept: 136 AD3d 508 (Bronx)	denied 4/18/16 (Pigott, J.)
People v Cassala	3d Dept: 130 AD3d 1252 (Albany)	denied 4/15/16 (Abdus-Salaam, J.)
People v Cavener	1st Dept: 135 AD3d 602 (NY)	denied 4/5/16 (Pigott, J.)
People v Ceara	2d Dept: 133 AD3d 873 (Westchester)	denied 4/8/16 (Pigott, J.)
People v Chance	2d Dept: 130 AD3d 840 (Westchester)	denied 4/7/16 (Abdus-Salaam, J.)
People v Cheolsoo Ko	1st Dept: 128 AD3d 586 (NY)	denied 4/12/16 (Abdus-Salaam, J.)

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People v Chicherchia	App Div, 4th Dept: 2012 NY Slip Op 76601(U) (Oneida)	denied 4/12/16 (Abdus-Salaam, J.)
People v Clapper	3d Dept: 133 AD3d 1037 (Schoharie)	denied 4/11/16 (Rivera, J.)
People v Clark	3d Dept: 135 AD3d 1239 (Albany)	denied 4/6/16 (Fahey, J.)
People v Claudio	App Term, 1st Dept: 47 Misc 3d 155(A) (NY)	denied 4/12/16 (Abdus-Salaam, J.)
People v Coker	4th Dept: 133 AD3d 1218 (Onondaga)	denied 4/5/16 (Rivera, J.)
People v Cole	1st Dept: 128 AD3d 521 (Bronx)	denied 4/12/16 (Abdus-Salaam, J.)
People v Collins	2d Dept: 135 AD3d 783 (Kings)	denied 4/4/16 (Fahey, J.)
People v Colon	1st Dept: 133 AD3d 532 (Bronx)	denied 4/14/16 (Rivera, J.)
People v Coon	County Ct, 12/18/15 (Cortland)	denied 4/5/16 (Pigott, J.)
People v Crane	2d Dept: 129 AD3d 741 (Nassau)	denied 4/12/16 (Abdus-Salaam, J.)
People v Crouch	2d Dept: 128 AD3d 849 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Cruz	2d Dept: 127 AD3d 987 (Orange)	denied 4/7/16 (Abdus-Salaam, J.)
People v Cuenea	1st Dept: 130 AD3d 412 (NY)	denied 4/12/16 (Abdus-Salaam, J.)
People v Cummings	4th Dept: 134 AD3d 1566 (Steuben)	denied 4/11/16 (Rivera, J.)
People v D	4th Dept: 133 AD3d 1272 (Oneida)	denied 4/5/16 (Abdus-Salaam, J.) (Appeal No. 2)
People v Daniels (Anthony)	App Div, 2d Dept: 2015 NY Slip Op 93996(U) (Kings)	dismissed 4/6/16 (Fahey, J.)
People v Daniels (Terrance)	2d Dept: 131 AD3d 1179 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Dashnaw	App Div, 3d Dept: 2015 NY Slip Op 94591(U) (Clinton)	denied 4/18/16 (Pigott, J.)
People v Davidson	2d Dept: 130 AD3d 840 (Nassau)	denied 4/15/16 (Abdus-Salaam, J.)
People v Davis (Bryan)	1st Dept: 137 AD3d 450 (Bronx)	denied 4/29/16 (DiFiore, Ch. J.)
People v Davis (Daunell)	1st Dept: 135 AD3d 603 (NY)	denied 4/6/16 (Fahey, J.)

People v Davis (Jace)	3d Dept: 128 AD3d 1269 (Broome)	denied 4/12/16 (Abdus-Salaam, J.)
People v Davis (Ramal)	App Div, 2d Dept: 2015 NY Slip Op 94206(U) (Kings)	dismissed 4/8/16 (Fahey, J.)
People v DeCenzo	3d Dept: 132 AD3d 1160 (Albany)	denied 4/29/16 (DiFiore, Ch. J.)
People v DeFreitas	App Div, 3d Dept: 2015 NY Slip Op 90504(U) (Schoharie)	denied 4/5/16 (Rivera, J.)
People v DeJesus	2d Dept: 135 AD3d 872 (Queens)	denied 4/8/16 (Fahey, J.)
People v Delima	1st Dept: 127 AD3d 600 (NY)	denied reconsideration 4/6/16 (Pigott, J.)
People v Derenoncourt	2d Dept: 135 AD3d 953 (Queens)	denied 4/26/16 (Stein, J.)
People v Diaz	1st Dept: 135 AD3d 504 (Bronx)	denied 4/6/16 (Fahey, J.)
People v Dilley	1st Dept: 136 AD3d 555 (NY)	denied 4/29/16 (DiFiore, Ch. J.)
People v Dollison	2d Dept: 135 AD3d 784 (Nassau)	denied 4/8/16 (Pigott, J.)
People v Drame	1st Dept: 135 AD3d 435 (Bronx)	denied 4/8/16 (Pigott, J.)
People v Driscoll	3d Dept: 131 AD3d 766 (Cortland)	denied 4/1/16 (Rivera, J.)
People v Dunaway	2d Dept: 134 AD3d 952 (Kings)	denied 4/6/16 (Fahey, J.)
People v Ebrahim	4th Dept: 133 AD3d 1272 (Wayne)	denied 4/11/16 (Rivera, J.)
People v Enright	4th Dept: 122 AD3d 1316 (Monroe)	denied 4/4/16 (Rivera, J.)
People v Escoto	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 49 Misc 3d 131(A) (Queens)	denied 4/22/16 (Abdus-Salaam, J.)
People v Estremera	1st Dept: 134 AD3d 655 (NY)	granted 4/6/16 (Fahey, J.)
People v Fagan	1st Dept: 134 AD3d 411 (Bronx)	granted 4/12/16 (Pigott, J.)
People v Festus	2d Dept: 133 AD3d 876 (Suffolk)	denied 4/6/16 (Pigott, J.)
People v Filion	3d Dept: 134 AD3d 1244 (Clinton)	denied 4/11/16 (Rivera, J.)
People v Forteau	1st Dept: 134 AD3d 570 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Fowler (Dwight)	4th Dept: 134 AD3d 1529 (Monroe)	denied 4/14/16 (Rivera, J.)
People v Fowler (Steven)	4th Dept: 136 AD3d 1395 (Erie)	denied 4/29/16 (DiFiore, Ch. J.)
People v Foy	1st Dept: 136 AD3d 422 (NY)	denied 4/14/16 (Rivera, J.)

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People v Fulford	2d Dept: 130 AD3d 942 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Fullen	4th Dept: 133 AD3d 1235 (Monroe)	denied 4/1/16 (Rivera, J.)
People v Fulton	4th Dept: 133 AD3d 1194 (Monroe)	denied reconsideration 4/8/16 (Stein, J.)
People v Gamble	3d Dept: 135 AD3d 1078 (Schenectady)	denied 4/4/16 (Fahey, J.)
People v Garcia	3d Dept: 131 AD3d 732 (Ulster)	denied 4/15/16 (Abdus-Salaam, J.)
People v Garner	4th Dept: 136 AD3d 1374 (Monroe)	denied 4/18/16 (Pigott, J.)
People v Gause	4th Dept: 133 AD3d 1367 (Monroe)	denied 4/22/16 (Abdus-Salaam, J.)
People v Gavarette	2d Dept: 135 AD3d 785 (Nassau)	denied 4/6/16 (Fahey, J.)
People v Gebreyesus	4th Dept: 133 AD3d 1365 (Erie)	denied 4/5/16 (Rivera, J.)
People v Ghent (James)	App Div, 4th Dept: 2016 NY Slip Op 62048(U) (Monroe)	dismissed 4/16/16 (Pigott, J.)
People v Ghent (James)	4th Dept: 136 AD3d 1355 (Monroe)	denied 4/16/16 (Pigott, J.)
People v G Money	3d Dept: 128 AD3d 1218 (Ulster)	denied 4/7/16 (Abdus-Salaam, J.)
People v Godbold	1st Dept: 117 AD3d 565 (NY)	denied 4/5/16 (Rivera, J.)
People v Gomez	2d Dept: 135 AD3d 954 (Dutchess)	denied 4/15/16 (Fahey, J.)
People v Gonzales-Martinez	2d Dept: 136 AD3d 651 (Suffolk)	denied 4/29/16 (DiFiore, Ch. J.)
People v Gonzalez (Alberto)	1st Dept: 135 AD3d 637 (NY)	denied 4/28/16 (DiFiore, Ch. J.)
People v Gonzalez (Edgardo)	2d Dept: 133 AD3d 618 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Gonzalez (Louis)	App Term, 1st Dept: 49 Misc 3d 126(A) (Bronx)	denied 4/7/16 (Abdus-Salaam, J.)
People v Gonzalez (Mark)	1st Dept: 136 AD3d 444 (NY)	denied 4/8/16 (Fahey, J.)
People v Gonzalez-Alvarez	1st Dept: 129 AD3d 647 (NY)	denied 4/12/16 (Abdus-Salaam, J.)
People v Goodwin	1st Dept: 135 AD3d 618 (NY)	denied 4/12/16 (Pigott, J.)
People v Graves	1st Dept: 136 AD3d 520 (NY)	denied 4/11/16 (Stein, J.)

People v Gray	2d Dept: 135 AD3d 874 (Kings)	denied 4/12/16 (Pigott, J.)
People v Green (Martine)	1st Dept: 135 AD3d 496 (NY)	denied 4/14/16 (Rivera, J.)
People v Green (Sean)	1st Dept: 131 AD3d 899 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Griffin	3d Dept: 128 AD3d 1218 (Ulster)	denied 4/7/16 (Abdus-Salaam, J.)
People v Griffith	App Div, 4th Dept: 2016 NY Slip Op 61322(U) (Onondaga)	dismissed 4/25/16 (Stein, J.)
People v Guyette	3d Dept: 121 AD3d 1430 (Saratoga)	denied 4/5/16 (Rivera, J.)
People v Guzman	2d Dept: 134 AD3d 852 (Queens)	denied 4/14/16 (Rivera, J.)
People v Hale	4th Dept: 130 AD3d 1540 (Erie)	denied reconsideration 4/6/16 (Pigott, J.)
People v Hall	3d Dept: 135 AD3d 1246 (Essex)	denied 4/12/16 (Pigott, J.)
People v Hamilton	1st Dept: 135 AD3d 500 (NY)	denied 4/14/16 (Pigott, J.)
People v Handel	2d Dept: 133 AD3d 879 (Orange)	denied 4/5/16 (Rivera, J.)
People v Haney	1st Dept: 137 AD3d 453 (NY)	denied 4/28/16 (Rivera, J.)
People v Harper	4th Dept: 132 AD3d 1230 (Erie)	denied 4/5/16 (Rivera, J.)
People v Harris (Eric)	4th Dept: 129 AD3d 1522 (Seneca)	denied 4/12/16 (Abdus-Salaam, J.)(Appeal No. 2)
People v Harris (Eric)	4th Dept: 129 AD3d 1526 (Seneca)	denied 4/12/16 (Abdus-Salaam, J.)(Appeal No. 3)
People v Harris (Jerome)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 50 Misc 3d 133(A) (Kings)	denied 4/12/16 (Pigott, J.)
People v Harris (Joseph)	4th Dept: 134 AD3d 1587 (Livingston)	denied 4/6/16 (DiFiore, Ch. J.)
People v Harrison	1st Dept: 124 AD3d 499 (NY)	denied 4/5/16 (Rivera, J.)
People v Harvey	App Div, 2d Dept: 2015 NY Slip Op 83088(U) (Queens)	denied reconsideration 4/18/16 (Stein, J.)
People v Haynes	4th Dept: 133 AD3d 1238 (Erie)	denied 4/11/16 (Rivera, J.)
People v Haywood	2d Dept: 122 AD3d 769 (Westchester)	denied 4/1/16 (Rivera, J.)
People v Heggs	App Div, 2d Dept: 2015 NY Slip Op 91325(U) (Queens)	dismissed 4/21/16 (Pigott, J.)
People v Hernandez	1st Dept: 132 AD3d 579 (NY)	denied 4/1/16 (Rivera, J.)

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People v Herrera	1st Dept: 135 AD3d 482 (NY)	denied 4/5/16 (Pigott, J.)
People v Hicks	4th Dept: 128 AD3d 1358 (Oswego)	denied 4/5/16 (Rivera, J.)
People v Hill	3d Dept: 130 AD3d 1305 (Schenectady)	denied 4/15/16 (Abdus-Salaam, J.)
People v Hobbs	County Ct, 11/24/15 (Erie)	denied 4/1/16 (Stein, J.)
People v Holland	2d Dept: 133 AD3d 779 (Queens)	denied 4/22/16 (Abdus-Salaam, J.)
People v Hone	County Ct, 12/23/14 (Otsego)	denied 4/15/16 (Abdus-Salaam, J.)
People v Howard	4th Dept: 129 AD3d 1654 (Monroe)	denied 4/15/16 (Abdus-Salaam, J.)
People v Huff	4th Dept: 133 AD3d 1223 (Erie)	denied 4/4/16 (Rivera, J.)
People v Hughes	4th Dept: 136 AD3d 1354 (Oneida)	denied 4/27/16 (DiFiore, Ch. J.)
People v Hurley	App Div, 3d Dept: 2015 NY Slip Op 70507(U) (Franklin)	dismissed 4/6/16 (Fahey, J.)
People v Inman	4th Dept: 134 AD3d 1434 (Monroe)	denied 4/5/16 (Pigott, J.)
People v Isaiah S.	2d Dept: 130 AD3d 1081 (Queens)	denied 4/15/16 (Abdus-Salaam, J.)
People v Jackson (David)	1st Dept: 135 AD3d 488 (NY)	denied 4/5/16 (Fahey, J.)
People v Jackson (Samuel)	4th Dept: 132 AD3d 1304 (Monroe)	denied 4/7/16 (Abdus-Salaam, J.)
People v Jackson (Walter)	2d Dept: 133 AD3d 883 (Westchester)	denied 4/5/16 (Abdus-Salaam, J.)
People v James	1st Dept: 133 AD3d 516 (Bronx)	denied 4/1/16 (Rivera, J.)
People v Jamieson	4th Dept: 122 AD3d 1346 (Niagara)	denied 4/4/16 (Rivera, J.)
People v Jean	2d Dept: 130 AD3d 649 (Nassau)	denied 4/12/16 (Abdus-Salaam, J.)
People v Jenkins	2d Dept: 130 AD3d 840 (Westchester)	denied 4/7/16 (Abdus-Salaam, J.)
People v Johnson (Douglas)	1st Dept: 128 AD3d 412 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Johnson (Kerwin)	App Div, 1st Dept: 2015 NY Slip Op 87437(U) (NY)	denied 4/1/16 (Rivera, J.)

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People v Johnson (Kevin)	1st Dept: 136 AD3d 498 (NY)	denied 4/12/16 (Pigott, J.)
People v Johnson (Robert)	4th Dept: 133 AD3d 1309 (Niagara)	denied 4/5/16 (Rivera, J.)
People v Jones (Andrew)	3d Dept: 136 AD3d 1153 (Albany)	dismissed 4/29/16 (DiFiore, Ch. J.)
People v Jones (Daniel)	4th Dept: 125 AD3d 1327 (Erie)	denied reconsideration 4/5/16 (Abdus-Salaam, J.)
People v Jones (Dwayne)	2d Dept: 131 AD3d 1179 (Kings)	denied 4/22/16 (Abdus-Salaam, J.)
People v Jones (Leonard)	1st Dept: 135 AD3d 604 (NY)	denied 4/5/16 (Pigott, J.)
People v Jones (Lester)	1st Dept: 134 AD3d 503 (NY)	denied 4/4/16 (Fahey, J.)
People v Jones (Shawn)	1st Dept: 135 AD3d 479 (NY)	denied 4/5/16 (Pigott, J.)
People v Jose P.	1st Dept: 134 AD3d 494 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Joseph (Ras)	2d Dept: 135 AD3d 876 (Kings)	denied 4/15/16 (Fahey, J.)
People v Joseph (Roger)	2d Dept: 135 AD3d 960 (Kings)	denied 4/4/16 (Stein, J.)
People v Justice	2d Dept: 127 AD3d 786 (Nassau)	denied 4/5/16 (Rivera, J.)
People v Kaous	1st Dept: 126 AD3d 440 (NY)	denied 4/11/16 (Rivera, J.)
People v Kareem	3d Dept: 133 AD3d 901 (Clinton)	denied 4/1/16 (Rivera, J.)
People v Kears	2d Dept: 128 AD3d 849 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Kelly (James)	1st Dept: 132 AD3d 437 (Bronx)	denied 4/22/16 (Abdus-Salaam, J.)
People v Kelly (Shytique)	2d Dept: 131 AD3d 1181 (Queens)	denied 4/7/16 (Abdus-Salaam, J.)
People v Kelly (Thomas)	2d Dept: 121 AD3d 713 (Putnam)	denied 4/15/16 (Abdus-Salaam, J.)
People v Kenny	1st Dept: 134 AD3d 420 (NY)	denied 4/1/16 (Rivera, J.)
People v Keys	1st Dept: 136 AD3d 523 (NY)	denied 4/18/16 (Fahey, J.)
People v King (Anthony)	4th Dept: 136 AD3d 1353 (Niagara)	denied 4/27/16 (DiFiore, Ch. J.)
People v King (Anthony)	4th Dept: 136 AD3d 1313 (Onondaga)	denied 4/18/16 (Pigott, J.)

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People v Knight	2d Dept: 134 AD3d 856 (Kings)	denied 4/4/16 (Stein, J.)
People v Krivoy	2d Dept: 135 AD3d 876 (Kings)	denied 4/18/16 (Pigott, J.)
People v Krut	2d Dept: 133 AD3d 781 (Richmond)	denied 4/4/16 (Rivera, J.)
People v Lane	1st Dept: 134 AD3d 401 (Bronx)	denied 4/4/16 (Fahey, J.)
People v Lara	1st Dept: 130 AD3d 463 (NY)	denied 4/15/16 (Abdus-Salaam, J.)
People v Larareyes (Cristian)	2d Dept: 135 AD3d 961 (Suffolk)	denied 4/6/16 (Fahey, J.)
People v Lara-Reyes (Cristian)	2d Dept: 135 AD3d 961 (Suffolk)	denied 4/6/16 (Fahey, J.)
People v Larkins	4th Dept: 128 AD3d 1436 (Onondaga)	denied 4/5/16 (Abdus-Salaam, J.)
People v Lawrence	3d Dept: 135 AD3d 1187 (Schenectady)	denied 4/14/16 (Pigott, J.)
People v Lee	3d Dept: 129 AD3d 1295 (Ulster)	denied 4/5/16 (Rivera, J.)
People v Lefler	App Div, 4th Dept, 12/3/15 (Onondaga)	dismissed 4/13/16 (Rivera, J.)
People v Leitzsey (Eldred)	2d Dept: 121 AD3d 1020 (Richmond)	denied 4/4/16 (Rivera, J.)
People v Leitzsey (Eldred)	2d Dept: 121 AD3d 1021 (Richmond)	denied 4/4/16 (Rivera, J.)
People v Leon	App Div, 1st Dept: 2015 NY Slip Op 88153(U) (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Levasseur	1st Dept: 133 AD3d 411 (NY)	denied 4/1/16 (Rivera, J.)
People v Lewis (Alexander)	1st Dept: 136 AD3d 468 (NY)	denied 4/18/16 (Stein, J.)
People v Lewis (Kevin)	2d Dept: 135 AD3d 961 (Queens)	denied 4/7/16 (Pigott, J.)
People v Lewis (Michael)	2d Dept: 129 AD3d 746 (Orange)	denied 4/15/16 (Abdus-Salaam, J.)
People v Lindsey	4th Dept: 129 AD3d 1482 (Monroe)	denied 4/12/16 (Abdus-Salaam, J.)
People v Lineberger	App Term, 1st Dept: 46 Misc 3d 152(A) (NY)	denied 4/5/16 (Rivera, J.)
People v Liu	2d Dept: 131 AD3d 547 (Kings)	denied 4/7/16 (Abdus-Salaam, J.)
People v Llibre	1st Dept: 125 AD3d 422 (NY)	denied 4/28/16 (Rivera, J.)

People v Lynch (John)	1st Dept: 129 AD3d 447 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Lynch (Kenneth)	1st Dept: 129 AD3d 447 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Mack	App Div, 3d Dept: 2015 NY Slip Op 94065(U) (Schenectady)	denied 4/11/16 (Pigott, J.)
People v Mack (Darren)	2d Dept: 135 AD3d 962 (Kings)	denied 4/18/16 (Pigott, J.)
People v Madison	1st Dept: 133 AD3d 553 (NY)	denied 4/11/16 (Rivera, J.)
People v Maldonado	4th Dept: 122 AD3d 1379 (Erie)	denied 4/4/16 (Rivera, J.)
People v Marianetti	County Ct, 3/19/15 (Monroe)	denied 4/22/16 (Abdus-Salaam, J.)
People v Marlow	4th Dept: 132 AD3d 1287 (Monroe)	denied 4/22/16 (Abdus-Salaam, J.)
People v Marshall	1st Dept: 134 AD3d 486 (NY)	denied 4/11/16 (Rivera, J.)
People v Martinez	2d Dept: 136 AD3d 1059 (Suffolk)	denied 4/28/16 (Rivera, J.)
People v Matthews (Octavia)	2d Dept: 133 AD3d 892 (Westchester)	denied 4/5/16 (Rivera, J.)
People v Matthews (Robert)	App Term, 1st Dept: 48 Misc 3d 1 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Maxey	4th Dept: 129 AD3d 1664 (Wayne)	denied 4/12/16 (Abdus-Salaam, J.)
People v May	1st Dept: 135 AD3d 598 (NY)	denied 4/18/16 (Stein, J.)
People v Maynard	2d Dept: 132 AD3d 698 (Kings)	denied 4/4/16 (Fahey, J.)
People v McCollough (Maurice)	1st Dept: 134 AD3d 461 (NY)	denied 4/5/16 (Rivera, J.)
People v McCollough (Wallace)	1st Dept: 135 AD3d 490 (NY)	denied 4/5/16 (Pigott, J.)
People v McCullum	1st Dept: 134 AD3d 492 (NY)	denied 4/14/16 (Rivera, J.)
People v McKenzie	3d Dept: 136 AD3d 1120 (St. Lawrence)	denied 4/29/16 (DiFiore, Ch. J.)
People v Melton	3d Dept: 136 AD3d 1069 (Tompkins)	denied 4/22/16 (Abdus-Salaam, J.)
People v Mena-Santos	2d Dept: 134 AD3d 857 (Kings)	denied 4/6/16 (Fahey, J.)
People v Meyers	App Term, 1st Dept: 50 Misc 3d 136(A) (NY)	denied 4/14/16 (Rivera, J.)

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People v Milton	1st Dept: 133 AD3d 551 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Minemier	4th Dept: 134 AD3d 1551 (Monroe)	granted 4/12/16 (Stein, J.)
People v Minor	3d Dept: 129 AD3d 1337 (Tompkins)	denied 4/15/16 (Abdus-Salaam, J.)
People v Mitchell (David)	1st Dept: 134 AD3d 556 (NY)	denied 4/11/16 (Rivera, J.)
People v Mitchell (Robert)	1st Dept: 132 AD3d 583 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Mitchell (Sylvia)	1st Dept: 136 AD3d 401 (NY)	denied 4/18/16 (Fahey, J.)
People v Money	4th Dept: 133 AD3d 1272 (Oneida)	denied 4/5/16 (Abdus-Salaam, J.)(Appeal No. 2)
People v Moore	1st Dept: 132 AD3d 496 (NY)	denied 4/1/16 (Rivera, J.)
People v Morrison	2d Dept: 133 AD3d 892 (Kings)	denied 4/14/16 (Rivera, J.)
People v Muldrow (Timothy)	4th Dept: 126 AD3d 1425 (Monroe)	denied 4/28/16 (Stein, J.)
People v Muldrow (Timothy)	4th Dept: 122 AD3d 1345 (Monroe)	denied 4/28/16 (Stein, J.)
People v Mullins	2d Dept: 133 AD3d 893 (Kings)	denied 4/4/16 (Stein, J.)
People v Murphy	2d Dept: 135 AD3d 881 (Suffolk)	denied 4/6/16 (Pigott, J.)
People v Murray	2d Dept: 136 AD3d 714 (Queens)	denied 4/22/16 (Fahey, J.)
People v Narvaez	1st Dept: 134 AD3d 419 (Bronx)	denied 4/5/16 (Abdus-Salaam, J.)
People v Nathan	2d Dept: 123 AD3d 849 (Nassau)	denied 4/5/16 (Rivera, J.)
People v Nelson	4th Dept: 133 AD3d 1228 (Monroe)	denied 4/1/16 (Rivera, J.)
People v Noezile	2d Dept: 130 AD3d 1071 (Dutchess)	denied 4/5/16 (Abdus-Salaam, J.)
People v Norman	4th Dept: 128 AD3d 1418 (Chautauqua)	denied 4/5/16 (Rivera, J.)
People v Oliver	3d Dept: 135 AD3d 1188 (Albany)	denied 4/29/16 (DiFiore, Ch. J.)
People v Olutosin	2d Dept: 130 AD3d 848 (Queens)	denied 4/5/16 (Abdus-Salaam, J.)
People v Oquendo- Robinson	1st Dept: 132 AD3d 594 (NY)	denied 4/5/16 (Abdus-Salaam, J.)

People v Ortiz (Daniel)	1st Dept: 134 AD3d 517 (NY)	denied 4/13/16 (Rivera, J.)
People v Ortiz (Richard)	1st Dept: 135 AD3d 649 (Bronx)	denied 4/12/16 (Pigott, J.)
People v Owens	1st Dept: 127 AD3d 561 (Bronx)	denied 4/5/16 (Rivera, J.)
People v Paguay	2d Dept: 132 AD3d 1014 (Queens)	denied 4/1/16 (Rivera, J.)
People v Palmer	App Div, 1st Dept: 2015 NY Slip Op 87443(U) (Bronx)	denied 4/5/16 (Abdus-Salaam, J.)
People v Paulino	1st Dept: 131 AD3d 65 (Bronx)	denied reconsideration 4/11/16 (Rivera, J.)
People v Perez (Javier)	App Div, 1st Dept: 2015 NY Slip Op 89560(U) (NY)	dismissed 4/13/16 (Rivera, J.)
People v Perez (Jose)	1st Dept: 133 AD3d 420 (NY)	denied 4/5/16 (Rivera, J.)
People v Perez (Raul)	1st Dept: 136 AD3d 535 (NY)	denied 4/18/16 (Fahey, J.)
People v Petithomme	1st Dept: 131 AD3d 877 (NY)	denied 4/22/16 (Abdus-Salaam, J.)
People v Pezza	App Term, 2d Dept, 9th & 10th Jud Dists: 49 Misc 3d 131(A) (Nassau)	denied 4/5/16 (Abdus-Salaam, J.)
People v Pine	3d Dept: 126 AD3d 1112 (Albany)	denied 4/5/16 (Rivera, J.)
People v Pinnock	App Term, 1st Dept: 50 Misc 3d 137(A) (NY)	denied 4/14/16 (Rivera, J.)
People v Pinto	2d Dept: 133 AD3d 787 (Queens)	denied 4/13/16 (Pigott, J.)
People v Pondexter	1st Dept: 134 AD3d 467 (NY)	denied 4/8/16 (Fahey, J.)
People v Prescott	4th Dept: 125 AD3d 1332 (Erie)	denied 4/5/16 (Rivera, J.)
People v Pusepa	1st Dept: 135 AD3d 559 (NY)	denied 4/6/16 (Fahey, J.)
People v Qing Yu	1st Dept: 135 AD3d 533 (NY)	denied 4/14/16 (Rivera, J.)
People v Rabayev	2d Dept: 128 AD3d 1099 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Radford	County Ct, 12/17/15 (Monroe)	denied 4/8/16 (Pigott, J.)
People v Ramos	App Div, 1st Dept: 2015 NY Slip Op 85774(U) (NY)	denied 4/22/16 (Abdus-Salaam, J.)
People v Rampersaud	2d Dept: 121 AD3d 721 (Westchester)	denied 4/11/16 (Rivera, J.)

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People v Reaves	2d Dept: 134 AD3d 1133 (Kings)	denied 4/18/16 (Fahey, J.)
People v Redding	2d Dept: 132 AD3d 700 (Westchester)	denied 4/14/16 (Rivera, J.)
People v Reinoso	1st Dept: 135 AD3d 663 (NY)	denied 4/22/16 (Fahey, J.)
People v Rhodafox	4th Dept: 134 AD3d 1581 (Onondaga)	denied 4/5/16 (Pigott, J.)
People v Rice	1st Dept: 134 AD3d 401 (Bronx)	denied 4/4/16 (Fahey, J.)
People v Riley	2d Dept: 130 AD3d 848 (Queens)	denied 4/5/16 (Abdus-Salaam, J.)
People v Rios	1st Dept: 132 AD3d 445 (Bronx)	denied reconsideration 4/26/16 (Stein, J.)
People v Ritchens	1st Dept: 136 AD3d 521 (NY)	denied 4/7/16 (Stein, J.)
People v Rivera (Adam)	1st Dept: 134 AD3d 480 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Rivera (Lillian)	1st Dept: 128 AD3d 473 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Robinson (David)	4th Dept: 132 AD3d 1407 (Monroe)	denied 4/5/16 (Rivera, J.) (Appeal No. 1)
People v Robinson (David)	4th Dept: 132 AD3d 1409 (Monroe)	denied 4/5/16 (Rivera, J.) (Appeal No. 2)
People v Roblee	4th Dept: 122 AD3d 1261 (Genesee)	denied 4/4/16 (Rivera, J.)
People v Roland	4th Dept: 133 AD3d 1240 (Erie)	denied 4/5/16 (Rivera, J.)
People v Rose (Nigel)	2d Dept: 134 AD3d 1135 (Kings)	denied 4/14/16 (Fahey, J.)
People v Rose (Troy)	4th Dept: 129 AD3d 1631 (Onondaga)	denied 4/12/16 (Abdus-Salaam, J.)
People v Roseboro	4th Dept: 124 AD3d 1374 (Erie)	denied 4/5/16 (Rivera, J.)
People v Ross	4th Dept: 129 AD3d 1556 (Erie)	denied 4/5/16 (Abdus-Salaam, J.)
People v Rotger	3d Dept: 129 AD3d 1330 (Broome)	denied 4/4/16 (Fahey, J.)
People v Rucano (Anthony)	2d Dept: 130 AD3d 656 (Richmond)	denied 4/4/16 (Stein, J.)
People v Rucano (Anthony)	App Div, 2d Dept: 2014 NY Slip Op 72675(U) (Richmond)	dismissed 4/4/16 (Stein, J.)
People v Ryder	3d Dept: 136 AD3d 1109 (Albany)	denied 4/18/16 (Pigott, J.)

People v Samuel	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 49 Misc 3d 130(A) (Kings)	withdrawn 4/25/16 (Stein, J.)
People v Sanders	2d Dept: 133 AD3d 693 (Kings)	denied 4/5/16 (Abdus-Salaam, J.)
People v Santiago (Brandin)	1st Dept: 134 AD3d 472 (Bronx)	denied 4/6/16 (Fahey, J.)
People v Santiago (David)	1st Dept: 129 AD3d 619 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Sawyer	3d Dept: 135 AD3d 1164 (St. Lawrence)	denied 4/8/16 (DiFiore, Ch. J.)
People v Schrock	4th Dept: 133 AD3d 1272 (Cattaraugus)	denied 4/5/16 (Abdus-Salaam, J.)
People v Scott (Rashad)	App Div, 3d Dept: 2015 NY Slip Op 94065(U) (Schenectady)	denied 4/11/16 (Pigott, J.)
People v Scott (Stephen)	4th Dept: 134 AD3d 1462 (Cayuga)	denied 4/11/16 (Rivera, J.)
People v Serrano	2d Dept: 129 AD3d 997 (Queens)	denied 4/5/16 (Abdus-Salaam, J.)
People v Service	1st Dept: 126 AD3d 638 (NY)	denied 4/5/16 (Rivera, J.)
People v Shabazz	App Div, 3d Dept: 2015 NY Slip Op 70507(U) (Franklin)	dismissed 4/6/16 (Fahey, J.)
People v Siler	1st Dept: 135 AD3d 453 (Bronx)	denied 4/18/16 (Pigott, J.)
People v Simmons (Eric)	3d Dept: 135 AD3d 1193 (Saratoga)	denied 4/6/16 (DiFiore, Ch. J.)
People v Simmons (Tyrell)	4th Dept: 133 AD3d 1275 (Monroe)	denied 4/14/16 (Rivera, J.)
People v Smalls (Jacquelin)	3d Dept: 128 AD3d 1281 (Schenectady)	denied 4/5/16 (Abdus-Salaam, J.)
People v Smalls (Jacqueline)	3d Dept: 128 AD3d 1229 (Schenectady)	denied 4/5/16 (Abdus-Salaam, J.)
People v Smith (Howard)	1st Dept: 123 AD3d 450 (NY)	denied 4/4/16 (Rivera, J.)
People v Smith (James)	App Div, 2d Dept: 2015 NY Slip Op 91325(U) (Queens)	dismissed 4/21/16 (Pigott, J.)
People v Smith (Jaquan)	1st Dept: 134 AD3d 438 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Smith (Julius)	1st Dept: 134 AD3d 653 (Bronx)	denied 4/14/16 (Rivera, J.)
People v Smith (Matthew)	2d Dept: 129 AD3d 997 (Suffolk)	denied 4/12/16 (Abdus-Salaam, J.)
People v Smith (Matthew)	2d Dept: 134 AD3d 1137 (Suffolk)	denied 4/5/16 (Pigott, J.)

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People v Smith (Ryan)	2d Dept: 135 AD3d 970 (Queens)	denied 4/22/16 (Fahey, J.)
People v Solano	1st Dept: 136 AD3d 433 (Bronx)	denied 4/14/16 (Rivera, J.)
People v Soprano	3d Dept: 135 AD3d 1243 (Tioga)	denied 4/15/16 (Fahey, J.)
People v Spain	App Div, 2d Dept: 2015 NY Slip Op 92224(U) (Kings)	dismissed 4/6/16 (Fahey, J.)
People v Spirles (Michael)	4th Dept: 134 AD3d 1472 (Monroe)	denied 4/11/16 (Stein, J.)
People v Spirles (Michael)	4th Dept: 136 AD3d 1353 (Monroe)	denied 4/11/16 (Stein, J.)
People v Spirles (Michelle)	4th Dept: 136 AD3d 1315 (Monroe)	denied 4/18/16 (Pigott, J.)
People v Stevens	2d Dept: 134 AD3d 1057 (Kings)	denied 4/14/16 (Fahey, J.)
People v Stewart	1st Dept: 133 AD3d 447 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Stilley	1st Dept: 128 AD3d 88 (NY)	denied 4/5/16 (Rivera, J.)
People v Stockinger	2d Dept: 131 AD3d 550 (Suffolk)	denied 4/5/16 (Abdus-Salaam, J.)
People v Stopper	County Ct, 3/26/15 (Broome)	denied 4/7/16 (Fahey, J.)
People v Stutley	App Term, 1st Dept: 2016 NY Slip Op 50055(U) (NY)	denied 4/5/16 (Pigott, J.)
People v Switzer	4th Dept: 132 AD3d 1327 (Monroe)	denied 4/22/16 (Abdus-Salaam, J.)
People v Taffet (Jordan)	2d Dept: 109 AD3d 941 (Suffolk)	denied 4/6/16 (Pigott, J.)
People v Taffet (Jordan)	App Div, 2d Dept: 2015 NY Slip Op 66606(U) (Suffolk)	dismissed 4/6/16 (Pigott, J.)
People v Taylor (Rodolfo)	County Ct, 11/13/14 (Suffolk)	dismissed 4/29/16 (DiFiore, Ch. J.)
People v Taylor (Rodolfo)	App Div, 2d Dept: 2015 NY Slip Op 90050(U) (Suffolk)	dismissed 4/29/16 (DiFiore, Ch. J.)
People v Taylor (Rodolfo)	App Div, 2d Dept: 2016 NY Slip Op 63817(U) (Suffolk)	dismissed 4/29/16 (DiFiore, Ch. J.)
People v Taylor (Vickie)	County Ct, 1/27/16 (Wayne)	denied 4/11/16 (DiFiore, Ch. J.)
People v Tejada	2d Dept: 133 AD3d 799 (Nassau)	denied 4/5/16 (Rivera, J.)
People v Thomas	1st Dept: 136 AD3d 485 (NY)	denied 4/11/16 (Stein, J.)
People v Thompson	2d Dept: 132 AD3d 702 (Queens)	denied 4/5/16 (Abdus-Salaam, J.)

People v Tirria R.	2d Dept: 133 AD3d 792 (Queens)	denied 4/5/16 (Abdus-Salaam, J.)
People v Tolliver	4th Dept: 133 AD3d 1272 (Onondaga)	denied 4/5/16 (Abdus-Salaam, J.)
People v Tomlin	4th Dept: 130 AD3d 1455 (Onondaga)	denied 4/15/16 (Abdus-Salaam, J.)
People v Tooson	4th Dept: 136 AD3d 1314 (Onondaga)	denied 4/14/16 (Rivera, J.)
People v Torres (Eddie)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 47 Misc 3d 24 (Kings)	denied 4/5/16 (Rivera, J.)
People v Torres (Stanley)	1st Dept: 132 AD3d 528 (Bronx)	denied 4/18/16 (Pigott, J.)
People v Tracy	4th Dept: 125 AD3d 1517 (Cayuga)	denied 4/5/16 (Rivera, J.)
People v Vanguilder	3d Dept: 130 AD3d 1247 (Saratoga)	denied 4/12/16 (Abdus-Salaam, J.)
People v Vargas	App Term, 1st Dept: 47 Misc 3d 146(A) (Bronx)	denied 4/5/16 (Abdus-Salaam, J.)
People v Vasquez (Eddie)	2d Dept: 134 AD3d 742 (Queens)	denied 4/18/16 (Fahey, J.)
People v Vasquez (Eddie)	2d Dept: 134 AD3d 744 (Queens)	denied 4/18/16 (Fahey, J.)
People v Vasquez (Nathan)	1st Dept: 133 AD3d 516 (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Velasquez	App Term, 1st Dept: 50 Misc 3d 131(A) (NY)	denied 4/14/16 (Rivera, J.)
People v Veras	2d Dept: 134 AD3d 963 (Rockland)	denied 4/5/16 (Pigott, J.)
People v Virges	4th Dept: 118 AD3d 1445 (Erie)	denied 4/5/16 (Abdus-Salaam, J.)
People v VonGause	4th Dept: 133 AD3d 1367 (Monroe)	denied 4/22/16 (Abdus-Salaam, J.)
People v Walker (David)	1st Dept: 132 AD3d 568 (Bronx)	denied 4/5/16 (Rivera, J.)
People v Walker (William)	App Div, 3d Dept: 2015 NY Slip Op 95157(U) (Ulster)	denied 4/6/16 (Fahey, J.)
People v Walsh	2d Dept: 136 AD3d 629 (Suffolk)	denied 4/18/16 (Fahey, J.)
People v Ward	App Term, 1st Dept: 47 Misc 3d 155(A) (NY)	denied 4/7/16 (Abdus-Salaam, J.)
People v Welch	1st Dept: 134 AD3d 493 (NY)	denied 4/5/16 (Rivera, J.)

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People v Wells	2d Dept: 135 AD3d 976 (Queens)	denied 4/18/16 (Fahey, J.)
People v West	App Div, 3d Dept: 2016 NY Slip Op 65409(U) (Schoharie)	dismissed 4/29/16 (DiFiore, Ch. J.)
People v Whetstone	1st Dept: 136 AD3d 476 (NY)	denied 4/28/16 (Stein, J.)
People v White	1st Dept: 133 AD3d 489 (NY)	denied 4/5/16 (Rivera, J.)
People v Whitfield	1st Dept: 133 AD3d 541 (NY)	denied 4/5/16 (Rivera, J.)
People v Williams (Benjamin)	App Div, 1st Dept: 2015 NY Slip Op 88133(U) (NY)	denied 4/5/16 (Abdus-Salaam, J.)
People v Williams (Edward)	1st Dept: 127 AD3d 612 (NY)	denied 4/5/16 (Rivera, J.)
People v Williams (Michael)	1st Dept: 129 AD3d 562 (NY)	denied 4/5/16 (Rivera, J.)
People v Williams (Willie)	2d Dept: 132 AD3d 785 (Queens)	denied reconsideration 4/18/16 (Pigott, J.)
People v Willy A.	1st Dept: 132 AD3d 605 (Bronx)	denied 4/5/16 (Abdus-Salaam, J.)
People v Winter	County Ct, 2/29/16 (Monroe)	denied 4/29/16 (DiFiore, Ch. J.)
People v Wlasiuk	3d Dept: 136 AD3d 1101 (Chenango)	denied 4/15/16 (Fahey, J.)
People v Wooten	1st Dept: 133 AD3d 481 (NY)	denied 4/5/16 (Rivera, J.)
People v Worth	4th Dept: 133 AD3d 1242 (Monroe)	denied 4/4/16 (Stein, J.)
People v Wright (Deshard)	4th Dept: 133 AD3d 1272 (Oneida)	denied 4/5/16 (Abdus-Salaam, J.)(Appeal No. 2)
People v Wright (Phillip)	2d Dept: 134 AD3d 1059 (Kings)	granted 4/5/16 (Fahey, J.)
People v Zarzuela	2d Dept: 123 AD3d 1155 (Queens)	denied 4/5/16 (Rivera, J.)

[51 NE3d 560, 32 NYS3d 49]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOEL
JOSEPH, Appellant.

Argued March 31, 2016; decided May 3, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the First Judicial Department, entered October 7, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Bruce Allen, J., at *Darden* hearing; Robert M. Stolz, J., at suppression hearing; Michael R. Sonberg, J., at plea and sentencing), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the third degree.

People v Joseph, 121 AD3d 445, affirmed.

HEADNOTE

Crimes — Appeal — Matters Reviewable — Mixed Question of Law and Fact — Probable Cause to Arrest — Drug Transaction

In a drug prosecution arising from an incident in which an experienced narcotics officer saw defendant and a surveillance target, whom the police knew to be a narcotics trafficker based on confidential information, engage in a hasty interaction indicative of a drug transaction, the issue of whether the police had probable cause to arrest defendant for criminal possession of a controlled substance involved a mixed question of law and fact, and since there was record support for the conclusion that the police possessed probable cause, the issue was beyond further review by the Court of Appeals. Based on the Supreme Court's ruling after a *Darden* hearing that the confidential information had given the police "cause to believe" that the surveillance target was engaged in "drug activity," it could be inferred that the confidential information was not stale by the time of defendant's arrest. Furthermore, the officer's justified belief that the surveillance target was trafficking in narcotics, together with the manner in which defendant took a bag from the trunk of the target's motor vehicle, while the target remained in the driver's seat, supported the lower courts' conclusion that probable cause existed.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., *The Legal Aid Society*, New York City (*Arthur H. Hopkirk* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Lindsey Richards*, *Manu K. Balachandran* and *Grace Vee* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The issue of whether the police had probable cause to arrest defendant involves a mixed question of law and fact (*see People v Oden*, 36 NY2d 382, 384 [1975]) and is therefore beyond this Court's further review power if the Appellate Division's determination is supported by evidence in the record. In this case, there is record support for the conclusion that the police possessed probable cause.

Members of the New York Drug Enforcement Task Force were following a man whom they knew to be a narcotics trafficker, based on confidential information confirmed by subsequent surveillance, as he drove through Manhattan. One of the experienced narcotics officers saw defendant and the surveillance target engage in a hasty interaction indicative of a drug transaction, in which defendant took a bag from the trunk of the target's motor vehicle, while the target remained in the driver's seat. Defendant was arrested, and a search of his person incident to arrest recovered a bag containing cocaine. Defendant moved to suppress the physical evidence, contending that the officers lacked probable cause to arrest him.

After a *Darden* hearing (*see People v Darden*, 34 NY2d 177 [1974], *rearg denied* 34 NY2d 995 [1974]), Supreme Court found that the confidential information had given the police "cause to believe" that the surveillance target was engaged in "drug activity." Insofar as a *Darden* hearing is held to ensure "that the confidential informant both exists and gave the police information sufficient to establish probable cause" (*People v Edwards*, 95 NY2d 486, 494 [2000]), it may be inferred from the *Darden* hearing court's ruling, which was adopted by the suppression court for the purpose of determining probable cause, that the confidential information was not stale by the time of defendant's arrest.

Furthermore, the officer's justified belief that the surveillance target was trafficking in narcotics, together with the manner in which the bag was removed from the car, support the lower courts' conclusion that the police had probable cause to arrest defendant for criminal possession of a controlled substance. Record support for probable cause may be found on the basis of "indicia of a drug transaction" known to "an experienced officer . . . trained in the investigation and detection of narcotics," which include "handl[ing] [an] unidentified object in a manner typical of a drug sale" (*People v Jones*, 90 NY2d 835, 837 [1997]; *see generally People v McRay*, 51 NY2d 594, 601-602 [1980]).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE
D. MANOR, Appellant.

Argued March 31, 2016; decided May 3, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered October 3, 2014. The Appellate Division affirmed a judgment of the Monroe County Court (John J. Connell, J.), which had convicted defendant, upon his plea of guilty, of murder in the second degree.

People v Manor, 121 AD3d 1581, affirmed.

HEADNOTE

Crimes — Plea of Guilty — Withdrawal of Plea — Denial of Motion without Hearing

In a homicide prosecution, the trial court did not abuse its discretion by denying without a hearing defendant's motion to withdraw his guilty plea, which was supported by affirmations of defense counsel claiming that defendant had been pressured by his family to take the plea and a psychiatrist's report indicating that defendant's plea was impaired by his use of alcohol and marijuana, but was not supported by an affidavit from defendant. When a defendant moves to withdraw a guilty plea, the nature and extent of the fact-finding inquiry rests largely in the discretion of the judge to whom the motion is made and a hearing will be granted only in rare instances. Often, a limited interrogation by the court will suffice. Here, the court gave the parties an opportunity to argue in furtherance of the motion to withdraw the plea, and because both parties declined, the motion was appropriately decided on the written submissions. Furthermore, "coercion" by family members has never been recognized as a reason for withdrawing a guilty plea. Moreover, the motion was not supported by any sworn statement from defendant regarding his alleged use of drugs and alcohol, and the trial court was able to observe defendant during the colloquy and assess firsthand whether he was alert and knowledgeable enough to plead guilty voluntarily.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*Kimberly F. Duguay* of counsel), for appellant.

Sandra Doorley, District Attorney, Rochester (*Robert J. Shoemaker* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant challenges the judgment convicting him, upon his plea of guilty, of murder in the second degree (Penal Law

§ 125.25 [1]) and sentencing him, pursuant to the plea agreement, to 18 years to life in prison.

We agree with the Appellate Division that County Court did not abuse its discretion by denying defendant's motion to withdraw his guilty plea without holding a hearing. Defendant had been provided with two alternative plea offers. The record shows that at the plea allocution, the court explained the two plea options and the rights that defendant was giving up by not going to trial. Defendant indicated that he understood and had discussed the guilty plea with his counsel. To the extent that defendant's statements during the plea colloquy raised a question regarding his intent to kill the victim, the trial court fulfilled its "duty to inquire further to ensure [the] guilty plea [was] knowing and voluntary" (*People v Lopez*, 71 NY2d 662, 666 [1988]).

In moving to withdraw defendant's guilty plea, defendant's two attorneys submitted affirmations indicating that they were surprised that defendant had decided to take the plea, that he had not looked well on the date of the plea, and that he had been pressured to take the plea by family members. The motion was also supported by the report of a psychiatrist retained by defendant who had conducted a psychiatric examination of him approximately two months after the court had entered the guilty plea. The psychiatrist repeated the allegations of family pressure and further indicated that defendant's plea was impaired by his use of alcohol and marijuana to control his anxiety before arriving at the courthouse. The doctor did not indicate that defendant was mentally ill or otherwise lacked the capacity to plead guilty. Notably, the motion to withdraw the plea was not supported by an affidavit from defendant. At sentencing, the court asked if either side wished to be heard beyond the papers, and both the prosecutor and defense counsel stated that they had nothing further. Defendant did not address the court. The court found that there was no need for a factual hearing and stated that it was satisfied that the plea entered was a knowing, voluntary and intelligent waiver of defendant's rights to a trial. The court therefore denied the motion.

"When a defendant moves to withdraw a guilty plea, the nature and extent of the fact-finding inquiry rest[s] largely in the discretion of the Judge to whom the motion is made and a hearing will be granted only in rare instances" (*People v Brown*, 14 NY3d 113, 116 [2010] [internal quotation marks omitted],

quoting *People v Tinsley*, 35 NY2d 926, 927 [1974]). As we said in *Tinsley*, “often[,] a limited interrogation by the court will suffice” (35 NY2d at 927). Here, the court gave the parties an opportunity to argue in furtherance of the motion to withdraw the plea, and because both parties declined, the motion was appropriately decided on the written submissions. Furthermore, while defense counsel claimed that defendant had been pressured by his family to take the plea, this Court has “never recognized ‘coercion’ by family members as a reason for withdrawing a guilty plea” (*People v Lewis*, 46 NY2d 825, 826 [1978]), and the record here does not demonstrate that the court abused its discretion in denying the motion on that ground. Additionally, given defendant’s silence in any sworn statement regarding his alleged use of drugs and alcohol and the court’s ability to observe defendant during the colloquy (see *People v Alexander*, 97 NY2d 482, 486 [2002] [(t)he court was able firsthand to assess whether defendant was alert and knowledgeable enough to plead guilty voluntarily]), it was not an abuse of discretion for the court to have denied the motion to withdraw the plea without holding a hearing.

Finally, defendant did not meet his burden of demonstrating on this record that he was deprived of a fair plea proceeding by less than meaningful representation (see generally *People v Flores*, 84 NY2d 184, 187 [1994]).

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur; Judge FAHEY taking no part.

Order affirmed, in a memorandum.

BAC HOME LOANS SERVICING, LP, Formerly Known as COUNTRY-WIDE HOME LOANS SERVICING LP, Respondent, v BARBARA BIXBY, Appellant, et al., Defendants.

Submitted March 7, 2016; decided May 3, 2016

Reported below, 135 AD3d 1009.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DOUGLAS ELLIMAN, LLC, Doing Business as PRUDENTIAL DOUGLAS ELLIMAN REAL ESTATE, Appellant, v RHONA SILVER et al., Respondents.

Submitted March 14, 2016; decided May 3, 2016

Reported below, 136 AD3d 658.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LESLEY DRAZEK, Appellant, v VITAL TRANSPORTATION, INC., Respondent.

Submitted March 7, 2016; decided May 3, 2016

Reported below, 135 AD3d 898.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

FLO & EDDIE, INC., a California Corporation, Individually and on Behalf of All Others Similarly Situated, Respondent, v SIRIUS XM RADIO, INC., a Delaware Corporation, Appellant, and DOES 1 THROUGH 10, Defendants.

Decided May 3, 2016

See 821 F3d 265.

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

In the Matter of SYLVIA GOLUB, Deceased. NORMAN GOLUB, Respondent; J. DAVID GOLUB, Appellant. (Matter No. 1.)
NORMAN GOLUB, Respondent, v JERRY DAVID GOLUB, Appellant. (Matter No. 2.)

Submitted March 7, 2016; decided May 3, 2016

Reported below, 2015 NY Slip Op 67154(U).

Motion for reconsideration of this Court's January 7, 2016 dismissal orders denied [*see* 26 NY3d 1094, 1095 (2016)]. Motion for leave to appeal dismissed upon the ground that the Court of Appeals lacks jurisdiction to entertain the motion (*see* NY Const, art VI, § 3; CPLR 5602). Motion for a stay dismissed as academic.

Chief Judge DiFiore and Judge Garcia taking no part.

In the Matter of DWIGHT JAMES, Appellant, v NEW YORK STATE
BOARD OF PAROLE, Respondent.

Decided May 3, 2016

Reported below, 136 AD3d 1089.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of VLADIMIR JEANTY, Appellant, v BARRY M. DON-
ALTY, Supervising Judge, Oneida County Court, et al.,
Respondents.

Submitted April 18, 2016; decided May 3, 2016

Reported below, 2016 NY Slip Op 61324(U).

Motion to seal dismissed as unnecessary (*see* Rules of Ct of Appeals [22 NYCRR] § 500.5 [b]).

In the Matter of DIANA OLIVER, Appellant, v MARK A. GROSS,
Judge of the Mount Vernon City Court, et al., Respondents.

Submitted April 4, 2016; decided May 3, 2016

Reported below, 121 AD3d 1116.

Motion to dismiss appeal granted and appeal dismissed, without costs, for failure to proceed.

Chief Judge DiFiore taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. GARY H. MOORE,
Appellant, v SUPERINTENDENT OF COXSACKIE CORRECTIONAL
FACILITY, Respondent.

Submitted March 21, 2016; decided May 3, 2016

Reported below, 2015 NY Slip Op 93293(U).

Motion for reconsideration of this Court's February 23, 2016
dismissal order denied [*see* 26 NY3d 1138 (2016)].

Judge STEIN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DEXTER WASH-
INGTON, Also Known as EZE ALIMASE, Appellant, v KATH-
LEEN G. GERBING, Superintendent, Otisville Correctional
Facility, Respondent.

Decided May 3, 2016

Reported below, 2015 NY Slip Op 95015(U).

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that no substantial constitutional
question is directly involved.

RAISA ROZINA et al., Appellants, v CASA 74TH DEVELOPMENT
LLC et al., Respondents.

Submitted March 7, 2016; decided May 3, 2016

Reported below, 115 AD3d 506.

Motion for reargument of motion for leave to appeal dis-
missed as untimely (*see* Rules of Ct of Appeals [22 NYCRR]
§ 500.24 [b]) [*see* 24 NY3d 1097 (2015)].

Chief Judge DiFIORE and Judge GARCIA taking no part.

In the Matter of JUDSON WATKINS, Appellant, v ALBERT PRACK,
as Director of Special Housing and Inmate Disciplinary
Programs, Respondent.

Submitted March 14, 2016; decided May 3, 2016

Reported below, 133 AD3d 991; 2016 NY Slip Op 63329(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division judgment, dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]); motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

[52 NE3d 243, 32 NYS3d 579]

MARIE CASTIGLIONE et al., Respondents, v ROBERT KRUSE et al.,
Appellants.

Decided May 5, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered July 29, 2015. The Appellate Division (1) reversed, insofar as appealed from, on the law, an order of the Supreme Court, Suffolk County (Peter H. Mayer, J.; op 2014 NY Slip Op 33722[U] [2014]), which had denied plaintiffs' motion for summary judgment on the issue of liability; and (2) granted the motion. The following question was certified by the Appellate Division: "Was the decision and order of this Court dated July 29, 2015, properly made?"

In an action to recover for personal injuries and loss of consortium arising from an incident in which the injured plaintiff was struck by defendants' vehicle while walking across a highway near an intersection, the Appellate Division determined that plaintiffs established their prima facie entitlement to judgment as a matter of law on the issue of liability, and that defendants' unsupported speculation that the injured plaintiff was comparatively at fault was insufficient to raise a triable issue of fact.

Castiglione v Kruse, 130 AD3d 957, reversed.

HEADNOTE

Motor Vehicles — Injuries to Pedestrians — Summary Judgment

In an action to recover for personal injuries and loss of consortium arising from an incident in which the injured plaintiff was struck by defendants' vehicle while walking across a highway near an intersection, the order of the Appellate Division, which granted plaintiffs' motion for summary judgment on the issue of liability, was reversed. On the record, triable questions of fact precluded summary judgment in plaintiffs' favor.

APPEARANCES OF COUNSEL

Picciano & Scahill, P.C., Westbury (*Andrea E. Ferrucci* of counsel), for appellants.

Blackstone Law Group LLP, New York City (*Justin B. Perri* and *Alexander J. Urbelis* of counsel), and *Michael S. Langella, P.C.*, Hauppauge, for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, plaintiffs' motion for summary judgment on the issue of liability denied, and certified question answered in the negative. On this record, triable questions of fact preclude summary judgment in plaintiffs' favor.

Concur: Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA.

[52 NE3d 231, 32 NYS3d 568]

RODNEY SHERMAN, Appellant, v NEW YORK STATE THRUWAY
AUTHORITY, Respondent.

Argued March 24, 2016; decided May 5, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 27, 2014. The Appellate Division (1) reversed, insofar as appealed from, on the law, an order of the Court of Claims (Stephen J. Mignano, J.), which had denied defendant's motion for summary judgment dismissing the claim; and (2) granted the motion.

Sherman v New York State Thruway Auth., 120 AD3d 792, affirmed.

HEADNOTE**Negligence — Snow and Ice — Storm in Progress**

In a personal injury action alleging that defendant New York State Thruway Authority negligently failed to maintain the sidewalk outside a trooper barracks by failing to remove ice and/or place salt after a winter storm, the Appellate Division properly granted defendant's motion for summary judgment dismissing the complaint based on the "storm in progress"

doctrine. A landowner will not be held liable in negligence for injuries sustained as the result of an icy condition occurring during an ongoing storm or for a reasonable time thereafter. Claimant trooper admitted that “an ice storm” had taken place the night before the accident, and an “intermittent wintry mix” of snow, sleet and rain persisted the next morning when he arrived for work. Moreover, a certified weather report confirmed that it was still raining when claimant walked to his vehicle and slipped on a patch of ice. The undisputed facts that precipitation was falling at the time of claimant’s accident and had done so for a substantial time prior thereto, while temperatures remained near freezing, established that the storm was still in progress and that defendant’s duty to abate the icy condition had not yet arisen.

APPEARANCES OF COUNSEL

Norman M. Block, P.C., Hawthorne (*Norman M. Block* of counsel), for appellant.

McGaw, Alventosa & Zajac, Jericho (*Andrew Zajac* of counsel), for respondent.

Lawrence Heisler, Brooklyn, for New York City Transit Authority, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Claimant, a New York State Trooper, slipped and fell on an icy sidewalk outside the trooper barracks in Newburgh. The sidewalk is located on property owned and maintained by defendant New York State Thruway Authority. Claimant commenced this personal injury action against the Authority, alleging that it negligently failed to maintain the sidewalk by failing to remove ice and/or place salt after a winter storm. Following discovery, both parties moved for summary judgment. As relevant here, the Authority argued that it was entitled to judgment as a matter of law under the “storm in progress” doctrine. The Court of Claims denied the parties’ motions, finding questions of fact as to whether a storm was in progress at the time of claimant’s fall. The Appellate Division reversed and granted the Authority summary judgment (120 AD3d 792 [2d Dept 2014]). We granted claimant leave to appeal (25 NY3d 905 [2015]) and now affirm.

Although a landowner owes a duty of care to keep his or her property in a reasonably safe condition, he “will not be held liable in negligence for a plaintiff’s injuries sustained as the result of an icy condition occurring during an ongoing storm or

for a reasonable time thereafter” (*Solazzo v New York City Thruway Auth.*, 6 NY3d 734, 735 [2005]). The Authority established prima facie that it was entitled to judgment as a matter of law by submitting uncontroverted evidence that a storm was ongoing at the time of claimant’s fall. Claimant admitted at his deposition that “an ice storm” had taken place the night before the accident, and an “intermittent wintry mix” of snow, sleet and rain persisted the next morning until 6:50 a.m., when claimant arrived at the trooper barracks for work. Claimant testified, and a certified weather report confirmed, that it was still raining at 8:15 a.m. when he walked to his vehicle and slipped on a patch of ice. The undisputed facts that precipitation was falling at the time of claimant’s accident and had done so for a substantial time prior thereto, while temperatures remained near freezing, established that the storm was still in progress and that the Authority’s duty to abate the icy condition had not yet arisen. In opposition, claimant failed to raise a triable issue of fact.

Therefore, the Appellate Division properly granted the Authority’s motion for summary judgment dismissing the complaint.

RIVERA, J. (dissenting). This appeal involves the application on summary judgment of the storm-in-progress doctrine to claimant Rodney Sherman’s personal injury action against the New York State Thruway Authority, arising from his slip and fall on an icy patch of a sidewalk under the care and responsibility of the Authority. On the record before us, triable issues of material fact exist as to whether the storm in question had ended, and if so whether a reasonable period of time had passed to hold the Authority liable for negligence resulting in claimant’s injuries. Therefore, the Appellate Division should be reversed, and I dissent from the majority’s determination to the contrary.

“Since [summary judgment] deprives [a] litigant of [the party’s] day in court it is considered a drastic remedy which should only be employed when there is no doubt as to the absence of triable issues” (*Andre v Pomeroy*, 35 NY2d 361, 364 [1974]). “[T]he proponent of a summary judgment motion must make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]). Thus, “[a] party moving for summary judgment must demonstrate that ‘the cause of action or

defense shall be established sufficiently to warrant the court as a matter of law in directing judgment' in the moving party's favor" (*Jacobsen v New York City Health & Hosps. Corp.*, 22 NY3d 824, 833 [2014], quoting CPLR 3212 [b]). "This burden is a heavy one and on a motion for summary judgment, facts must be viewed in the light most favorable to the non-moving party" (*William J. Jenack Estate Appraisers & Auctioneers, Inc. v Rabizadeh*, 22 NY3d 470, 475 [2013] [internal quotation marks omitted]), "and every available inference must be drawn in the [non-moving party's] favor" (*De Lourdes Torres v Jones*, 26 NY3d 742, 763 [2016]). If the moving party makes out a prima facie showing, "the burden then shifts to the non-moving party to establish the existence of material issues of fact which require a trial of the action" (*Jacobsen*, 22 NY3d at 833 [internal quotation marks omitted]).

In support of its summary judgment motion, the Authority relied on the storm-in-progress doctrine, which provides that "[a] property owner will not be held liable in negligence for a plaintiff's injuries sustained as the result of an icy condition occurring during an ongoing storm or for a reasonable time thereafter" (*Solazzo v New York City Tr. Auth.*, 6 NY3d 734, 735 [2005]).

"The reasonableness of the time within which [an owner] must respond to its duty to clear the sidewalks is measured from the time that the storm comes to an end since . . . 'responsibility for ice conditions arises, at the most, only after the lapse of a reasonable time for taking protective measures and never while a storm is still in progress'" (*Valentine v City of New York*, 86 AD2d 381, 384 [1st Dept 1982], *affd* 57 NY2d 932 [1982], quoting *Valentine v State of New York*, 197 Misc 972, 975 [Ct Cl 1950], *affd* 277 App Div 1069 [3d Dept 1950], *lv denied* 277 App Div 1080 [1950]).

The doctrine reflects practical concerns related to the challenges and dangers of maintaining property in reasonably safe conditions during inclement weather (*see Powell v MLG Hillside Assoc.*, 290 AD2d 345, 345 [1st Dept 2002]). It "allow[s] workers a reasonable period of time to clean the walkways," and "is designed to relieve the worker(s) of any obligation to shovel snow while continuing precipitation or high winds are simply re-covering the walkways as fast as they are cleaned, thus rendering the effort fruitless" (*id.*). Thus, when weather conditions are no longer storm-like, or where a

storm has turned to rainy conditions that neither imperil workers nor frustrate cleanup efforts, the temporary suspension of a property owner's duty of care is no longer justified.

In accordance with these legal principles, in order for the Authority to establish its storm-in-progress defense and thus carry its prima facie burden on summary judgment, it had to proffer admissible evidence that at the time of Sherman's accident there was an ongoing storm, or that the storm had ceased and a reasonable amount of time had not yet elapsed before the Authority was required to ameliorate the icy sidewalk conditions. In support of the motion, the Authority submitted deposition testimony from four individuals—Sherman, an Authority maintenance supervisor, and two other Authority employees—as well as a certified weather report from the National Climatic Data Center for Stewart International Airport, which is located five miles from where the accident occurred.

According to Sherman's deposition testimony, on the date of his injury he was working as a state trooper at Troop T barracks in Newburgh, New York. In describing the weather conditions preceding the accident, Sherman stated there was an ice storm in the area the night before, that during his commute to work the next morning the weather consisted of a "wintry mix" of sleet and rain, and when he arrived at the barracks at 6:50 a.m. the weather was an "intermittent wintry mix." He remained indoors until 8:15 a.m. when he left to respond to a traffic accident. When he stepped outside the barracks he noted that it "had warmed up considerably" and there was a light rain falling. He walked about eight feet before he slipped and fell on an icy area of the sidewalk.

The supervisor testified that the Authority was responsible for maintaining the sidewalks around the barracks, but during a storm they were a third priority, after the highways and service areas. Two construction equipment operators responsible for maintaining the roads during a storm, who worked the respective 3:00 p.m. to 11:00 p.m. and 11:00 p.m. to 7:00 a.m. shifts the night before and into the day of the accident, both recorded in their logs and testified at their depositions that it was raining. The climatological report for the airport, located five miles away from the barracks, indicated rain and mist and above-freezing temperatures from 10:45 p.m. the night before and for hours following on the day of the accident.

In opposition to the Authority's motion, Sherman relied on his testimony and the evidence submitted by the Authority, as

well as various daily logbooks from other members of the Authority's salt and sand crew. The logbooks for the two construction equipment operators indicate that from 11:00 p.m. the night before the accident until 6:00 a.m. the day of, there was light to medium rain. Sherman argued that this evidence established the storm had ended hours before the accident, and no later than 5:45 a.m.

Applying the storm-in-progress rule, and giving Sherman every favorable inference, as the Court must on summary judgment (see *De Lourdes Torres*, 26 NY3d at 763), there are triable questions of material fact as to the actual weather conditions before and at the moment Sherman fell. Specifically, there are questions of fact as to when the storm ended, if at all, and if it did end, how much time had elapsed before Sherman slipped and fell on the icy sidewalk. The Authority claimed that the original ice storm was ongoing because at a minimum, winter precipitation continued during defendant's drive to work, and rain was falling during a period of near-freezing temperatures. Sherman, on the other hand, argued that the storm was over when he sustained his injuries because by that time all roadwork had been completed, which would not be the case if the storm was ongoing, and at the time of his injury the weather had warmed up, producing light, and not freezing, rain.

We have never held that above-freezing rain alone constitutes a type of storm-in-progress that would relieve a property owner from taking any action to clear or maintain the property. Thus, if an ice storm has changed, due to warming weather, into mere rain, then the storm has ended. Applying this test the Authority's summary judgment submissions do not establish whether the storm ended or, if so, whether insufficient time had elapsed to require the Authority to take protective measures. Sherman testified there was a wintry mix falling the night before and until 6:50 a.m. the day of the accident, and that at 8:15 a.m., when he exited the barracks, moments before his fall, the temperature was considerably warmer and it was raining. The Authority's employees, logbooks, and the climatological report all corroborate his testimony that at least the hour before and at the time of the accident, the temperature was above-freezing and it was raining. The Authority's crew workers' depositions and logbooks indicated light to moderate rain throughout the night and the morning of the accident. Therefore, there remain triable questions of material fact as to

whether the storm ended and, if so, when, requiring a trier of fact to resolve the nature of the precipitation both preceding and at the time of Sherman's fall, and whether the rain conditions were storm-like. Furthermore, factual questions remain as to whether the precipitation was a post-storm event preventing the Authority from taking protective measures to avoid accidents from the accumulated icy conditions caused by the storm. In other words, if the storm conditions had passed, such that there was only above-freezing rain, then the justification for the storm-in-progress rule no longer holds water.

Contrary to the majority's conclusory statement that "undisputed facts" establish a storm-in-progress at the time Sherman fell (majority mem at 1021), the summary judgment submissions demonstrate that the weather conditions are highly contested. Although the parties agree there was an ice storm the night before the accident, that is where their agreement ends. Given that the summary judgment proof in the form of Sherman's testimony, the Authority's employees' statements and documentary evidence, and the climatological report, all indicate that above-freezing rain was falling in the hours before and at the time of the accident, material factual questions exist as to the nature of the weather conditions and the applicability of the storm-in-progress doctrine. To the extent the majority infers the storm-like nature of the precipitation, such inference favors the Authority as the moving party. However, on a summary judgment motion this Court must "view[] [the facts] in the light most favorable" to Sherman as the non-moving party, and "even if the jury at a trial could, or likely would, decline to draw inferences favorable to [Sherman]," the Court "must indulge all available inferences" in his favor (*De Lourdes Torres*, 26 NY3d at 763). Those inferences, at a minimum, lend support to Sherman's argument that at the time of his accident the ice storm had passed, evidenced by the existence of nonfreezing rain, requiring the Authority to take appropriate safety measures to address the accumulated icy conditions.

Chief Judge DiFiore and Judges Pigott, Stein and Garcia concur; Judge Rivera dissents in an opinion in which Judges Abdus-Salaam and Fahey concur.

Order affirmed, with costs, in a memorandum.

In the Matter of ANONYMOUS, a Suspended Attorney, Appellant.
COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted March 14, 2016; decided May 5, 2016

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as confirmed a confidential letter of caution, denied; motion for leave to appeal otherwise dismissed upon the ground that the remainder of the Appellate Division order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Judge STEIN taking no part.

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C.-C., Respondent. R. THOMAS RANKIN, Attorney for the Child, Appellant.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 129 AD3d 1578.

Motion by New York State Bar Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C.-C., Respondent. R. THOMAS RANKIN, Attorney for the Child, Appellant.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 129 AD3d 1578.

Motion by American Academy of Adoption Attorneys et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge FAHEY taking no part.

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C.-C., Respondent. R. THOMAS RANKIN, Attorney for the Child, Appellant.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 129 AD3d 1578.

Motion by Sanctuary for Families et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

In the Matter of BROOKE S.B., Respondent, v ELIZABETH A.C.-C., Respondent. R. THOMAS RANKIN, Attorney for the Child, Appellant.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 129 AD3d 1578.

Motion by Lawyers for Children et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

THE BURLINGTON INSURANCE COMPANY, Appellant, v NYC TRANSIT AUTHORITY et al., Respondents.

Submitted January 25, 2016; decided May 5, 2016

Reported below, 132 AD3d 127.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ESTRELLITA A., Respondent, v JENNIFER L.D., Appellant.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 123 AD3d 1023.

Motion by Lawyers for Children et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judge FAHEY taking no part.

PETER E. GREVELDING, JR., as Executor of JASON M. RHOADES, Deceased, Respondent, v STATE OF NEW YORK, Appellant. (Claim No. 109855.)

Submitted February 16, 2016; decided May 5, 2016

Reported below, 132 AD3d 1332 (Appeal No. 2).

Motion for leave to appeal from the amended judgment of Supreme Court entered upon the October 2015 Appellate Division order dismissed upon the ground that the Appellate Division order, not the amended judgment, is the final appealable paper in this action (*see* CPLR 5611; *Whitfield v City of New York*, 90 NY2d 777 [1997]).

Judge FAHEY taking no part.

In the Matter of ALBERT HARRIOTT, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, et al., Respondents.

Submitted March 28, 2016; decided May 5, 2016

Reported below, 131 AD3d 754.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). The prior motion for leave to appeal made at the Appellate Division was untimely (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]).

In the Matter of ALBERT HARRIOTT, Appellant, v MICHAEL SHEAHAN, as Superintendent of Five Points Correctional Facility, Respondent.

Submitted March 28, 2016; decided May 5, 2016

Reported below, 131 AD3d 744.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]). The prior motion for leave to appeal made at the Appellate Division was untimely (*see* Arthur Karger, Powers of the New York Court of Appeals § 12:3 at 436-437 [3d ed rev 2005]).

In the Matter of REGAN U. LALLY, Appellant, v RICHARD E. AEBLY, Respondent.

Submitted March 7, 2016; decided May 5, 2016

Reported below, 2016 NY Slip Op 63987(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

LESLIE KAREN LARIVIERE et al., Appellants, v NEW YORK CITY TRANSIT AUTHORITY et al., Respondents, et al., Defendants.

Submitted April 4, 2016; decided May 5, 2016

Reported below, 131 AD3d 1130.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 14 NY3d 748 [2010]; *Butler v New York City Tr. Auth.*, 14 NY3d 909 [2010]).

In the Matter of MING TUNG et al., Appellants, v CHINA BUDDHIST ASSOCIATION et al., Respondents.

Submitted April 4, 2016; decided May 5, 2016

Reported below, 124 AD3d 13.

Motion for reargument denied [*see* 26 NY3d 1152 (2016)].

NYCTL 2011-A TRUST et al., Plaintiffs, v DA'JUE PROPERTIES, INC., Appellant, et al., Defendants. FAY CAPITAL CORP., Nonparty Respondent.

Submitted March 28, 2016; decided May 5, 2016

Reported below, 132 AD3d 569.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMELL R. McCULLOUGH, Respondent.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 126 AD3d 1452.

Motion by Innocence Project, Inc. for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES SMITH, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRELL INGRAM, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISMA MCGHEE, Also Known as IZZY, Appellant.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 125 AD3d 537, 558; 122 AD3d 456.

Motion by Legal Aid Society for leave to file a brief amicus curiae on the appeals herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PHILLIP WRIGHT, Appellant.

Submitted May 2, 2016; decided May 5, 2016

Reported below, 134 AD3d 1059.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 111 John Street, 9th Floor, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

PRECAST RESTORATION SERVICES, LLC, Appellant, v GLOBAL
PRECAST, INC., Respondent, et al., Defendants.

Submitted March 21, 2016; decided May 5, 2016

Reported below, 131 AD3d 873.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RW HOLDINGS, LLC, Appellant, v JOHANNA MAYER et al., Re-
spondents.

Submitted February 29, 2016; decided May 5, 2016

Reported below, 131 AD3d 1228.

Motion for leave to appeal dismissed upon the ground that the January 2016 judgment sought to be appealed from does not finally determine the action within the meaning of the Constitution.

OSQUGAMA F. SWEZEY et al., Appellants, v MERRILL LYNCH,
PIERCE FENNER & SMITH INC., Respondent, and PHILIPPINE
NATIONAL BANK et al., Intervenors-Respondents, et al.,
Respondent.

Submitted April 4, 2016; decided May 5, 2016

Reported below, 2016 NY Slip Op 63125(U).

Motion for a writ of King's Bench etc. dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3; CPLR 5519 [c]).

In the Matter of JOEL R. BRANDES, a Disbarred Attorney.

Submitted May 2, 2016; decided May 10, 2016

Reported below, 2015 NY Slip Op 81096(U).

Motion to preclude the Grievance Committee of the Tenth Judicial District from appearing as a respondent on the appeal herein denied; motion for a preference denied.

Judges RIVERA and STEIN taking no part.

BRIDGE STREET CONTRACTING INC., Respondent, et al., Plaintiffs,
v EVEREST NATIONAL INSURANCE COMPANY, Respondent, et
al., Defendant. CASTLEPOINT INSURANCE COMPANY, Pro-
posed Intervenor-Appellant.

Submitted March 21, 2016; decided May 10, 2016

Reported below, 132 AD3d 500.

Motion by CastlePoint Insurance Company for leave to ap-
peal dismissed as untimely (*see* CPLR 5513 [b]; CPLR 2103 [b]
[2]).

MELANIE BUTLER, Respondent, v MAGNET SPORTS & ENTERTAIN-
MENT LOUNGE, INC., Doing Business as MAGNET SPORTS &
ENTERTAINMENT LOUNGE and Another, Defendant, MORAIS
DICKS, Appellant.

Submitted March 28, 2016; decided May 10, 2016

Reported below, 135 AD3d 680.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

JAMES CARVER et al., Appellants, v COUNTY OF NASSAU et al.,
Respondents.

Submitted March 14, 2016; decided May 10, 2016

Reported below, 135 AD3d 888.

Motion, insofar as it seeks leave to appeal as against defend-
ants County of Nassau and Nassau County Police Department,
dismissed upon the ground that the order sought to be ap-
pealed from does not finally determine the action within the
meaning of the Constitution; motion for leave to appeal
otherwise denied.

CIFG ASSURANCE NORTH AMERICA, INC., Appellant, v CREDIT
SUISSE SECURITIES (USA) LLC, Respondent.

Submitted March 21, 2016; decided May 10, 2016

Reported below, 128 AD3d 607.

Motion by the Association of Financial Guaranty Insurers for leave to appear amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

JULIE CONASON et al., Respondents, v MEGAN HOLDING, LLC, et al., Appellants.

Submitted February 1, 2016; decided May 10, 2016

Reported below, 109 AD3d 724.

Motion dismissed upon the ground that no action or proceeding is presently before the Court of Appeals. An application to enforce this Court's remittitur, if such application properly lies, is by appeal, not motion (*see* Arthur Karger, Powers of the New York Court of Appeals § 5:30 at 193-194 [3d ed rev 2015]) [*see* 25 NY3d 1 (2015)].

In the Matter of JOSEPH T. DELGRANDE, Appellant, v GREENVILLE FIRE DISTRICT et al., Respondents.

Submitted March 28, 2016; decided May 10, 2016

Reported below, 132 AD3d 987.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 26 NY3d 918 (2016)].

Judge GARCIA taking no part.

TERRY LANE, Respondent, v LYDELL TYSON, Appellant.

Submitted March 21, 2016; decided May 10, 2016

Reported below, 133 AD3d 530.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DIMITRY MARKOV, Appellant, v SPECTRUM GROUP INTERNATIONAL INC. et al., Respondents.

Submitted March 21, 2016; decided May 10, 2016

Reported below, 136 AD3d 413.

Motion, insofar as it seeks leave to appeal as against Stacks, LLC, dismissed upon the ground that as to that party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KENYATTA JAMES, Also Known as NATE BEANDER, Respondent.

Submitted March 21, 2016; decided May 10, 2016

Reported below, 128 AD3d 723.

Motion for reconsideration of this Court's February 11, 2016 dismissal order denied [*see* 26 NY3d 1118 (2016)].

Judge GARCIA taking no part.

THOMAS PERKINS et al., Respondents, v PHILIP BARRY, Appellant, et al., Defendants.

Decided May 10, 2016

Reported below, 2015 NY Slip Op 92387(U).

Appeal, insofar as taken from that portion of the Appellate Division order which dismissed appellant's appeal, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the remaining portion of the Appellate Division order does not finally determine the action within the meaning of the Constitution.

[52 NE3d 1174, 33 NYS3d 148]

CRP/EXTCELL PARCEL I, L.P., Respondent, v ANDREW M. CUOMO, in His Capacity as the Attorney General of the State of New York, et al., Respondents, and 3TO4, LLC, et al., Appellants.

Argued May 4, 2016; decided June 2, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order

of that Court, entered January 29, 2015. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Anil C. Singh, J.), entered in a hybrid CPLR article 78 proceeding seeking review of respondent Attorney General's determinations that ordered petitioner sponsor to return down payments made by respondent purchasers on newly-constructed luxury condominium units, which had, to the extent appealed from as limited by the briefs, (a) granted the motion by certain respondent purchasers seeking an award of statutory interest under CPLR 5001 on their escrowed down payments, and (b) awarded those respondent purchasers 9% interest, with amounts specified for each purchaser; (2) vacated the judgment; and (3) denied the motion. The following question was certified by the Appellate Division: "Was the order of this Court[,] which reversed and vacated the judgment of the Supreme Court, properly made?"

CRP/Extell Parcel I, L.P. v Cuomo, 124 AD3d 560, affirmed.

HEADNOTE

Proceeding against Body or Officer — Dismissal of Petition — Post-judgment Motion for Statutory Interest — Motion Court's Lack of Jurisdiction

In a hybrid CPLR article 78 proceeding seeking review of respondent Attorney General's determinations that ordered petitioner sponsor to return down payments made by respondent purchasers on newly-constructed luxury condominium units, the Appellate Division properly determined that Supreme Court, which had, in January 2012, dismissed the petition and directed the release and return of the down payments with accumulated escrow interest, lacked jurisdiction to subsequently award statutory interest under CPLR 5001 on its January 2012 judgment. The January 2012 paper, denominated an "order," was a final judgment dismissing the proceeding. Once Supreme Court dismissed the petition and judgment was entered, the court was without jurisdiction to entertain the postjudgment motion made by certain respondent purchasers for statutory interest (*see* CPLR 7806).

APPEARANCES OF COUNSEL

Cohen & Coleman, LLP, New York City (*John A. Coleman, Jr.*, *Richard N. Cohen* and *Joshua N. Cohen* of counsel), for appellants.

Boies, Schiller & Flexner LLP, Armonk (*Jason C. Cyrulnik* and *Edward J. Normand* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Petitioner CRP/Extell Parcel I, L.P., the sponsor of newly-constructed luxury condominium units in Manhattan, filed an

offering plan in 2006 with the Attorney General's office. Under the plan, the purchaser of a unit was required to make a down payment upon the signing of a purchase agreement, with the down payment to be held in an interest-bearing escrow account. The plan also provided that, if the first closing did not occur by September 1, 2008, the purchaser would have the right to rescind the purchase agreement and have the down payment plus any interest earned returned.

Respondents constitute 41 purchasers who entered into purchase agreements with CRP between 2006 and 2008. When the first closing did not occur by the rescission date, the purchasers demanded return of their down payments. CRP refused, claiming that the September 1, 2008 date indicated in the plan was a "scrivener's error" and that the actual rescission date should have been September 1, 2009. The purchasers filed applications seeking release of their down payments with the Attorney General who, after considering all the relevant facts and legal issues presented by the parties, found in the purchasers' favor and ordered the down payments returned.

CRP then brought this hybrid CPLR article 78 proceeding challenging the Attorney General's determinations as arbitrary and capricious and seeking reformation of the purchase agreements based on the claimed scrivener's error.

In January 2012, Supreme Court denied CRP's petition to annul the Attorney General's determinations, directed the release and return of the down payments with accumulated escrow interest, and dismissed the action (34 Misc 3d 1214[A], 2012 NY Slip Op 50073[U] [Sup Ct, NY County 2012]). CRP appealed to the Appellate Division, which affirmed Supreme Court's judgment (101 AD3d 473 [1st Dept 2012]). In December 2012, CRP returned the down payments and accumulated escrow interest to the purchasers.

While CRP was appealing Supreme Court's judgment dismissing its action, some of the purchasers filed a motion seeking an award of statutory interest under Civil Practice Law and Rules § 5001. Supreme Court granted the motion (2012 NY Slip Op 32329[U] [Sup Ct, NY County 2012]), and in August 2013, directed entry of a judgment of approximately \$4.9 million, representing interest at the statutory rate. Upon appeal, the Appellate Division reversed; the Court denied the purchasers' motion and vacated the statutory interest judgment (124 AD3d 560 [1st Dept 2015]).

We agree with the Appellate Division that Supreme Court lacked jurisdiction to award statutory interest on the January

2012 judgment that dismissed the petition. Contrary to the purchasers' contention, the January 2012 paper, denominated an "order," was a final judgment dismissing the proceeding (*see Matter of De Paula v Memory Gardens*, 90 AD2d 886, 886 [3d Dept 1982]). Once Supreme Court dismissed CRP's petition and judgment was entered, the court was without jurisdiction to entertain the purchasers' postjudgment motion for statutory interest (*see* CPLR 7806; *see also De Paula*, 90 AD2d at 886).

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

Order affirmed, with costs, and certified question answered in the affirmative, in a memorandum.

[53 NE3d 705, 33 NYS3d 828]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BOBBY WALLACE, Appellant.

Argued March 22, 2016; decided April 28, 2016

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 7, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Patricia M. Nuñez, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree as a hate crime.

People v Wallace, 113 AD3d 413, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Involuntary Statement

1. Defendant failed to preserve for review his argument that his admission that he struck the victim, made in response to police questioning and prior to being advised on his *Miranda* rights, placed him in custody such that his subsequent statement—and the weapon he ultimately produced to police—should have been suppressed as the involuntary product of a custodial interrogation. Defendant failed to make his argument to the suppression court, and that court did not, in response to a protest by a party, expressly decide the question raised on appeal. Rather, the court denied defendant's motion solely upon the ground that the police questioning was investigatory, not interrogatory, in nature.

Crimes — Appeal — Preservation of Issue for Review — Mode of Proceedings Error

2. The trial court's handling of a jury request to take notes during a re-reading of a portion of the charge did not constitute a mode of proceedings error requiring reversal despite defendant's conceded failure to preserve the issue by not raising it before that court. Under the circumstances, the jury's request was not the kind of substantive request that implicates *People v O'Rama* (78 NY2d 270 [1991]). Nor did the court commit a mode of proceedings error by delegating delivery of its answer to the jury question to a court officer, inasmuch as the task was in that context practically ministerial. Consequently, preservation was required, and defendant's admitted failure to do so precluded review by the Court of Appeals.

APPEARANCES OF COUNSEL

Paul, Weiss, Rifkind, Wharton & Garrison LLP, New York City (*Katherine Kelly Fell* and *Kyle Adam Wirshba* of counsel), and *Seymour W. James, Jr., The Legal Aid Society*, New York City (*Lawrence T. Hausman* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Ellen Stanfield Friedman* and *Sylvia Wertheimer* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Defendant failed to preserve for this Court's review the two arguments he now raises on appeal.

Defendant argues that, irrespective of the surrounding circumstances, his admission that he struck the victim, in response to police questioning, placed him in custody such that his subsequent statement—and the weapon he ultimately produced to the police—should have been suppressed as the involuntary product of a custodial interrogation. It is undisputed that defendant was not advised of his rights under *Miranda v Arizona* (384 US 436 [1966]) before making the statement and producing the physical evidence at issue.

[1] We cannot reach defendant's present argument because he failed to make it to the suppression court and that court did not, “ ‘in response to a protest by a party, . . . expressly decide[] the question raised on appeal’ ” (*People v Graham*, 25 NY3d 994, 996 [2015], quoting CPL 470.05 [2]). Before Supreme Court, defendant sought to suppress the statement and weapon upon the ground that, considering all of the circumstances of the street encounter, he was in custody at the relevant time inasmuch as a reasonable innocent person in defendant's position would not

have felt free to leave. The court denied defendant's motion solely upon the ground that the police questioning was investigatory, not interrogatory, in nature.

[2] Defendant also contends that the trial court's handling of a jury request to take notes during a re-reading of a portion of the charge constituted a mode of proceedings error requiring reversal despite his conceded failure to preserve the issue by not raising it before that court (*see generally People v O'Rama*, 78 NY2d 270 [1991]). We disagree. Under these circumstances, the jury's request was "not the kind of substantive [request] that implicates *O'Rama*" (*People v Mays*, 20 NY3d 969, 971 [2012]). "Nor did the court commit a mode of proceedings error by delegating delivery of its answer to [the] jury question to a court officer" inasmuch as the "task was in this context practically ministerial" (*People v Williams*, 21 NY3d 932, 935 [2013]). Consequently, "preservation was required" and defendant's admitted failure to do so precludes our review (*Mays*, 20 NY3d at 971).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order affirmed, in a memorandum.

[53 NE3d 730, 33 NYS3d 853]

FRIENDS OF THAYER LAKE LLC et al., Appellants, v PHIL BROWN, Respondent, and STATE OF NEW YORK et al., Intervenors-Respondents, et al., Defendant.

Argued March 24, 2016; decided May 10, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 15, 2015. The Appellate Division, with two Justices dissenting, affirmed an order and judgment (one paper) of the Supreme Court, Hamilton County (Richard T. Aulisi, J.), which had (1) denied plaintiffs' cross motion for summary judgment; (2) dismissed plaintiffs' first and second causes of action, and denied plaintiffs' third cause of action for a declaratory judgment; (3) granted the motions of defendants Phil Brown, and the State of New York and the New York State Department of Environmental Conservation (state defendants) for summary judgment on their causes of action seeking a declaration that

the Mud Pond Waterway is navigable-in-fact; (4) declared “that the Mud Pond Waterway, namely the portions of Lilypad Pond, Mud Pond, Mud Pond outlet, and Shingle Shanty Brook between its confluence with the Mud Pond outlet and the downstream boundary of property held by the People of the State, as it flows over lands in which Plaintiffs have an interest and referred to as the ‘Mud Pond Parcel’ in the February 25, 2013 Decision of the Court in this action, is . . . navigable-in-fact and subject to all rights of the public included within the easement of public navigation, including the incidental right to portage on land around any obstacles to navigation such as the obstacle of the Mud Pond outlet rapids”; (5) granted the state defendants’ motion for summary judgment on its second cause of action seeking a declaration that the plaintiffs’ interference with the right of public navigation constitutes a public nuisance; (6) declared “that the plaintiffs’ interference with the right of public navigation, including, but not limited to, signage posting the Mud Pond Waterway, cables interfering with passage on the Waterway, and threats of civil or criminal prosecution constitute a public nuisance to be enjoined”; (7) enjoined plaintiffs (a) “from directly or indirectly interfering in any way with the right of public navigation on the Mud Pond Waterway, encompassing the right to portage around the Mud Pond outlet rapids, including but not limited to placing cables or other obstructions across or adjacent to the Waterway, or posting or allowing the presence of signs stating or suggesting that such travel or use is prohibited or that civil or criminal prosecution will be brought against those exercising the right of public navigation” and (b) “from bringing or causing the initiation of any civil or criminal prosecution for activities included within the public right of navigation”; (8) ordered plaintiffs to “remove, no later than May 10, 2013, all signs or obstructions inconsistent with the above”; and (9) determined that the branch of the state defendants’ motion for summary judgment seeking a declaration that “a December 21, 2007 deed recorded in the Hamilton County Clerk’s Office at Book 243 of Deeds at Page 549 . . . is void and of no legal effect” is moot.

Friends of Thayer Lake LLC v Brown, 126 AD3d 22, modified.

HEADNOTE

Navigable Waters — Public Right of Use — Navigability-in-Fact — Summary Judgment

In a dispute over whether a two-mile-long waterway that crossed plaintiffs’ private property, permitting canoe travel between two lakes on opposite sides

of a state-owned wilderness area, was navigable-in-fact and therefore open to public use, sufficient issues of fact existed to preclude the issuance of summary judgment as jointly requested by the parties upon their respective motions. The freedom of parties in a civil dispute to chart their own course in litigation and to agree upon the factual basis for the resolution of a legal controversy must give way to certain practical restraints: A waterway's navigability is a highly fact-specific determination that cannot always be resolved as a matter of law. To be subject to a public easement, a waterway must provide practical utility to the public as a means for transportation, whether for trade or travel, and recreational use may properly be part of the navigability analysis. Furthermore, while a stipulated statement of facts is not a prerequisite for the issuance of summary judgment, its absence is notable where, as here, the parties amassed a voluminous and detailed record, and sought a legal resolution of an inherently fact-intensive determination. The parties presented conflicting or inconclusive evidence with regard to a number of material facts and the inferences they wished to be drawn from those facts. The record was not conclusive with regard to the waterway's historical and prospective commercial utility, its historical accessibility to the public, the relative ease of passage by canoe, the volume of historical travel, and the volume of prospective commercial and recreational use. Collectively, those factual assessments presented material considerations that, left unresolved, permitted more than one conclusion to be drawn concerning the waterway's practical utility.

APPEARANCES OF COUNSEL

McPhillips, Fitzgerald & Cullum, LLP, Glens Falls (*Dennis J. Phillips* of counsel), for appellants.

Caffry & Flower, Glens Falls (*John W. Caffry* and *Claudia K. Braymer* of counsel), for Phil Brown, respondent.

Eric T. Schneiderman, Attorney General, Albany (*Brian D. Ginsberg, Barbara D. Underwood, Andrea Oser, Andrew B. Ayers* and *Philip M. Bein* of counsel), for State of New York and another, respondents.

Pacific Legal Foundation, Palm Beach Gardens, Florida (*Mark Miller*, of the Florida bar, admitted pro hac vice, of counsel), and *New York Farm Bureau, Inc.*, Albany (*Elizabeth C. Dribusch* of counsel), for Pacific Legal Foundation and others, amici curiae.

Diane Van Epps Finnegan, Manlius, for Adirondack Landowners Association, amicus curiae.

Adirondack Mountain Club, Inc., Lake George (*Neil F. Woodworth* of counsel), and *Schoeman Updike & Kaufman LLP*, New York City (*Charles B. Updike* and *Jeremy M. Weintraub* of counsel), for Adirondack Mountain Club, Inc., and another, amici curiae.

Hancock Estabrook, LLP, Syracuse (*Alan J. Pierce* of counsel), for Empire State Forest Products Association, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by denying defendants' motions for summary judgment and, as so modified, affirmed.

Plaintiffs are the collective owners of real property in a remote area of the Adirondack Mountains. The property is bounded on the north by the William C. Whitney Wilderness Area, which consists of more than 20,000 acres of state forest preserve land. The Wilderness Area was privately owned, at least during the twentieth century, until fully acquired by the State in 1998. Within the Wilderness Area, a network of lakes, ponds, streams, and canoe carry trails known as the Lila Traverse Section of the Whitney Loops permits canoe travel between two lakes on opposite sides of the Wilderness Area.

The parties' dispute concerns the Mud Pond Waterway, a two-mile-long system of ponds and streams within the Lila Traverse that crosses plaintiffs' property. Shortly after the Wilderness Area entered public ownership, defendant New York State Department of Environmental Conservation constructed a 0.8-mile carry trail in order to permit canoe travelers to avoid the Waterway and complete the Lila Traverse without entering plaintiffs' property. Defendants now assert that members of the public are not obligated to use the carry trail, as the Waterway is subject to a public right of navigation. We are asked to determine whether the Waterway is navigable-in-fact and therefore open to public use.

As a general principle, if a waterway is not navigable-in-fact, "it is the private property of the adjacent landowner" (*Adirondack League Club v Sierra Club*, 92 NY2d 591, 601 [1998]). A waterway that is navigable-in-fact, however, "is considered a public highway, notwithstanding the fact that its banks and bed are in private hands" (*id.*, citing *Morgan v King*, 35 NY 454 [1866]; see *Van Cortlandt v New York Cent. R.R. Co.*, 265 NY 249, 254-255 [1934]; *Fulton Light, Heat & Power Co. v State of New York*, 200 NY 400, 412 [1911]). To be subject to this public easement, a waterway must provide practical utility to the public as a means for transportation, whether for trade or travel (*Adirondack League Club*, 92 NY2d at 603). In *Adirondack League Club*, though we did "not broaden the standard for navigability-in-fact," we held that recreational use may properly be "part of the navigability analysis" (*id.*).

Though the parties dispute the Waterway's navigability, they do not want a trial. Instead, the parties jointly requested a

determination as a matter of law upon their respective motions for summary judgment, contending that the material facts are fully and accurately presented in the record and are not in significant dispute. Supreme Court expressed a clear reluctance to honor this request, noting its inclination to determine that sufficient issues of fact exist to preclude the issuance of summary judgment. The Appellate Division, while noting that determinations of navigability are “heavily dependent on factual evidence and assessments,” granted the parties’ mutual request to resolve the matter as a question of law (*Friends of Thayer Lake LLC v Brown*, 126 AD3d 22, 25 [3d Dept 2015]). Nonetheless, both lower courts granted the parties’ request to resolve the dispute as a matter of law, concluding that parties in a civil dispute may “chart their own course in litigation” and may “agree upon the factual basis for the resolution of a legal controversy” (*id.*, citing *Matter of Kaczor v Kaczor*, 101 AD3d 1403, 1404-1405 [3d Dept 2012]).

Such freedom, however, must give way to certain practical restraints: A waterway’s navigability is a highly fact-specific determination that cannot always be resolved as a matter of law (*Adirondack League Club*, 92 NY2d at 605). On a motion for summary judgment, the moving party must make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact (*Nomura Asset Capital Corp. v Cadwalader, Wickersham & Taft LLP*, 26 NY3d 40, 49 [2015]). Summary judgment is inappropriate in any case where there are material issues of fact in dispute or where more than one conclusion may be drawn from the established facts (*Kriz v Schum*, 75 NY2d 25, 33-34 [1989]).

Notably, in lieu of a stipulated statement of facts, the parties submitted an expansive record containing, among other things, documents, maps, photographs, letters, articles, guidebooks, video footage, diaries, testimony, and affidavits. They now seek a determination “as a matter of law” based on the agreed-upon facts that may be gleaned therefrom. While in this proceeding, a stipulated statement of facts is not a prerequisite for the issuance of summary judgment, its absence is notable where, as here, the parties have amassed a voluminous and detailed record, and seek a legal resolution of an inherently fact-intensive determination.

On this record, we must decline the parties’ invitation to award judgment as a matter of law. Contrary to their claim, the parties have presented conflicting or inconclusive evidence

with regard to a number of material facts and the inferences they wish to be drawn from those facts. The record is not conclusive with regard to, for instance, the Waterway's historical and prospective commercial utility, the Waterway's historical accessibility to the public, the relative ease of passage by canoe, the volume of historical travel, and the volume of prospective commercial and recreational use. Collectively, these factual assessments present material considerations that, left unresolved, permit more than one conclusion to be drawn concerning the Waterway's practical utility (*Adirondack League Club*, 92 NY2d at 605-607; see *Morgan*, 35 NY at 459-460; *People ex rel. Lehigh Val. Ry Co. v State Tax Commn.*, 247 NY 9, 11-12 [1928]; *People ex rel. Erie R.R. Co. v State Tax Commn.*, 266 App Div 452, 454 [3d Dept 1943]). As material questions of fact remain, neither party has demonstrated prima facie entitlement to summary judgment, and the competing evidence must be weighed and the credibility of the witnesses must be assessed by a factfinder (*Adirondack League Club*, 92 NY2d at 600). These factual determinations and their relative weight—as well as the “ultimate conclusion” of navigability-in-fact—are for the trier of fact based on the evidence (*Adirondack League Club*, 92 NY2d at 605). We therefore hold that sufficient issues of fact exist to preclude the issuance of summary judgment.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia concur.

Order modified, without costs, by denying defendants' motions for summary judgment and, as so modified, affirmed, in a memorandum.

In the Matter of MAUREEN ABRAMOSKI et al., Appellants, v NEW YORK STATE EDUCATION DEPARTMENT et al., Respondents, et al., Respondents.

Submitted March 28, 2016; decided June 7, 2016

Reported below, 134 AD3d 1183.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order as affirmed the Supreme Court order denying the motion to vacate the judgment, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of ANGEL R. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; SYHEID R., Appellant. (Proceeding No. 1.)

In the Matter of FARRELLE J. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; SYHEID R., Appellant. (Proceeding No. 2.)

In the Matter of TARRELLE J. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; SYHEID R., Appellant. (Proceeding No. 3.)

In the Matter of SAFIRE J. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; SYHEID R., Appellant. (Proceeding No. 4.)

In the Matter of SONIA J. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; SYHEID R., Appellant. (Proceeding No. 5.)

Submitted April 11, 2016; decided June 7, 2016

Reported below, 136 AD3d 1041.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

SANTOKH S. BADESHA et al., Respondents, v PARMINDER S. SOCH et al., Appellants.

Submitted April 11, 2016; decided June 7, 2016

Reported below, 136 AD3d 1415.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of HILARY BEST, Appellant, v BARRY A. SCHWARTZ, Respondent.

Submitted April 11, 2016; decided June 7, 2016

Reported below, 130 AD3d 818.

Motion for reconsideration of this Court's February 23, 2016 dismissal order etc. denied [*see* 26 NY3d 1133 (2016)].

AMY BRAUNSTEIN, Respondent, v DAVID J. BRAUNSTEIN, Appellant. (Action No. 1.)

Submitted April 11, 2016; decided June 7, 2016

Reported below, 132 AD3d 620.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MICHAEL GARRY, Appellant, v AMERICAN STANDARD TRANE, INC., et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted April 4, 2016; decided June 7, 2016

Reported below, 2016 NY Slip Op 66738(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JOHN Z., Appellant. COMMISSIONER OF MENTAL HEALTH, Respondent.

Decided June 7, 2016

Reported below, 136 AD3d 1208.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

DIEUDONNE MUBOYAYI, Appellant, v MONICA QUINTERO et al., Respondents.

Submitted April 18, 2016; decided June 7, 2016

Reported below, 136 AD3d 497.

Motion, insofar as it seeks leave to appeal from the portion of the Appellate Division order that affirmed the August 2014 Supreme Court order conditionally precluding plaintiff's testimony at trial, dismissed upon the ground that such portion of the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

PASCAZI LAW OFFICES, PLLC, Appellant, v PIONEER NATURAL
POOLS, INC., et al., Respondents.

Submitted April 11, 2016; decided June 7, 2016

Reported below, 136 AD3d 878.

Motion, insofar as it seeks leave to appeal as against Taconic Holdings, LLC, dismissed upon the ground that as to it the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

JUVONDI PENDER, Appellant, v MORRIS DUFFY ALONSO FALEY,
LLP, Respondent.

Submitted April 11, 2016; decided June 7, 2016

Reported below, 2015 NY Slip Op 92386(U).

Motion for reargument of motion for leave to appeal denied
[see 26 NY3d 1137 (2016)].

ROBERT L. SCHULZ, Appellant, et al., Plaintiffs, v ANDREW M.
CUOMO et al., Respondents, et al., Defendants.

Submitted April 18, 2016; decided June 7, 2016

Reported below, 133 AD3d 945.

Motion for reconsideration of this Court's February 23, 2016 dismissal order denied [see 26 NY3d 1139 (2016)].

Chief Judge DiFIORE taking no part.

ROBERT L. SCHULZ, Appellant, et al., Plaintiffs, v STATE OF NEW
YORK EXECUTIVE et al., Respondents.

Submitted April 18, 2016; decided June 7, 2016

Reported below, 134 AD3d 52.

Motion for reconsideration of this Court's February 23, 2016 dismissal order denied [see 26 NY3d 1139 (2016)].

Chief Judge DiFIORE and Judge STEIN taking no part.

In the Matter of the Claim of MARY ANN TANGO, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted April 11, 2016; decided June 7, 2016

Reported below, 131 AD3d 1323.

Motion for reargument of motion for leave to appeal denied
[see 26 NY3d 1128 (2016)].

Judge GARCIA taking no part.

In the Matter of the Arbitration between USAA INSURANCE
COMPANY, Respondent, and DANIEL B. ARMSTRONG et al.,
Appellants.

Submitted April 4, 2016; decided June 7, 2016

Reported below, 124 AD3d 1383.

Motion for leave to appeal dismissed upon the ground that
the Court of Appeals has jurisdiction to entertain a motion for
leave to appeal pursuant to CPLR 5602 (a) (1) (ii) from a final
paper where a prior nonfinal Appellate Division order neces-
sarily affects that paper, and such is not the case here.

[54 NE3d 69, 34 NYS3d 397]

RED ZONE LLC, Respondent, v CADWALADER, WICKERSHAM &
TAFT LLP, Appellant.

Argued April 27, 2016; decided June 2, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order
of the Appellate Division of the Supreme Court in the First
Judicial Department, entered June 19, 2014. The Appellate
Division affirmed an amended order and judgment (one paper)
of the Supreme Court, New York County (Melvin L. Schweitzer,
J.), which had awarded plaintiff \$17.2 million.

Red Zone LLC v Cadwalader, Wickersham & Taft LLP, 118
AD3d 581, modified.

HEADNOTES

**Attorney and Client — Malpractice — Summary Judgment — At-
torney Affidavit**

1. Material triable questions of fact existed in plaintiff's legal malpractice
action regarding whether defendant failed to exercise the ordinary reason-

able skill and knowledge commonly possessed by members of the legal profession. While a party may not create a feigned issue of fact to defeat summary judgment, the affidavit of the attorney who represented plaintiff did not flatly contradict his prior deposition testimony. Therefore, the affidavit should have been considered in opposition to plaintiff's motion.

Limitation of Actions — Tolling — Continuous Relationship Doctrine

2. Plaintiff did not meet its burden in its legal malpractice action of demonstrating that defendant's statute of limitations defense failed as a matter of law. Triable questions of fact existed regarding whether the statute of limitations was tolled by the continuous representation doctrine in light of the significant gap of time between the alleged malpractice and the later communications between the parties, the changed nature of the alleged legal representation of plaintiff by defendant, the absence of any clear delineation of the period of such representation and defendant's submission of affidavits disclaiming any mutual understanding of legal representation after defendant drafted the agreement.

APPEARANCES OF COUNSEL

Cravath, Swaine & Moore LLP, New York City (*David R. Marriott* of counsel), for appellant.

Jeffrey A. Jannuzzo, New York City, and *Hinman Straub PC*, Albany (*James T. Potter* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, with costs, by denying plaintiff's motion for summary judgment and reinstating defendant's affirmative defenses of the statute of limitations and comparative negligence and, as so modified, affirmed.

[1] Viewing the evidence in the light most favorable to defendant as the non-movant (*see generally Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012]; *Ortiz v Varsity Holdings, LLC*, 18 NY3d 335, 339 [2011]), material triable questions of fact exist regarding whether defendant failed to exercise the ordinary reasonable skill and knowledge commonly possessed by members of the legal profession (*see Dombrowski v Bulson*, 19 NY3d 347, 350 [2012]). While a party may not create a feigned issue of fact to defeat summary judgment (*see S.J. Capelin Assoc. v Globe Mfg. Corp.*, 34 NY2d 338, 341 [1974]), contrary to plaintiff's assertion here, the affidavit of the attorney who represented plaintiff did not flatly contradict his prior deposition testimony. Therefore, the affidavit should have been considered in opposition to plaintiff's motion.

[2] Similarly, plaintiff did not meet its burden of demonstrating that defendant's statute of limitations defense fails as a

matter of law. Specifically, triable questions of fact exist regarding whether the statute of limitations was tolled by the continuous representation doctrine in light of: the significant gap in time between the alleged malpractice and the later communications between the parties; the changed nature of the alleged legal representation of plaintiff by defendant; the absence of any clear delineation of the period of such representation; and defendant's submission of affidavits disclaiming any mutual understanding of legal representation after 2005 (*see generally Grace v Law*, 24 NY3d 203, 212 [2014]).

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur; Chief Judge DiFIORE and Judge FAHEY taking no part.

Order modified, with costs, by denying plaintiff's motion for summary judgment and reinstating defendant's affirmative defenses of statute of limitations and comparative negligence and, as so modified, affirmed, in a memorandum.

[54 NE3d 78, 34 NYS3d 406]

DRYDEN MUTUAL INSURANCE COMPANY, Appellant, v STANLEY GOESSL et al., Defendants, and AP DAINO & PLUMBING, INC., et al., Respondents.

Argued April 28, 2016; decided June 7, 2016

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered May 9, 2014. The Appellate Division (1) reversed, on the law, a judgment (denominated order and judgment) of the Supreme Court, Oswego County (James W. McCarthy, J.), entered after a nonjury trial, which had (a) declared that plaintiff had no duty to defend or indemnify defendant Stanley Goessl in the underlying tort action; (b) declared that defendant The Main Street America Group had a duty to defend and potentially indemnify defendant Stanley Goessl in the underlying action; (c) granted plaintiff a judgment in a certain amount for attorneys' fees and expenses incurred by plaintiff in the defense of defendant Stanley Goessl in the underlying action together with statutory costs and disbursements; and (d) granted defendant Stanley Goessl a judgment in a certain amount for attorneys' fees and expenses incurred by him, and not paid by plaintiff, in the defense of de-

defendant Stanley Goessl in the underlying action; (2) adjudged and declared that plaintiff was obligated to defend and indemnify defendant Stanley Goessl in the underlying action, and that plaintiff was obligated to reimburse defendant Stanley Goessl for the reasonable attorneys' fees and expenses he incurred in defending the underlying action; and (3) adjudged and declared that defendant The Main Street America Group was not obligated to defend or indemnify defendant Stanley Goessl in the underlying action.

Dryden Mut. Ins. Co. v Goessl, 117 AD3d 1512, affirmed.

HEADNOTE

Appeal — Court of Appeals — Review of Appellate Division's New Factual Findings — Weight of Evidence

In an insurance coverage dispute that required application of the principles of contract interpretation to the policies at issue, an order of the Appellate Division, which reversed a judgment of the trial court and determined that plaintiff insurer had a duty to defend and indemnify defendant insured in the underlying tort action and that defendant insurer had no such duty, was affirmed. Where the Appellate Division makes new factual findings and reverses the trial court's factual findings, the Court of Appeals must determine which court's findings more nearly comport with the weight of the evidence. Upon review of the record, the Appellate Division's factual findings more nearly comported with the weight of the evidence.

APPEARANCES OF COUNSEL

Knych & Whritenour, LLC, Syracuse (*Peter W. Knych* of counsel), and *Bruce R. Bryan*, Syracuse, for appellant.

Kenney Shelton Liptak Nowak LLP, Buffalo (*Jessica L. Foscolo* and *Robert A. Crawford* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

In this insurance coverage dispute, plaintiff Dryden Mutual Insurance Company seeks a declaratory judgment that it does not have a duty to defend and indemnify defendant Stanley Goessl in an underlying tort action. Dryden Mutual also seeks a declaration that defendant The Main Street America Group has a duty to defend and indemnify Goessl. To determine which insurance policy provides coverage to Goessl, the courts below were required to apply principles of contract interpretation to the insurance policies (*see Matter of Covert*, 97 NY2d 68, 76 [2001]). In doing so, a factual question arose and the lower

courts reached opposite conclusions, based on their own findings of fact, as to whether Dryden Mutual or Main Street has a duty to defend and indemnify Goessl.

Where, as here, the Appellate Division makes new factual findings and reverses the trial court's factual findings, we must determine which court's findings "more nearly comport with the weight of the evidence" (*Oelsner v State of New York*, 66 NY2d 636, 637 [1985]). Upon review of the record, we conclude that the Appellate Division's factual findings more nearly comport with the weight of the evidence. Therefore, Dryden Mutual has a duty to defend and indemnify Goessl in the underlying tort action and Main Street has no such duty.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein and Garcia concur; Judge Fahey taking no part.

Order affirmed, with costs, in a memorandum.

SUSAN ARANOFF, Respondent, v GERALD ARANOFF, Appellant.

Submitted April 25, 2016; decided June 9, 2016

Reported below, 2015 NY Slip Op 79506(U); 2015 NY Slip Op 74791(U).

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 971 (2016)].

JAMES BRADY, Appellant, v 450 WEST 31ST STREET OWNER'S CORP. et al., Respondents. (And Another Action.)

Submitted April 18, 2016; decided June 9, 2016

Reported below, 2015 NY Slip Op 92288(U).

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 948 (2016)]. Motion for a stay dismissed as academic.

In the Matter of AMY R. GURVEY (admitted as AMY REBECCA WEISSBROD), an Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted April 25, 2016; decided June 9, 2016

Reported below, 2016 NY Slip Op 71048(U).

Motion for leave to appeal dismissed for failure to establish timeliness as required by section 500.22 (b) (2) of the Rules of Practice of the Court of Appeals (22 NYCRR 500.22 [b] [2]).

Judge ABDUS-SALAAM taking no part.

JOAN C. LIPIN, Appellant, v DAVID E. HUNT, Defendant, and
DANSKE BANK et al., Respondents.

Submitted April 18, 2016; decided June 9, 2016

Reported below, 137 AD3d 518.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion to disqualify Allegaert Berger & Vogel LLP et al. from appearing before this Court etc. denied.

TEDDY MOORE, Appellant, v FRANK GUERRA, Defendant, and
CITY OF NEW YORK et al., Respondents.

Submitted April 18, 2016; decided June 9, 2016

Reported below, 2016 NY Slip Op 62113(U).

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 975 (2016)]. Motion for poor person relief dismissed as academic.

In the Matter of 111-35 75TH AVE. OWNERS CORP., Respondent,
v SARAH HENDRIX, Appellant, et al., Respondents.

Submitted April 25, 2016; decided June 9, 2016

Reported below, 2016 NY Slip Op 60739(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain a motion for leave to appeal from an order of the Appellate Division entered in a proceeding commenced in the Civil Court of the City of New York (see NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUDE
FRANCIS, Appellant.

Submitted March 21, 2016; decided June 9, 2016

Reported below, 137 AD3d 91.

Motion by Youth Represent et al. for leave to file a brief amici curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

PS 157 LOFTS, LLC, Respondent, v KIMBERLY AUSTIN et al., Appellants.

Submitted April 25, 2016; decided June 9, 2016

On the Court's own motion, appeal transferred, without costs, to the Appellate Term, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (*see* NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion to dismiss appeal denied.

JOSEPH T. STEARNS, Appellant, v KENNY & STEARNS et al., Respondents.

Submitted April 25, 2016; decided June 9, 2016

Reported below, 136 AD3d 439.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

In the Matter of SUIT-KOTE CORPORATION, Appellant, v PETER M. RIVERA, as New York State Commissioner of Labor, Respondent.

Submitted April 11, 2016; decided June 9, 2016

Reported below, 137 AD3d 1361.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

ABUWI M. WAHEED, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted April 18, 2016; decided June 9, 2016

Reported below, 2015 NY Slip Op 87430(U).

Motion for reargument of motion for leave to appeal denied [see 26 NY3d 1141 (2016)].

Judge ABDUS-SALAAM taking no part.

[54 NE3d 1163, 35 NYS3d 292]

DYLAN P., an Infant, by His Mother and Natural Guardian,
RAISA L., et al., Respondents, v WEBSTER PLACE ASSOCI-
ATES, L.P., Appellant.

Decided June 2, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered October 20, 2015. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Bronx County (Wilma Guzman, J.; op 2014 NY Slip Op 33731[U] [2014]), which had granted defendant's motion for summary judgment dismissing plaintiffs' complaint; and (2) denied the motion. The following question was certified by the Appellate Division: "Was the order of the Supreme Court, as reversed by this Court, properly made?"

In a personal injury action arising from a missing drain cover in the laundry room of defendant's building, the Appellate Division denied defendant's motion for summary judgment made on the basis of lack of actual or constructive notice. The Appellate Division determined that defendant failed to demonstrate that it did not have constructive notice of the alleged dangerous condition, where it failed to demonstrate adherence to the building maintenance and inspection schedule on the date of the accident.

Dylan P. v Webster Place Assoc., L.P., 132 AD3d 537, affirmed.

HEADNOTE

Negligence — Maintenance of Premises — Constructive Notice of Dangerous Condition — Missing Drain Cover in Laundry Room

In a personal injury action arising from a missing drain cover in the laundry room of defendant's building, an order of the Appellate Division, which denied defendant's motion for summary judgment made on the basis of lack of actual or constructive notice, was affirmed. Material questions of

fact remained regarding whether defendant had constructive notice of a dangerous condition.

APPEARANCES OF COUNSEL

Gannon, Rosenfarb & Drossman, New York City (*Lisa L. Gokhulsingh* of counsel), for appellant.

Alexander J. Wulwick, New York City, for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and certified question answered in the affirmative. Material questions of fact remain regarding whether defendant had constructive notice of a dangerous condition.

Concur: Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein, Fahey and Garcia.

[54 NE3d 1155, 35 NYS3d 284]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GLENFORD C. HULL, Appellant.

Argued April 28, 2016; decided June 2, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered February 19, 2015. The Appellate Division affirmed a judgment of the Supreme Court, Delaware County (Michael V. Cocomma, J.), which had convicted defendant, upon a jury verdict, of manslaughter in the first degree.

People v Hull, 125 AD3d 1099, affirmed.

HEADNOTE

Crimes — Lesser Included Offense — First-Degree Manslaughter as Lesser Included Offense of Second-Degree Murder

In a prosecution arising from defendant's fatal shooting of his downstairs neighbor, with whom he had constantly argued, engaged in a verbal altercation immediately before the shooting and, according to an eyewitness, struggled with when the gun discharged, there was a reasonable view of the evidence that defendant committed first-degree manslaughter but not murder in the second degree and, therefore, the trial court did not err in submitting first-degree manslaughter as a lesser included offense (CPL 300.50 [1]). Defendant's statements to the victim just before the shooting, coupled with

evidence of the struggle and defendant's testimony that he "wasn't aiming for nothing" but "wanted to stop [the victim's] forward momentum" could have led the jury to conclude that defendant intended only to injure the victim and that the victim's movements during the struggle resulted in his death. The fact that a bullet entered the victim's forehead did not necessarily mean that defendant intended to kill him, as it is a matter of common experience that people who fire handguns do not always hit precisely the intended target.

APPEARANCES OF COUNSEL

Edelstein & Grossman, New York City (*Jonathan I. Edelstein* of counsel), for appellant.

Richard D. Northrup, Jr., District Attorney, Delhi (*John L. Hubbard* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was convicted in 2006 of one count of murder in the second degree for fatally shooting his downstairs neighbor. On appeal, the Appellate Division vacated the judgment and ordered a new trial on the ground that defendant received ineffective assistance of trial counsel (71 AD3d 1336 [2010]). At defendant's second trial, the People presented evidence that defendant and the victim constantly argued and had engaged in a verbal altercation immediately before the shooting. Defendant retrieved a loaded handgun from his bedroom, opened the apartment door and allegedly confronted the victim. The victim rushed at defendant and reached for the gun. According to defendant's daughter, who witnessed the incident, the two men were struggling when the gun discharged. The bullet struck the victim in the forehead, killing him instantly. Defendant testified in his own defense that he did not intend to shoot the victim and "wasn't aiming for nothing" but "wanted to stop his forward momentum."

At the conclusion of evidence, the People requested that the court instruct the jury on the lesser included offense of manslaughter in the first degree, which requires proof that defendant caused the death of another with "intent to cause serious physical injury" (Penal Law § 125.20 [1]). The court submitted the charge over defendant's objection, along with defendant's requested instructions on second-degree manslaughter, criminally negligent homicide and the defense of justification. The jury acquitted defendant of murder but found him guilty of manslaughter first. Defendant moved to set aside the verdict, arguing that there was no reasonable view of the evidence that he intended only to injure, but not kill, the victim

when he shot him in the forehead at point-blank range. The trial court denied the motion and the Appellate Division affirmed, with one Justice dissenting (125 AD3d 1099 [2015]). The dissenting Justice subsequently granted defendant leave to appeal (25 NY3d 955 [2015]).

The courts below properly concluded that there was a reasonable view of the evidence that defendant committed first-degree manslaughter but not murder in the second degree and, therefore, the trial court did not err in submitting that charge. A court “may, in addition to submitting the greatest offense which it is required to submit, submit in the alternative any lesser included offense if there is a reasonable view of the evidence which would support a finding that the defendant committed” the lesser but not the greater offense (CPL 300.50 [1]). It is undisputed that manslaughter in the first degree is a lesser included offense of second-degree murder within the meaning of CPL 1.20 (37), so “the question simply is whether on *any* reasonable view of the evidence it is possible for the trier of the facts to acquit the defendant on the higher count and still find him guilty on the lesser one” (*People v Henderson*, 41 NY2d 233, 236 [1976] [emphasis added and citations omitted]).

Here, defendant’s statements to the victim just before the shooting, coupled with evidence of the struggle and defendant’s testimony that he “wasn’t aiming for nothing” but “wanted to stop [the victim’s] forward momentum” could have led the jury to conclude that defendant intended only to injure the victim and that the victim’s movements during the struggle resulted in his death (*see People v Ford*, 66 NY2d 428, 441 [1985]). The fact that a bullet entered the victim’s forehead does not necessarily mean defendant intended to kill him, as “it is a matter of common experience that people who fire handguns do not always hit precisely the intended target” (*People v Butler*, 86 AD2d 811, 815 [1st Dept 1982, Sandler, J., dissenting], *revd for reasons stated in dissenting op* 57 NY2d 664, 666 [1982]).

Defendant’s remaining contention regarding the court’s inquiry into possible juror misconduct is unpreserved for our review (*see People v Hicks*, 6 NY3d 737, 739 [2005]).

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Fahey and Garcia concur; Judge Stein taking no part.

Order affirmed, in a memorandum.

In the Matter of TONY AVELLA et al., Respondents, v CITY OF NEW YORK et al., Respondents, and QUEENS DEVELOPMENT GROUP, LLC, et al., Appellants.

Submitted May 2, 2016; decided June 2, 2016

Reported below, 131 AD3d 77.

Motion for an order precluding the City of New York et al. from submitting a brief as respondents on the appeal etc. denied.

In the Matter of CHANA J.A., Respondent, v BARRY S., Appellant. (Proceeding No. 1.)

In the Matter of BARRY S., Appellant, v CHANA S., Respondent. (Proceeding No. 2.)

Submitted March 14, 2016; decided June 2, 2016

Reported below, 135 AD3d 743.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from the February 2014 Family Court order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied. Motion for poor person relief dismissed as academic.

In the Matter of CITIZENS FOR ST. PATRICK'S et al., Appellants, v CITY OF WATERVLIET ZONING BOARD OF APPEALS et al., Respondents.

Submitted December 7, 2015; decided June 2, 2016

Reported below, 130 AD3d 1338; 2015 NY Slip Op 88390(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the July 2015 Appellate Division order appealed from affirming the July 2014 Supreme Court paper which, among other things, granted PCP Watervliet, LLC's motion pursuant to CPLR 6315 to ascertain damages and ordered a hearing to determine damages, does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

Judge STEIN taking no part.

In the Matter of ENTERGY NUCLEAR OPERATION, INC., et al.,
Respondents, v NEW YORK STATE DEPARTMENT OF STATE et
al., Appellants.

Submitted May 31, 2016; decided June 2, 2016

Reported below, 125 AD3d 21.

Motion by African American Environmentalist Association et
al. for leave to appear amici curiae on the appeal herein
granted only to the extent that the proposed brief is accepted
as filed. Three copies of the brief must be served and an original
and nine copies filed within seven days.

In the Matter of JOHN J. FABBRICANTE, Appellant, v DONNA
FABBRICANTE, Respondent.

Decided June 2, 2016

Reported below, 2016 NY Slip Op 60729(U).

Appeal dismissed, without costs, by the Court of Appeals,
sua sponte, upon the ground that no substantial constitutional
question is directly involved.

In the Matter of the Claim of DEBORAH FATONE, Respondent.
ADDISON STREET SPA, LLC, Appellant; COMMISSIONER OF
LABOR, Respondent.

Submitted March 28, 2016; decided June 2, 2016

Reported below, 133 AD3d 1074.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

In the Matter of SANDRA D. FRELIX (Admitted as SANDRA
DELORES FRELIX), an Attorney, Appellant. DEPARTMENTAL
DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPART-
MENT, Respondent.

Submitted January 11, 2016; decided June 2, 2016

Reported below, 134 AD3d 58.

On the Court's own motion, appeal dismissed, without costs, upon the ground that appellant has failed to demonstrate timeliness as required by the Rules of the Court of Appeals (*see* 22 NYCRR 500.9, 500.10). Motion for leave to appeal dismissed for failure to demonstrate timeliness as required by the Rules of the Court of Appeals (*see* 22 NYCRR 500.22 [b] [2]).

In the Matter of REYNALD GONZALEZ, Respondent, v DIANE E. HUNTER, Appellant. (And Two Other Proceedings.)

Submitted March 28, 2016; decided June 2, 2016

Reported below, 137 AD3d 1339.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the Family Court order dismissing the violation petition, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of JEREMIAH J.W. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; TIONNA W., Appellant.

Submitted April 4, 2016; decided June 2, 2016

Reported below, 134 AD3d 848.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; 2103 [b] [2]).

In the Matter of JULIO O. and Others, Children Alleged to be Neglected. LATISHYA H., Appellant; ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent, et al., Respondent.

Submitted April 4, 2016; decided June 2, 2016

Reported below, 137 AD3d 454.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

CARMELO MAISONET, Plaintiff, and MIRIAM CIRERA, Appellant, v
MICHAEL ROMAN et al., Respondents.

Decided June 2, 2016

Reported below, 139 AD3d 121.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

HENRY NOLASCO, Plaintiff, v SOHO PLAZA CORP. et al., Defendants/Third-Party Plaintiffs-Appellants. JASON BIRNBAUM et al., Third-Party Respondents, et al., Third-Party Defendant.

Submitted January 4, 2016; decided June 2, 2016

Reported below, 129 AD3d 924.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEVIN ALLEN, Appellant.

Submitted May 23, 2016; decided June 2, 2016

Reported below, 137 AD3d 1632.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERTO ESTREMER, Appellant.

Submitted May 9, 2016; decided June 2, 2016

Reported below, 134 AD3d 655.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v KEITH FAGAN, Respondent.

Submitted May 16, 2016; decided June 2, 2016

Reported below, 134 AD3d 411.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOUGLAS FARMER, Appellant.

Submitted May 23, 2016; decided June 2, 2016

Reported below, 136 AD3d 1410.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAWRENCE P. FRUMUSA, Also Known as JOHN DOE, Appellant.

Submitted May 9, 2016; decided June 2, 2016

Reported below, 134 AD3d 1503.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GUY D. PENDLETON, JR., Appellant.

Submitted May 16, 2016; decided June 2, 2016

Reported below, 128 AD3d 856.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE SALGADO, Appellant.

Submitted May 9, 2016; decided June 2, 2016

Reported below, 128 AD3d 595.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, ex rel. SHALIEK CARTER, Appellant, v BRANDON J. SMITH, as Superintendent of Greene Correctional Facility, Respondent.

Submitted April 11, 2016; decided June 2, 2016

Reported below, 134 AD3d 1338.

Motion for reconsideration of this Court's February 23, 2016 dismissal order denied [*see* 26 NY3d 1138 (2016)].

In the Matter of TERRY SANDERS, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted March 14, 2016; decided June 2, 2016

Reported below, 2016 NY Slip Op 62610(U).

Motion for leave to appeal from the Appellate Division order denying reconsideration etc. dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of TERRY SANDERS, Appellant, v ANTHONY J. ANNUCCI, as Acting Commissioner of Corrections and Community Supervision, Respondent.

Submitted April 18, 2016; decided June 2, 2016

Reported below, 128 AD3d 1156.

Motion to vacate this Court's September 2, 2015 dismissal order denied [*see* 26 NY3d 964 (2015)].

TAURUS WHITEHEAD, Appellant, v STATE OF NEW YORK, Respondent.

Decided June 2, 2016

Reported below, 2016 NY Slip Op 60898(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2016 through May 31, 2016)

Anonymous, Matter of	App Div, 3d Dept, 1/11/16	5/5/16
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APPEALS WITHDRAWN AND DISCONTINUED

(May 1, 2016 through May 31, 2016)

People v McCummings	1st Dept: 124 AD3d 502	5/6/16
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2016 through May 31, 2016)

People v Aguilar	2d Dept: 137 AD3d 1051 (Suffolk)	denied 5/20/16 (Stein, J.)
People v Akassy	1st Dept: 134 AD3d 459 (NY)	denied 5/11/16 (Pigott, J.)
People v Alcindor	App Div, 1st Dept: 2015 NY Slip Op 94347(U) (NY)	denied 5/5/16 (Stein, J.)
People v Anderson	4th Dept: 132 AD3d 1328 (Monroe)	denied 5/19/16 (Rivera, J.)
People v Andrews	1st Dept: 137 AD3d 429 (NY)	denied 5/25/16 (Stein, J.)
People v Ayala	2d Dept: 137 AD3d 804 (Kings)	denied 5/20/16 (Pigott, J.)
People v Bae	2d Dept: 137 AD3d 804 (Queens)	denied 5/13/16 (Garcia, J.)
People v Ballard	2d Dept: 134 AD3d 731 (Dutchess)	denied 5/6/16 (Stein, J.)
People v Barba	2d Dept: 135 AD3d 950 (Nassau)	denied 5/9/16 (Pigott, J.)

People v Barnes	4th Dept: 133 AD3d 1272 (Niagara)	denied reconsideration 5/3/16 (Stein, J.)
People v Bartlett	2d Dept: 137 AD3d 806 (Westchester)	denied 5/20/16 (Pigott, J.)
People v Bell	2d Dept: 136 AD3d 838 (Westchester)	denied 5/9/16 (Pigott, J.)
People v Blackwood	1st Dept: 123 AD3d 468 (NY)	denied reconsideration 5/3/16 (Rivera, J.)
People v Blair (Kevin)	County Ct, 2/16/16 (Onondaga)	dismissed 5/6/16 (Stein, J.)
People v Blair (Nailon)	3d Dept: 136 AD3d 1105 (Albany)	denied 5/10/16 (Fahey, J.)
People v Blond (Mark)	App Div, 3d Dept: 2015 NY Slip Op 92510(U) (Schenectady)	dismissed 5/16/16 (Abdus-Salaam, J.)
People v Blond (Mark)	App Div, 3d Dept, 1/21/16 (Schenectady)	dismissed 5/16/16 (Abdus-Salaam, J.)
People v Boyd	2d Dept: 136 AD3d 935 (Kings)	denied 5/10/16 (Fahey, J.)
People v Boykins	4th Dept: 134 AD3d 1542 (Yates)	denied 5/9/16 (Pigott, J.)
People v Bracy	2d Dept: 131 AD3d 538 (Queens)	denied 5/19/16 (Abdus-Salaam, J.)
People v Brewer	4th Dept: 134 AD3d 1472 (Ontario)	denied 5/17/16 (Rivera, J.)
People v Brito	1st Dept: 135 AD3d 627 (Bronx)	denied 5/19/16 (Rivera, J.)
People v Brown (Donte)	1st Dept: 136 AD3d 528 (Bronx)	denied 5/5/16 (Stein, J.)
People v Brown (Fred)	2d Dept: 135 AD3d 783 (Queens)	denied 5/19/16 (Rivera, J.)
People v Browne	App Term, 1st Dept: 49 Misc 3d 127(A) (NY)	denied 5/19/16 (Abdus-Salaam, J.)
People v Bruno	App Div, 1st Dept: 2015 NY Slip Op 76275(U) (Bronx)	denied 5/13/16 (Pigott, J.)
People v Bruzzo	2d Dept: 136 AD3d 1050 (Queens)	denied 5/10/16 (Fahey, J.)
People v Burns	App Term, 1st Dept: 48 Misc 3d 129(A) (NY)	denied 5/3/16 (Abdus-Salaam, J.)
People v Bush	4th Dept: 134 AD3d 1519 (Genesee)	denied 5/19/16 (Rivera, J.)
People v Camp	4th Dept: 134 AD3d 1470 (Ontario)	denied 5/3/16 (Stein, J.)
People v Campbell	2d Dept: 137 AD3d 807 (Westchester)	denied 5/9/16 (Garcia, J.)

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People v Canady	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 50 Misc 3d 132(A) (Kings)	granted 5/13/16 (Fahey, J.)
People v Canales	2d Dept: 130 AD3d 1059 (Kings)	denied 5/3/16 (Abdus-Salaam, J.)
People v Caraballo	2d Dept: 136 AD3d 937 (Queens)	denied 5/9/16 (Stein, J.)
People v Cepero	App Term, 1st Dept: 50 Misc 3d 140(A) (NY)	denied 5/11/16 (Garcia, J.)
People v Chance	1st Dept: 137 AD3d 608 (NY)	denied 5/31/16 (DiFiore, Ch. J.)
People v Chandler	1st Dept: 136 AD3d 586 (NY)	denied 5/11/16 (Pigott, J.)
People v Chaplin	3d Dept: 134 AD3d 1148 (Rensselaer)	denied 5/10/16 (Fahey, J.)
People v Charles	App Div, 3d Dept: 2015 NY Slip Op 94592(U) (Sullivan)	denied 5/17/16 (Rivera, J.)
People v Chavez	2d Dept: 135 AD3d 952 (Kings)	denied 5/10/16 (Fahey, J.)
People v Cintron	1st Dept: 136 AD3d 405 (NY)	denied 5/19/16 (Rivera, J.)
People v Clark	4th Dept: 136 AD3d 1304 (Genesee)	denied 5/3/16 (Garcia, J.)
People v Colon	1st Dept: 136 AD3d 471 (Bronx)	denied 5/10/16 (Fahey, J.)
People v Colvin	1st Dept: 136 AD3d 608 (Bronx)	denied 5/5/16 (Garcia, J.)
People v Cook	2d Dept: 133 AD3d 775 (Kings)	denied 5/16/16 (Abdus-Salaam, J.)
People v Coop	3d Dept: 135 AD3d 1069 (Albany)	withdrawn 5/10/16 (Fahey, J.)
People v Coop (Naji)	3d Dept: 135 AD3d 1069 (Albany)	withdrawn 5/10/16 (Fahey, J.)
People v Cooper	4th Dept: 136 AD3d 1397 (Cattaraugus)	denied 5/3/16 (DiFiore, Ch. J.)
People v Cruz (Angel)	4th Dept: 134 AD3d 1455 (Monroe)	denied 5/9/16 (Stein, J.) (Appeal No. 1)
People v Cruz (Angel)	4th Dept: 134 AD3d 1458 (Monroe)	denied 5/9/16 (Stein, J.) (Appeal No. 2)
People v Cruz (Ramon)	1st Dept: 136 AD3d 440 (NY)	denied 5/31/16 (Garcia, J.)
People v Cruz-Checo	2d Dept: 136 AD3d 840 (Queens)	denied 5/3/16 (Garcia, J.)
People v Cruzado	1st Dept: 136 AD3d 572 (Bronx)	denied 5/31/16 (Garcia, J.)
People v Culbert	1st Dept: 136 AD3d 609 (NY)	denied 5/3/16 (Garcia, J.)

People v Dark	4th Dept: 122 AD3d 1321 (Erie)	denied reconsideration 5/17/16 (Rivera, J.)
People v Davidson	App Div, 2d Dept: 2016 NY Slip Op 63537(U) (Nassau)	withdrawn 5/4/16 (Rivera, J.)
People v Davis (Aki)	1st Dept: 136 AD3d 559 (NY)	denied 5/5/16 (Stein, J.)
People v Davis (Devon)	App Div, 4th Dept, 11/17/15 (Monroe)	denied reconsideration 5/17/16 (Rivera, J.)
People v Davis (James)	3d Dept: 136 AD3d 1220 (St. Lawrence)	denied 5/13/16 (Pigott, J.)
People v Davis (Tyrone)	App Div, 2d Dept: 2016 NY Slip Op 61787(U) (Kings)	dismissed 5/10/16 (Fahey, J.)
People v DeChamps	1st Dept: 136 AD3d 410 (NY)	denied 5/9/16 (Pigott, J.)
People v Delavalle	4th Dept: 137 AD3d 1610 (Niagara)	denied 5/20/16 (Pigott, J.)
People v Delgado	2d Dept: 134 AD3d 1046 (Suffolk)	denied 5/17/16 (Rivera, J.)
People v Depetris	4th Dept: 136 AD3d 1308 (Niagara)	denied 5/3/16 (Garcia, J.)
People v Dixon (Anthony)	4th Dept: 132 AD3d 1317 (Monroe)	denied 5/23/16 (Abdus-Salaam, J.)
People v Dixon (Tamel)	1st Dept: 136 AD3d 480 (NY)	denied 5/12/16 (Pigott, J.)
People v Doe (John)	4th Dept: 134 AD3d 1455 (Monroe)	denied 5/9/16 (Stein, J.) (Appeal No. 1)
People v Doe (John)	4th Dept: 134 AD3d 1458 (Monroe)	denied 5/9/16 (Stein, J.) (Appeal No. 2)
People v Dumit	1st Dept: 136 AD3d 510 (NY)	denied 5/9/16 (Pigott, J.)
People v Engle	App Term, 2d Dept, 9th & 10th Jud Dists: 49 Misc 3d 131(A) (Suffolk)	denied 5/10/16 (Fahey, J.)
People v Farmer	4th Dept: 132 AD3d 1238 (Steuben)	denied 5/6/16 (Stein, J.)
People v Farnsworth	3d Dept: 134 AD3d 1302 (Saratoga)	denied 5/10/16 (Fahey, J.)
People v Fisher	2d Dept: 135 AD3d 873 (Westchester)	denied 5/13/16 (Pigott, J.)
People v Flores (Jaquel)	1st Dept: 135 AD3d 415 (Bronx)	denied 5/17/16 (Rivera, J.)
People v Flores (Rafael)	1st Dept: 137 AD3d 579 (Bronx)	denied 5/27/16 (Fahey, J.)
People v Flowers	App Div, 2d Dept: 2015 NY Slip Op 91778(U) (Kings)	dismissed 5/13/16 (Fahey, J.)

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People v Fountain	2d Dept: 137 AD3d 935 (Rockland)	denied 5/20/16 (Stein, J.)
People v Frazier	App Div, 2d Dept: 2016 NY Slip Op 62794(U) (Queens)	dismissed 5/2/16 (Stein, J.)
People v Frierson	1st Dept: 137 AD3d 444 (NY)	denied 5/13/16 (Pigott, J.)
People v Gayle	1st Dept: 123 AD3d 468 (NY)	denied reconsideration 5/3/16 (Rivera, J.)
People v George	1st Dept: 135 AD3d 604 (NY)	denied 5/6/16 (Stein, J.)
People v Ghost	2d Dept: 136 AD3d 1056 (Suffolk)	denied 5/10/16 (Fahey, J.)
People v Gibson (Gerald)	4th Dept: 134 AD3d 1517 (Erie)	denied 5/17/16 (Rivera, J.) (Appeal No. 1)
People v Gibson (Gerald)	4th Dept: 134 AD3d 1519 (Erie)	denied 5/17/16 (Rivera, J.) (Appeal No. 2)
People v Gill	1st Dept: 137 AD3d 541 (NY)	denied 5/19/16 (Rivera, J.)
People v Gillon	App Div, 4th Dept: 2015 NY Slip Op 94848(U) (Niagara)	dismissed 5/20/16 (Pigott, J.)
People v Gladden	1st Dept: 135 AD3d 563 (NY)	denied 5/19/16 (Rivera, J.)
People v Gokey	3d Dept: 134 AD3d 1246 (Franklin)	denied 5/9/16 (Pigott, J.)
People v Gonzalez	2d Dept: 120 AD3d 832 (Queens)	denied 5/4/16 (Rivera, J.)
People v Gousse	2d Dept: 134 AD3d 955 (Nassau)	denied 5/17/16 (Rivera, J.)
People v Graham	2d Dept: 134 AD3d 1047 (Kings)	dismissed 5/2/16 (Stein, J.)
People v Graves	4th Dept: 136 AD3d 1347 (Onondaga)	denied 5/12/16 (DiFiore, Ch. J.)
People v Green	4th Dept: 132 AD3d 1268 (Erie)	denied 5/23/16 (Abdus-Salaam, J.) (Appeal No. 1)
People v Griffin	App Div, 2d Dept: 2016 NY Slip Op 60657(U) (Orange)	dismissed 5/2/16 (Stein, J.)
People v Griffith	1st Dept: 136 AD3d 573 (NY)	denied 5/23/16 (Fahey, J.)
People v Guillebeaux	2d Dept: 136 AD3d 1055 (Queens)	denied 5/20/16 (Fahey, J.)
People v Hall	App Div, 1st Dept: 2016 NY Slip Op 65889(U) (NY)	dismissed 5/3/16 (Garcia, J.)
People v Hardman	2d Dept: 135 AD3d 785 (Kings)	denied 5/17/16 (Rivera, J.)
People v Hardy	2d Dept: 134 AD3d 955 (Kings)	denied 5/17/16 (Rivera, J.)

People v Harris	1st Dept: 137 AD3d 514 (Bronx)	denied 5/13/16 (Fahey, J.)
People v Herbert	1st Dept: 135 AD3d 659 (NY)	denied 5/19/16 (Rivera, J.)
People v Hernandez (David)	1st Dept: 135 AD3d 596 (NY)	denied 5/10/16 (Fahey, J.)
People v Hernandez (Michael)	County Ct, 3/2/16 (Erie)	denied 5/20/16 (Fahey, J.)
People v Hogan	4th Dept: 136 AD3d 1399 (Erie)	denied 5/3/16 (Garcia, J.)
People v Huger	2d Dept: 136 AD3d 943 (Kings)	denied 5/11/16 (Pigott, J.)
People v Hutter	1st Dept: 136 AD3d 458 (NY)	denied 5/10/16 (Fahey, J.)
People v Jackson	2d Dept: 136 AD3d 1056 (Suffolk)	denied 5/10/16 (Fahey, J.)
People v James	1st Dept: 135 AD3d 602 (NY)	denied 5/5/16 (Stein, J.)
People v Jaramillo	4th Dept: 136 AD3d 1354 (Jefferson)	denied 5/20/16 (Stein, J.)
People v Jenkins	1st Dept: 138 AD3d 102 (NY)	denied 5/13/16 (Pigott, J.)
People v Jessamy	2d Dept: 137 AD3d 1056 (Westchester)	denied 5/27/16 (Fahey, J.)
People v Johnson (Christopher)	2d Dept: 135 AD3d 960 (Nassau)	denied 5/4/16 (DiFiore, Ch. J.)
People v Johnson (William)	App Div, 4th Dept: 2015 NY Slip Op 88348(U) (Monroe)	denied 5/19/16 (Rivera, J.)
People v Jones	4th Dept: 134 AD3d 1472 (Genesee)	denied 5/17/16 (Rivera, J.)
People v Jordan	1st Dept: 135 AD3d 634 (Bronx)	denied 5/3/16 (DiFiore, Ch. J.)
People v Kelly	4th Dept: 134 AD3d 1571 (Monroe)	denied 5/17/16 (Rivera, J.)
People v King (Brian)	3d Dept: 137 AD3d 1424 (Clinton)	denied 5/27/16 (Fahey, J.)
People v King (Nidamark)	App Div, 2d Dept: 2015 NY Slip Op 90045(U) (Suffolk)	denied reconsideration 5/13/16 (Fahey, J.)
People v Klein	2d Dept: 137 AD3d 1057 (Suffolk)	denied 5/27/16 (Fahey, J.)
People v Knox	3d Dept: 137 AD3d 1330 (Chemung)	denied 5/4/16 (Garcia, J.)
People v Koechel	3d Dept: 132 AD3d 1020 (Essex)	denied 5/23/16 (Abdus-Salaam, J.)
People v LaForest	1st Dept: 137 AD3d 700 (NY)	denied 5/31/16 (DiFiore, Ch. J.)
People v Layou	4th Dept: 134 AD3d 1510 (Onondaga)	denied 5/17/16 (Rivera, J.)

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People v Lemma	App Term, 2d Dept, 9th & 10th Jud Dists: 50 Misc 3d 34 (Nassau)	withdrawn 5/23/16 (Fahey, J.)
People v Lessey	1st Dept: 137 AD3d 666 (NY)	denied 5/16/16 (Stein, J.)
People v Llorens	1st Dept: 133 AD3d 465 (NY)	denied 5/13/16 (Fahey, J.)
People v Lofton	4th Dept: 132 AD3d 1242 (Monroe)	granted 5/16/16 (Abdus-Salaam, J.)
People v Lopez	App Term, 1st Dept: 50 Misc 3d 139(A) (Bronx)	denied 5/13/16 (Fahey, J.)
People v MacKenzie	App Term, 2d Dept, 9th & 10th Jud Dists, 2/9/16 (Suffolk)	dismissed 5/25/16 (Stein, J.)
People v Mael	County Ct, 12/18/15 (Erie)	denied 5/19/16 (Rivera, J.)
People v Martin	4th Dept: 136 AD3d 1310 (Erie)	denied 5/19/16 (Rivera, J.)
People v Martinaj	App Div, 1st Dept: 2016 NY Slip Op 60144(U) (NY)	denied 5/6/16 (Stein, J.)
People v Martinez- Ramos	2d Dept: 135 AD3d 965 (Nassau)	denied 5/3/16 (DiFiore, Ch. J.)
People v Matosevic	1st Dept: 136 AD3d 437 (NY)	denied 5/10/16 (Fahey, J.)
People v May	App Div, 2d Dept: 2016 NY Slip Op 60762(U) (Westchester)	dismissed 5/17/16 (Rivera, J.)
People v McCaw	2d Dept: 137 AD3d 813 (Westchester)	denied 5/9/16 (Garcia, J.)
People v McCord	2d Dept: 133 AD3d 689 (Kings)	denied 5/4/16 (Rivera, J.)
People v McCoy	App Div, 4th Dept, 11/2/15 (Monroe)	denied reconsideration 5/11/16 (Pigott, J.)
People v McKeithan	2d Dept: 137 AD3d 943 (Nassau)	denied 5/13/16 (Fahey, J.)
People v McKinley	1st Dept: 132 AD3d 498 (NY)	denied 5/23/16 (Abdus-Salaam, J.)
People v McLean	2d Dept: 128 AD3d 1094 (Queens)	denied 5/19/16 (Abdus-Salaam, J.)
People v McPhillips	2d Dept: 133 AD3d 785 (Suffolk)	denied 5/6/16 (Stein, J.)
People v Meehan	App Div, 3d Dept, 1/14/16 (Broome)	dismissed 5/10/16 (Fahey, J.)
People v Mike	4th Dept: 122 AD3d 1321 (Erie)	denied reconsideration 5/17/16 (Rivera, J.)
People v Mims	App Div, 1st Dept: 2015 NY Slip Op 94384(U) (Bronx)	dismissed 5/10/16 (Fahey, J.)

People v Mirabal	1st Dept: 136 AD3d 415 (NY)	denied 5/13/16 (Pigott, J.)
People v Mitchell (Joshua)	4th Dept: 132 AD3d 1413 (Erie)	denied 5/5/16 (Stein, J.)
People v Mitchell (Stephen)	App Div, 2d Dept: 2015 NY Slip Op 60148(U) (Kings)	dismissed 5/27/16 (Abdus-Salaam, J.)
People v Mitchell (Stephen)	App Div, 2d Dept: 2015 NY Slip Op 74861(U) (Kings)	dismissed 5/27/16 (Abdus-Salaam, J.)
People v Mitchell (Stephen)	App Div, 2d Dept: 2016 NY Slip Op 62181(U) (Kings)	dismissed 5/27/16 (Abdus-Salaam, J.)
People v Mitchell (Stephen)	App Div, 2d Dept: 2016 NY Slip Op 62180(U) (Kings)	dismissed 5/27/16 (Abdus-Salaam, J.)
People v Molina	App Div, 2d Dept: 2016 NY Slip Op 61796(U) (Queens)	denied 5/13/16 (Fahey, J.)
People v Montanez	1st Dept: 135 AD3d 528 (NY)	denied 5/12/16 (DiFiore, Ch. J.)
People v Moore (Nathaniel)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 51 Misc 3d 6 (Kings)	denied 5/10/16 (Fahey, J.)
People v Moore (Sherrell)	4th Dept: 134 AD3d 1463 (Erie)	denied 5/17/16 (Rivera, J.)
People v Morales	4th Dept: 132 AD3d 1410 (Onondaga)	denied 5/16/16 (Abdus-Salaam, J.)
People v Morgenshtern	1st Dept: 137 AD3d 534 (NY)	denied 5/10/16 (DiFiore, Ch. J.)
People v Morillo	2d Dept: 136 AD3d 1060 (Queens)	denied 5/11/16 (Pigott, J.)
People v Murray	App Div, 2d Dept: 2016 NY Slip Op 60959(U) (Westchester)	dismissed 5/11/16 (Pigott, J.)
People v Myrick	3d Dept: 135 AD3d 1069 (Albany)	withdrawn 5/10/16 (Fahey, J.)
People v Nace	3d Dept: 136 AD3d 1105 (Albany)	denied 5/10/16 (Fahey, J.)
People v Naji	3d Dept: 135 AD3d 1069 (Albany)	withdrawn 5/10/16 (Fahey, J.)
People v Naqvi	2d Dept: 132 AD3d 779 (Queens)	denied 5/9/16 (Pigott, J.)
People v Nelligan	3d Dept: 135 AD3d 1075 (Schenectady)	denied 5/17/16 (Rivera, J.)
People v Nelson	2d Dept: 137 AD3d 948 (Nassau)	denied 5/31/16 (Garcia, J.)
People v Newman	1st Dept: 135 AD3d 491 (NY)	denied 5/6/16 (Stein, J.)
People v Novak	County Ct, 1/23/15 (Schenectady)	granted 5/16/16 (Rivera, J.)

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People v Nunez	1st Dept: 137 AD3d 569 (NY)	denied 5/24/16 (Fahey, J.)
People v Oberdorf	4th Dept: 136 AD3d 1291 (Ontario)	denied 5/19/16 (Rivera, J.)
People v O'Connor	2d Dept: 136 AD3d 945 (Westchester)	denied 5/11/16 (Pigott, J.)
People v Ortega	1st Dept: 136 AD3d 455 (NY)	denied 5/13/16 (Fahey, J.)
People v Ortiz	App Term, 1st Dept: 50 Misc 3d 136(A) (NY)	denied 5/5/16 (Stein, J.)
People v Pagan (Jason)	App Div, 1st Dept: 2015 NY Slip Op 90239(U) (NY)	denied 5/13/16 (Pigott, J.)
People v Pagan (Jason)	App Div, 1st Dept: 2015 NY Slip Op 86108(U) (NY)	denied reconsideration 5/11/16 (Pigott, J.)
People v Paige	2d Dept: 134 AD3d 1048 (Kings)	denied 5/19/16 (Rivera, J.)
People v Palomino	2d Dept: 134 AD3d 858 (Queens)	denied 5/6/16 (Stein, J.)
People v Parker	4th Dept: 132 AD3d 1268 (Erie)	denied 5/23/16 (Abdus-Salaam, J.) (Appeal No. 1)
People v Pazmini	2d Dept: 132 AD3d 1015 (Queens)	denied 5/17/16 (Rivera, J.)
People v Perp	App Div, 3d Dept: 2015 NY Slip Op 94592(U) (Sullivan)	denied 5/17/16 (Rivera, J.)
People v Perry	2d Dept: 129 AD3d 747 (Queens)	denied 5/11/16 (Pigott, J.)
People v Pettus	App Div, 1st Dept: 2015 NY Slip Op 95021(U) (NY)	dismissed 5/9/16 (Pigott, J.)
People v Philips	App Div, 2d Dept: 2016 NY Slip Op 64353(U) (Kings)	dismissed 5/16/16 (Abdus-Salaam, J.)
People v Pine	App Div, 3d Dept, 1/14/16 (Greene)	dismissed 5/17/16 (Rivera, J.)
People v Pizarro	App Div, 1st Dept: 2015 NY Slip Op 73713(U) (Bronx)	denied reconsideration 5/20/16 (Pigott, J.)
People v Powell	1st Dept: 134 AD3d 647 (NY)	denied 5/6/16 (Stein, J.)
People v Price	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 49 Misc 3d 130(A) (Richmond)	denied 5/19/16 (Abdus-Salaam, J.)
People v Prude	App Div, 4th Dept, 9/23/15 (Monroe)	denied reconsideration 5/17/16 (Rivera, J.)
People v Quinones	1st Dept: 135 AD3d 568 (NY)	denied 5/6/16 (Stein, J.)

People v Quirisumbay	App Term, 1st Dept: 50 Misc 3d 139(A) (NY)	denied 5/20/16 (Fahey, J.)
People v Ragin	1st Dept: 136 AD3d 426 (NY)	denied 5/3/16 (Garcia, J.)
People v Ramos	1st Dept: 137 AD3d 446 (NY)	denied 5/13/16 (Fahey, J.)
People v Reinard (Donald)	4th Dept: 134 AD3d 1407 (Niagara)	denied 5/17/16 (Rivera, J.) (Appeal No. 1)
People v Reinard (Donald)	4th Dept: 134 AD3d 1409 (Niagara)	denied 5/17/16 (Rivera, J.) (Appeal No. 2)
People v Reinard (Donald)	App Div, 4th Dept, 1/22/16 (Niagara)	dismissed 5/17/16 (Rivera, J.)
People v Renaud	2d Dept: 137 AD3d 818 (Kings)	denied 5/4/16 (Garcia, J.)
People v Reyes	App Div, 1st Dept: 2016 NY Slip Op 65534(U) (NY)	denied 5/19/16 (Rivera, J.)
People v Richardson (Jermaine)	4th Dept: 134 AD3d 1566 (Wayne)	denied 5/2/16 (Stein, J.) (Appeal No. 1)
People v Richardson (Jermaine)	4th Dept: 134 AD3d 1567 (Wayne)	denied 5/2/16 (Stein, J.) (Appeal No. 2)
People v Rickerson	1st Dept: 135 AD3d 571 (NY)	denied 5/12/16 (Stein, J.)
People v Rivas	1st Dept: 132 AD3d 486 (NY)	denied 5/16/16 (Abdus-Salaam, J.)
People v Rivera	1st Dept: 132 AD3d 530 (Bronx)	denied 5/23/16 (Abdus-Salaam, J.)
People v Roberts	2d Dept: 128 AD3d 858 (Queens)	denied reconsideration 5/27/16 (Abdus-Salaam, J.)
People v Robinson (Anthony)	2d Dept: 136 AD3d 1064 (Suffolk)	denied 5/23/16 (Fahey, J.)
People v Robinson (Cordell)	1st Dept: 137 AD3d 606 (NY)	denied 5/24/16 (Fahey, J.)
People v Rodriguez (Leibin)	1st Dept: 136 AD3d 592 (NY)	denied 5/10/16 (Fahey, J.)
People v Rodriguez (Miguel)	1st Dept: 135 AD3d 526 (NY)	denied 5/10/16 (Stein, J.)
People v Rosado	2d Dept: 134 AD3d 1133 (Kings)	denied 5/19/16 (Rivera, J.)
People v Rosario	1st Dept: 132 AD3d 486 (NY)	denied 5/16/16 (Abdus-Salaam, J.)
People v Rosser	1st Dept: 136 AD3d 431 (NY)	denied 5/6/16 (Stein, J.)

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People v Rovinsky	2d Dept: 135 AD3d 969 (Suffolk)	denied 5/10/16 (Stein, J.)
People v Ruddy	3d Dept: 135 AD3d 1241 (Saratoga)	denied 5/10/16 (Fahey, J.)
People v Rupert	4th Dept: 136 AD3d 1311 (Monroe)	denied 5/9/16 (Stein, J.)
People v Saaverda	2d Dept: 132 AD3d 701 (Queens)	denied 5/23/16 (Abdus-Salaam, J.)
People v Sabino	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 42 Misc 3d 141(A) (Kings)	dismissed 5/9/16 (Pigott, J.)
People v Schumaker	4th Dept: 136 AD3d 1369 (Erie)	denied 5/3/16 (Garcia, J.)
People v Simmons (Michael)	3d Dept: 129 AD3d 1200 (St. Lawrence)	denied 5/19/16 (Abdus-Salaam, J.)
People v Simmons (Ricardo)	2d Dept: 133 AD3d 694 (Rockland)	denied 5/2/16 (Stein, J.)
People v Sirico	2d Dept: 135 AD3d 19 (Suffolk)	denied 5/23/16 (Abdus-Salaam, J.)
People v Smith (Darryl)	1st Dept: 136 AD3d 532 (Bronx)	denied 5/4/16 (DiFiore, Ch. J.)
People v Smith (Eugene)	1st Dept: 136 AD3d 603 (Bronx)	denied 5/13/16 (Fahey, J.)
People v Smith (Paul)	3d Dept: 136 AD3d 1107 (St. Lawrence)	denied 5/13/16 (Pigott, J.)
People v Smith (Theodore)	App Term, 2d Dept, 9th & 10th Jud Dists: 50 Misc 3d 134(A) (Dutchess)	denied 5/13/16 (Pigott, J.)
People v Smith (William)	3d Dept: 137 AD3d 1425 (Warren)	denied 5/20/16 (Pigott, J.)
People v Stewart	2d Dept: 136 AD3d 624 (Kings)	denied 5/13/16 (Pigott, J.)
People v Stover	County Ct, 3/14/16 (Erie)	denied 5/31/16 (Garcia, J.)
People v Swenson	2d Dept: 135 AD3d 972 (Westchester)	denied 5/19/16 (Rivera, J.)
People v Taylor (David)	3d Dept: 135 AD3d 1237 (Albany)	denied 5/13/16 (Fahey, J.)
People v Taylor (Myles)	4th Dept: 136 AD3d 1331 (Erie)	denied 5/3/16 (Garcia, J.)
People v Terrell	1st Dept: 134 AD3d 651 (Bronx)	denied 5/19/16 (Rivera, J.)
People v Thompson	1st Dept: 136 AD3d 429 (Bronx)	denied 5/19/16 (Rivera, J.)
People v Toussaint	1st Dept: 137 AD3d 679 (NY)	denied 5/31/16 (DiFiore, Ch. J.)
People v Truitt	4th Dept: 132 AD3d 1268 (Erie)	denied 5/23/16 (Abdus-Salaam, J.) (Appeal No. 1)

People v Upson	2d Dept: 134 AD3d 1058 (Westchester)	denied 5/23/16 (Fahey, J.)
People v Valery	2d Dept: 135 AD3d 975 (Nassau)	denied 5/19/16 (Rivera, J.)
People v Vasquez (Aneudi)	4th Dept: 134 AD3d 1430 (Monroe)	denied 5/9/16 (Stein, J.) (Appeal No. 1)
People v Vasquez (Aneudi)	4th Dept: 134 AD3d 1437 (Monroe)	denied 5/9/16 (Stein, J.) (Appeal No. 2)
People v Vasquez (Benancio)	4th Dept: 137 AD3d 1636 (Monroe)	denied 5/31/16 (DiFiore, Ch. J.)
People v Vaughn	3d Dept: 135 AD3d 1158 (Broome)	denied 5/10/16 (Fahey, J.)
People v Vernon	4th Dept: 136 AD3d 1276 (Erie)	denied 5/4/16 (DiFiore, Ch. J.) (Appeal No. 1)
People v Washington (Kevin)	2d Dept: 134 AD3d 963 (Nassau)	denied 5/17/16 (Rivera, J.)
People v Washington (Phillip)	1st Dept: 135 AD3d 565 (Bronx)	denied 5/19/16 (Rivera, J.)
People v Watkins	1st Dept: 134 AD3d 478 (NY)	denied 5/2/16 (Stein, J.)
People v Wesley	App Term, 1st Dept: 50 Misc 3d 145(A) (NY)	denied 5/31/16 (DiFiore, Ch. J.)
People v White (Clifton)	2d Dept: 136 AD3d 846 (Queens)	denied 5/23/16 (Fahey, J.)
People v White (Michael)	4th Dept: 134 AD3d 1472 (Ontario)	denied 5/17/16 (Rivera, J.)
People v Wiggins (Reginald)	1st Dept: 132 AD3d 514 (NY)	denied 5/19/16 (Abdus-Salaam, J.)
People v Wiggins (Robert)	2d Dept: 135 AD3d 976 (Orange)	denied 5/13/16 (Fahey, J.)
People v Williams (Danny)	2d Dept: 136 AD3d 686 (Queens)	denied 5/5/16 (Stein, J.)
People v Williams (Steven)	2d Dept: 136 AD3d 637 (Kings)	denied 5/19/16 (Rivera, J.)
People v Wilson	4th Dept: 134 AD3d 1396 (Jefferson)	denied 5/19/16 (Rivera, J.)
People v Wyche	1st Dept: 136 AD3d 599 (Bronx)	denied 5/10/16 (Fahey, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices *

(May 1, 2016 through May 31, 2016)

People v Bryant	1st Dept: 137 AD3d 401 (NY)	granted 5/24/16 (Tom, J.)
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* Includes only applications that were granted.

People v Degraffenreid 1st Dept: 138 AD3d 456 (Bronx)

granted 5/31/16
(Tom, J.)

PATRICK H. BARCLAY, Also Known as INDEPENDENT ANCHOR,
Appellant, v CITIBANK, N.A., Respondent.

Submitted May 2, 2016; decided June 14, 2016

Reported below, 136 AD3d 551.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JENNIFER CANGRO, Appellant, v JOHN Z. MARANGOS, Respondent.

Submitted May 2, 2016; decided June 14, 2016

Reported below, 132 AD3d 573.

Motion for reconsideration of this Court's February 11, 2016 dismissal order denied [see 26 NY3d 1113 (2016)].

Judge GARCIA taking no part.

GREENS AT HALF HOLLOW HOME OWNERS ASSOCIATION, INC., for
Itself and on Behalf of the Residents of THE GREENS AT
HALF HOLLOW, et al., Appellants-Respondents, v GREENS
GOLF CLUB, LLC, et al., Respondents-Appellants.

Submitted April 18, 2016; decided June 14, 2016

Reported below, 131 AD3d 1108.

Motion by plaintiffs for leave to appeal denied. Cross motion, insofar as defendant Greens at Half Hollow, LLC seeks leave to appeal, dismissed upon the ground that it is not a party aggrieved (*see* CPLR 5511); cross motion for leave to appeal otherwise denied.

GREENS AT HALF HOLLOW HOME OWNERS ASSOCIATION, INC., for
Itself and on Behalf of the Residents of THE GREENS AT
HALF HOLLOW, et al., Appellants-Respondents, v GREENS
GOLF CLUB, LLC, et al., Respondents-Appellants.

Submitted May 9, 2016; decided June 14, 2016

Reported below, 131 AD3d 1108.

Motion by Town of Huntington for leave to file a brief amicus curiae on the motion by plaintiffs for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of JOSELYN S. SUFFOLK COUNTY DEPARTMENT OF
SOCIAL SERVICES, Respondent; LIZZETH E., Appellant.

Submitted May 2, 2016; decided June 14, 2016

Reported below, 133 AD3d 608.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ILIA KAJO et al., Appellants, v E.W. HOWELL CO., INC., et al.,
Defendants/Third-Party Plaintiffs-Respondents, et al., De-
fendant. CUMBERLAND ELECTRIC CORP., Third-Party De-
fendant-Respondent.

Submitted May 9, 2016; decided June 14, 2016

Reported below, 120 AD3d 1195.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ROBERT A. MIAZGA, Appellant, v MICHAEL D. ASSAF et al.,
Respondents.

Submitted April 18, 2016; decided June 14, 2016

Reported below, 136 AD3d 1131.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge STEIN taking no part.

JONATHAN OCANA, Respondent, v QUASAR REALTY PARTNERS
L.P., Appellant.

Submitted April 25, 2016; decided June 14, 2016

Reported below, 137 AD3d 566.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JAMES KALAMARAS, Appellant, v MICHAEL SPOSATO, Respondent.

Submitted April 25, 2016; decided June 14, 2016

Reported below, 2016 NY Slip Op 63554(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JAMES KALAMARAS, Appellant, v MICHAEL SPOSATO, Respondent.

Submitted April 25, 2016; decided June 14, 2016

Reported below, 2016 NY Slip Op 66213(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. FRANK MONTE, Appellant, v WARDEN et al., Respondents.

Submitted April 18, 2016; decided June 14, 2016

Reported below, 2016 NY Slip Op 65867(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. ERIC SMITH, Appellant, v SUSAN KICKBUSH, Respondent.

Submitted May 9, 2016; decided June 14, 2016

Motion for leave to appeal dismissed upon the ground that it does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5602). Motion for poor person relief dismissed as academic.

In the Matter of PITTSFORD CANALSIDE PROPERTIES, LLC, Respondent, v VILLAGE OF PITTSFORD et al., Appellants, VILLAGE OF PITTSFORD PLANNING BOARD et al., Respondents.

Submitted April 25, 2016; decided June 14, 2016

Reported below, 137 AD3d 1566.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

MIRTA RAMOS, Appellant, v RENATA VANJA WEBER, M.D., et al., Respondents.

Submitted May 2, 2016; decided June 14, 2016

Reported below, 118 AD3d 408.

Motion for reargument of motion for leave to appeal denied [*see* 26 NY3d 1127 (2016)].

Judge GARCIA taking no part.

In the Matter of DEAN A. RESKAKIS, a Disbarred Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND, ELEVENTH, AND THIRTEENTH JUDICIAL DISTRICTS, Respondent.

Submitted May 16, 2016; decided June 14, 2016

Reported below, 133 AD3d 42.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

ARMAND RETAMOZZO, Appellant, v DIANA FRIEDLAND et al., Respondents.

Submitted May 16, 2016; decided June 14, 2016

Reported below, 127 AD3d 532; 2015 NY Slip Op 88147(U).

Motion for reargument denied [*see* 27 NY3d 947 (2016)].

WILLIE SPIRLES, Appellant, v STATE OF NEW YORK, Respondent.

Submitted May 16, 2016; decided June 14, 2016

Reported below, 2016 NY Slip Op 66737(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v WALTER J.R., Appellant.

Submitted May 2, 2016; decided June 14, 2016

Reported below, 2015 NY Slip Op 92941(U).

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 960 (2016)].

In the Matter of YAN PING XU, Appellant, v NEW YORK CITY DEPARTMENT OF HEALTH AND MENTAL HYGIENE, Respondent.

Submitted May 16, 2016; decided June 14, 2016

Reported below, 121 AD3d 559.

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 902 (2016)].

[55 NE3d 441, 35 NYS3d 681]

LITTLETON CONSTRUCTION LTD., Appellant, v HUBER CONSTRUCTION, INC., et al., Respondents.

Argued May 5, 2016; decided June 14, 2016

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 6, 2015. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Erie County (John A. Michalek, J.), which had, insofar as appealed from, denied in part defendants' motion for sum-

mary judgment dismissing the amended complaint; (2) granted the motion in its entirety; and (3) dismissed the amended complaint.

Littleton Constr. Ltd. v Huber Constr., Inc., 125 AD3d 1404, affirmed.

HEADNOTE

Joint Ventures — Breach of Joint Venture Agreement — Management Fees — Summary Judgment

In a proceeding commenced by plaintiff construction company seeking a portion of the management fees collected by defendant construction company as part of the payment for projects completed by the parties in connection with their joint venture, the order of the Appellate Division, which granted defendants' motion for summary judgment dismissing the complaint, was affirmed. Resolution of the motion rested on the validity and interpretation of various documents alleged to govern the parties' relationship. Regardless of which party created the joint venture's purported operating agreement, defendants established that such document was not executed by defendant construction company, and plaintiff failed to raise a triable issue of fact in response. Thus, the joint venture could not be governed by the terms of that unenforceable document. With the operating agreement invalidated, the governing contract was the parties' memorandum of understanding, which was indisputably signed by both parties, and plainly provided for a 9% management fee to defendant construction company, which it was not required to share with plaintiff.

APPEARANCES OF COUNSEL

Freid and Klawon, Williamsville (*Adam B. Connors* and *Wayne I. Freid* of counsel), for appellant.

Phillips Lytle LLP, Buffalo (*Michael B. Powers* and *William J. Simon* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff commenced this proceeding against defendants Huber Construction, Inc. and Littleton/Huber Joint Venture seeking, as relevant to this appeal, a portion of the management fees collected by Huber as part of the payment for projects completed by the parties in connection with the joint venture. Defendants moved for summary judgment dismissing the complaint. Resolution of the motion rested on the validity and interpretation of various documents alleged to govern the parties' relationship. Supreme Court partially granted defendants' motion to the extent that it dismissed all causes of action except the one seeking recovery of a portion of the manage-

ment fees. The Appellate Division, with two Justices dissenting, modified Supreme Court's order by dismissing the complaint in its entirety (125 AD3d 1404 [4th Dept 2015]). Plaintiff appealed to this Court as of right (*see* CPLR 5601 [a]).

Regardless of which party created the joint venture's purported operating agreement, defendants met their initial burden of establishing that such document was not executed by Huber. Plaintiff failed to raise a triable issue of fact in response. The joint venture, therefore, could not be governed by the terms of that unenforceable document (*see Gilbert Frank Corp. v Federal Ins. Co.*, 70 NY2d 966, 967 [1988]).

With the operating agreement invalidated, the governing contract was the parties' memorandum of understanding, which was indisputably signed by both parties. If a contract is complete, clear and unambiguous, it must be enforced according to its plain meaning (*see Beardslee v Inflection Energy, LLC*, 25 NY3d 150, 157 [2015]; *Schron v Troutman Sanders LLP*, 20 NY3d 430, 432 [2013]). The memorandum of understanding plainly provides for a 9% management fee to Huber, which Huber was not required to share with plaintiff. Thus, under the terms of that agreement, defendants were entitled to summary judgment dismissing plaintiff's cause of action seeking a portion of the management fees. Plaintiff's remaining arguments are lacking in merit.

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN and GARCIA concur; Judge FAHEY taking no part.

Order affirmed, with costs, in a memorandum.

[55 NE3d 1027, 36 NYS3d 54]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARTE-SHA DAVIDSON, Appellant.

Argued April 26, 2016; decided June 7, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Tompkins County Court (John C. Rowley, J.), entered March 10, 2015. The County Court (1) granted the People's appeal from a corrected decision and order of the Lansing Town Court (John C. Howell, J.), which had granted defendant's motion to dismiss the charges against him

pursuant to CPL 170.30 (1) (f); (2) reversed the Town Court's corrected decision and order; and (3) remanded the matter to the Town Court for further proceedings.

HEADNOTE

District and Prosecuting Attorneys — Special Prosecutor — Authority to Prosecute Abuse and Neglect Crimes against Vulnerable Persons in Local Courts

Executive Law § 552 (2) (c), which provides that a special prosecutor employed pursuant to the Protection of People with Special Needs Act (Executive Law art 20) to protect “vulnerable persons” as defined in Executive Law § 550 (5) “may, after consultation with the district attorney . . . attend in person” any county or supreme court or grand jury proceeding for the purpose of prosecuting abuse and neglect crimes committed against such persons, does not prohibit the special prosecutor from prosecuting abuse and neglect cases in local criminal courts. Accordingly, Town Court erred in dismissing the charges against defendant employee of a residential center arising out of an alleged incident with a resident on the ground that the special prosecutor lacked authority to prosecute offenses in local criminal courts. There is no indication from the statute that the special prosecutor's powers are limited by section 552 (2) (c). That section merely sets forth the requirement that the special prosecutor consult with the district attorney of the pertinent county should he or she wish to appear in County Court or Supreme Court, or before the grand jury, for purposes of managing or conducting before such court or grand jury a criminal action or proceeding involving the abuse or neglect of a vulnerable person. There is no indication that the statute governs proceedings in local courts at all.

APPEARANCES OF COUNSEL

Robert R. LaLonde, Ithaca, for appellant.

Patricia Gunning, *Special Prosecutor and Inspector General*, Delmar (*Robin A. Forshaw* of counsel), for respondent.

Eric T. Schneiderman, *Attorney General*, New York City (*Barbara D. Underwood*, *Anisha S. Dasgupta* and *Andrew W. Amend* of counsel), for Attorney General of the State of New York, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of County Court should be affirmed.

In 2012, the legislature enacted article 20 of the Executive Law as part of the “Protection of People with Special Needs Act” to protect those “who are vulnerable because of their reliance on professional caregivers to help them overcome physical, cognitive and other challenges” (L 2012, ch 501, §§ 1, 2). Specifically, the enactment calls for the creation of a “justice center”—the primary purpose of which is to protect “vulner-

able persons” as defined in Executive Law § 550 (5). The center was granted “concurrent authority with district attorneys to prosecute abuse and neglect crimes committed against [vulnerable] persons,” thereby bolstering the State’s ability to respond to such crimes “without creating additional burdens on local law enforcement” (L 2012, ch 501, § 2, part A, § 1).

In carrying out that task, Executive Law § 552 (2) (a) mandates that the justice center “employ a special prosecutor” who has

“the duty and power: (i) to investigate and prosecute offenses involving abuse or neglect . . . ; and (ii) to cooperate with and assist district attorneys and other local law enforcement officials in their efforts against such abuse or neglect of vulnerable persons.”

Pursuant to that law, the special prosecutor

“may, after consultation with the district attorney . . . , attend in person any term of the county court or supreme court having appropriate jurisdiction, including an extraordinary special or trial term of the supreme court . . . , or appear before the grand jury thereof, for the purpose of managing and conducting in such court or before such jury a criminal action or proceeding concerned with an offense where any conduct constituting or requisite to the completion of or in any other manner related to such offense involved the abuse or neglect of a vulnerable person In such case, such special prosecutor . . . may exercise all the powers and perform all the duties in respect of such actions or proceedings which the district attorney would otherwise be authorized or required to exercise or perform” (Executive Law § 552 [2] [c]).

Defendant, an employee of the Finger Lakes Residential Center, was charged in Town Court with endangering the welfare of a child (Penal Law § 260.10 [1]) and harassment in the second degree (Penal Law § 240.26), arising from an incident that allegedly occurred at the Center between defendant and a 14-year-old resident. Defendant moved to dismiss the misdemeanor information pursuant to CPL 170.30 (1) (f) on the grounds that the special prosecutor did not have the authority to prosecute offenses in local criminal courts and that such authority was limited to prosecuting abuse and

neglect cases in County and Supreme Court as evidenced by Executive Law § 552 (2) (c). Town Court agreed, holding that the language of section 552 (2) (c) served as a jurisdictional impediment to the special prosecutor's ability to appear and prosecute abuse and neglect cases in local criminal courts.

On appeal, County Court reversed and remanded to Town Court for further proceedings, holding that rather than limiting the special prosecutor's power, section 552 (2) (c) constituted "an additional grant of authority permitting participation in and prosecution of felonies before the grand jury and the appropriate superior court." County Court did not address defendant's constitutional argument since it had not been raised before Town Court and therefore not preserved for appellate review; nor did it reach defendant's further contention that the special prosecutor's failure to consult with the district attorney's office before appearing in local criminal court was a fatal flaw mandating dismissal of the charges. In light of this, this Court's review is limited solely to the question whether Executive Law § 552 (2) (c) prohibits the special prosecutor from prosecuting abuse and neglect cases in local criminal courts.

County Court's order should be affirmed. There is no indication from the statute that the special prosecutor's powers are limited by section 552 (2) (c). That section merely sets forth the requirement that the special prosecutor consult with the district attorney of the pertinent county should the special prosecutor wish to appear in County Court or Supreme Court, or before the grand jury, for the purposes of managing or conducting before such court or grand jury a criminal action or proceeding involving the abuse or neglect of a vulnerable person. There is no indication that the statute governs proceedings in local courts at all.*

RIVERA, J. (dissenting). In this case the Court must determine the powers of the Special Prosecutor for the Protection of People with Special Needs, including whether the Special Prosecutor has full and complete prosecutorial authority independent from the District Attorney. Defendant claims that Special Prosecutors have no authority under Executive Law § 552 (2) (c) to initiate or pursue a criminal proceeding against her in Town Court because that provision only allows the

* The dissent addresses issues that are not before us and we do not consider them given the procedural posture of the case.

Special Prosecutor to appear before County and Supreme Court and a grand jury. Defendant further argues that an unelected Special Prosecutor may not be appointed to appear in a criminal matter without input from the District Attorney, who in her case declined to prosecute, thus foreclosing any action by the Special Prosecutor here. As a matter of law, I agree with the majority that defendant reads into section 552 (2) (c) a proscription on the Special Prosecutor's authority and Town Court's jurisdiction which is unsupported by the statutory text. However, I disagree that an affirmance is appropriate in this case.

The legislature may not transfer or diminish the core responsibilities and prosecutorial powers of a constitutionally elected officer, such as a District Attorney, through appointment of an unelected official (*see People ex rel. Wogan v Rafferty*, 208 NY 451, 456 [1913]; *see also* NY Const, art V, § 1 [the "attorney-general shall be chosen at the . . . general election"]; art XIII, § 13 [a] ["In each county a district attorney shall be chosen by the electors once in every three or four years as the legislature shall direct"]). The District Attorney has the ultimate responsibility for prosecuting crimes and offenses (*People v Soddano*, 86 NY2d 727, 728 [1995]), and the sole discretion to conduct all phases of criminal prosecutions (*Matter of Soares v Carter*, 25 NY3d 1011, 1013 [2015]).

Thus, where the legislature creates the office of an appointed special prosecutor for criminal matters involving the safety of a statutorily classified population dependent on state services, and also prohibits interference with the investigatory and prosecutorial duties of the District Attorney, such special prosecutor may only appear in accordance with the authorizing statute, upon consent of the local District Attorney. The record before us is unclear on whether such consent was obtained, and therefore the matter should be remitted for further proceedings to resolve this issue.

I.

The legislature enacted the Protection of People with Special Needs Act "to strengthen and standardize the safety net for vulnerable persons, adults and children alike, who are receiving care from New York's human service agencies and programs . . . [due to] disabilities or other life circumstances" (Protection of People with Special Needs Act, L 2012, ch 501, § 2, part A, § 1 [legislative findings and purpose]). The act "creates a set of uniform safeguards, to be implemented by a justice center

whose primary focus will be on the protection of vulnerable persons” (*id.*). The legislature intended that “the justice center will have concurrent authority with district attorneys to prosecute abuse and neglect crimes committed against such persons” in order “[t]o bolster the ability of the state to respond more effectively to abuse and neglect of vulnerable persons, without creating additional burdens on local law enforcement” (*id.*).

Pursuant to the statutory design, the Justice Center is housed within the executive branch, and headed by an executive director appointed by the Governor, by and with the advice and consent of the senate (Executive Law § 551 [1]). In furtherance of the legislative purpose to provide additional resources to stem abuse and neglect crimes, the act mandates the formation of a prosecution unit within the Justice Center, and that the Justice Center employ “a special prosecutor and inspector general” (Executive Law § 552 [2] [a]). These prosecutorial staff members are unelected officials appointed by the Governor, without senate approval (*id.*).

In section 552 (2) (a) the act provides that the Special Prosecutor has “the duty and power: (i) to investigate and prosecute offenses involving abuse or neglect . . . committed against vulnerable persons by custodians . . . and (ii) to cooperate with and assist district attorneys and other local law enforcement officials in their efforts against such abuse or neglect of vulnerable persons” (Executive Law § 552 [2] [a]). This grant of power is subordinate to the existing authority of District Attorneys, and is explicitly limited by the legislative mandate that “nothing herein shall interfere with the ability of district attorneys at any time to receive complaints, [and] investigate and prosecute any suspected abuse or neglect” (*id.*).

In the same vein, in accordance with section 552 (2) (b) the Special Prosecutor must give prior notice to the local District Attorney before applying for a search warrant, except in exigent circumstances, in which case notice must be provided “as soon thereafter as is practicable” (Executive Law § 552 [2] [b]). Most significantly, under section 552 (2) (c) the Special Prosecutor “[may] attend in person any term of the county court or supreme court having appropriate jurisdiction . . . or appear before the grand jury thereof, for the purpose of . . . [conducting] a criminal action or proceeding” for any action related to an offense that involved the abuse or neglect of a

vulnerable person, only “after consultation with the district attorney as to the time and place of such attendance or appearance” (Executive Law § 552 [2] [c]). Thus, contrary to defendant’s argument, under the act there is no wholesale prohibition on the Special Prosecutor’s authority to pursue criminal matters in Town Court. Further, and apart from the lack of textual support for defendant’s argument, her construction of section 552 (2) (c) would undermine the legislative criminal justice goal of providing greater human and programmatic resources as a means to enhance prosecutions across the state, without the added burden on local law enforcement (*see* L 2012, ch 501, § 2, part A, § 1 [legislative findings]). However, while I therefore agree with the majority’s conclusion that a Special Prosecutor may appear and pursue criminal matters in Town Court, this does not end our inquiry.¹ Defendant’s arguments about the role of Special Prosecutors under the act necessitates this Court determine the scope of their power.

1. The majority reaches its conclusion notwithstanding that, according to my colleagues, “[t]here is no indication that the statute governs proceedings in local courts at all” (majority mem at 1086). This suggested possible alternative ground for the Special Prosecutor’s authority ignores the text and intent of the act, which is to increase resources to enhance prosecution of abuse and neglect crimes by empowering the Special Prosecutor to investigate and prosecute these matters (*see* Executive Law § 552 [2] [a] [“such special prosecutor shall have the duty and power . . . to investigate and prosecute offenses involving abuse or neglect . . . committed against vulnerable persons . . . and . . . to cooperate with and assist district attorneys and other local law enforcement officials”]; *see also* Protection of People with Special Needs Act, L 2012, ch 501, § 2, part A, § 1 [legislative findings and purpose] [the act “creates a set of uniform safeguards, to be implemented by a justice center whose primary focus will be on the protection of vulnerable persons”]). Moreover, the comprehensive scope of the Justice Center’s authority on matters involving the population affected by the act belies the narrow interpretation suggested by the majority (*see* L 2012, ch 501, § 2, part A, § 1 [legislative findings and purpose] [“(t)o bolster the ability of the state to respond more effectively to abuse and neglect of vulnerable persons, without creating additional burdens on local law enforcement, the justice center will have concurrent authority with district attorneys”]).

Of course, if the majority were correct, the act would still be interpreted to require consent from the District Attorney. This Court has expressly held that while a District Attorney can delegate the prosecution of petty crimes or offenses, the District Attorney must “retain the ultimate, nondelegable responsibility for prosecuting” such crimes (*see Soddano*, 86 NY2d at 728). Thus, if the act did not apply to Town Court then the District Attorney retained all prosecutorial authority with regard to that court. Consequently, the Justice Center Special Prosecutor could only prosecute an individual in Town Court with the consent of the District Attorney. Consent which is not evidenced from the face of the record.

II.A.

Resolution of defendant's appeal requires this Court to further consider the knotty question of whether the legislature may create an unelected, Governor-appointed Special Prosecutor, independent of the local District Attorney. Defendant originally raised this issue when she claimed, during her initial argument to Town Court, that "[u]nder the New York State Constitution the only entity with the authority to prosecute criminal matters is the county district attorney." Defendant continues to assert that where neither the District Attorney nor Attorney General is the appointed Special Prosecutor, appointment of any other person is unlawful absent input from the local District Attorney, who serves as the elected prosecutor for the County, in accordance with County Law § 700 (1) and the State Constitution, article XIII, § 13. She distinguishes her case from one involving appointment of the Attorney General because, unlike the Special Prosecutor created by the act, the Attorney General is an elected official who historically had a measure of prosecutorial authority independent of local prosecutors, and thus such appointment avoided conflict with local home rule. To be clear, defendant does not argue that the act is unconstitutional, only that our legal system abhors unchecked prosecutorial authority, and in order to protect the population from the caprice and zealotry of an unelected Special Prosecutor there must be prescriptions on unbridled power.²

The Attorney General, appearing as *amicus curiae*, goes further, and argues, as a constitutional matter, that the Special Prosecutor may proceed with defendant's prosecution only with the local District Attorney's consent.³ According to the Attorney General, the legislature may not transfer the essential prosecutorial function of an elected constitutional officer to persons

2. Regardless of whether defendant now chooses to focus her argument on the statutory text of the act she specially asserted in her appeal to County Court that the act is unconstitutional. Moreover, for the reasons I discuss we are squarely presented with questions related to the authority of the Special Prosecutor as it impacts on the constitutional nondelegable powers of District Attorneys.

3. In the courts below, defendant failed to notify the Attorney General that she was asserting a constitutional challenge to the act, as required by Executive Law § 71 (1), and neither Town nor County Court ordered such notice. However, on appeal to this Court, the Attorney General became aware of this matter without the statutory notification, and appears as *amicus* in

(n. cont'd)

selected by appointment. Further, given that the District Attorney has the ultimate responsibility for whether and who to prosecute, those powers cannot be diminished by assignment to the Special Prosecutor. Nevertheless, the Attorney General argues that the act may be construed to preserve the District Attorney's constitutional power if we interpret the act's language and purpose to require consent.

In response, the Justice Center claims it has complete independence from the District Attorney, and may prosecute at will, based on the legislature's intent that Special Prosecutors have concurrent authority with the District Attorney, and the act's specific grant of power to investigate and prosecute. The Justice Center notes that the legislature's choice to amend CPL 1.20 (32) to include the Special Prosecutor within the definition of District Attorney is further evidence of the intent to place the Special Prosecutor on par with the County District Attorneys.⁴ The Justice Center specifically argues that it is the legislature which determines the authority of District Attorneys and may appoint non-District Attorneys to prosecute, including non-elected officials, and has done so in the past.

The Justice Center's arguments are unpersuasive. Applicable state constitutional provisions and our case law explaining the historical prosecutorial authority of the District Attorney and Attorney General do not support the sweeping independent power advocated by the Justice Center. Indeed, if the act were construed to permit the gubernatorial appointment of a non-elected special prosecutor, independent of the District Attorneys and with unfettered prosecutorial power, such legislative delegation would be unconstitutional.

B.

"Where the Constitution establishes a specified office, or recognizes its existence, and prescribes the manner in which it shall be filled, the legislature may not transfer any essential function of the office to a different officer chosen in a different manner" (*People ex rel. Wogan v Rafferty*, 208 NY 451, 456 [1913] [citation omitted]). Notwithstanding legislative regulation over some aspect of the duties of constitutional officers,

accordance with section 500.12 of our rules (*see* Rules of Prac of Ct of Appeals [22 NYCRR] § 500.12 [e]).

4. In the alternative, the Justice Center agrees that any constitutional impediment to the exercise of prosecutorial authority may be resolved by authorizing the Special Prosecutor to act with the consent of the local District Attorney.

the legislature cannot “depriv[e] them of a substantial attribute of the office” (*id.*). To permit such a trespass would sanction an inherently unconstitutional act because

“[w]hen the legislature . . . assumes the power to take from a constitutional officer the substance of the office itself, and to transfer it to another who is to be appointed in a different manner and to hold the office by a different tenure than that which was provided for by the Constitution, it is not a legitimate exercise of the right to regulate the duties or emoluments of the office, but an infringement upon the constitutional mode of appointment” (*id.* at 456-457 [internal quotation marks omitted]; *see also Haggerty v City of New York*, 267 NY 252, 258 [1935] [legislature could control and limit salaries of a municipal court because it was not, and did not have all the powers of, a *constitutional* court]).

The District Attorney and Attorney General are constitutional officers, chosen by election (*see* NY Const, art V, § 1; art XIII, § 13). The Constitution is silent as to their duties, and “does not specify or allocate the powers of the respective offices” (*People v Gilmour*, 98 NY2d 126, 130 [2002]), although it designates the District Attorney as a law enforcement officer (NY Const, art XIII, § 13). However, this Court has recognized the essential powers of the District Attorney and Attorney General, based on their respective prosecutorial roles (*Gilmour*, 98 NY2d at 130-133).

Historically, both the District Attorney and Attorney General were responsible for the prosecution of crimes in New York State (*id.* at 130). While the Attorney General’s original exclusive general prosecutorial authority no longer exists, it has instead given way to specific statutory authorizations (*id.* at 131). For example, the Attorney General has power to prosecute under Executive Law § 63 and General Business Law §§ 347, 358 (*see* Executive Law § 63 [2]-[3] [allowing the Attorney General to assume prosecutorial responsibility for local crimes at the request of the Governor]; General Business Law §§ 347 [authority to prosecute certain crimes], 358 [authority to prosecute securities fraud]). In contrast, under County Law § 700 (1) District Attorneys are authorized to prosecute “crimes and offenses cognizable by the courts of the count[ies]” (*Gilmour*, 98 NY2d at 127).

The Court has time and again defined the essential characteristic of the District Attorney’s prosecutorial authority as the

“discretionary power to determine whom, whether and how to prosecute” (*Matter of Haggerty v Himelein*, 89 NY2d 431, 436 [1997], quoting *Matter of Schumer v Holtzman*, 60 NY2d 46, 52 [1983]). The Court explained in *Schumer* that while, for example, a District Attorney may “delegate *duties* to her assistants . . . she may not transfer the fundamental responsibilities of the office to them” (60 NY2d at 53 [emphasis added]). The Court stated in *Haggerty* that “the essence of a District Attorney’s constitutional, statutory and common-law prosecutorial authority is the discretionary power to determine whom, whether and how to prosecute [a criminal] matter, the responsibility and accountability for which is not freely transferable to anyone else” (89 NY2d at 436 [internal quotation marks and citation omitted]). We recently reaffirmed that the “authority to compel the prosecution of criminal actions . . . is solely within the broad authority . . . of the district attorney’s executive power to conduct all phases of criminal prosecution” (*Soares*, 25 NY3d at 1013).

This Court’s decision in *Soddano* does not put in question this fundamental understanding of the prosecutorial function of the District Attorney. In *Soddano*, the Court held that County Law § 700 (1) did not require the personal presence of the local District Attorney at every hearing in the county, and, concluded in accordance with a prior line of cases that “the prosecution of petty crimes or offenses may be delegated to subordinates and other public or administrative officers and even to private attorneys” (86 NY2d at 728, citing *People v DeLeyden*, 10 NY2d 293, 294 [1961], *People v Czajka*, 11 NY2d 253, 254 [1962]). Nevertheless, District Attorneys “retain the ultimate, nondelegable responsibility for prosecuting all crimes and offenses” and may allow others to appear on their behalf only “so long as they are kept aware of all the criminal prosecutions in the county” (*id.*). Thus, while County Law § 701 (1) and this Court’s case law allow for ad hoc prosecutions by non-district attorneys, our precedent and this state’s constitutional principles do not allow the legislature to create a standing office empowered to handle a category of designated criminal matters related to the safety of a targeted class of persons, as is the case with the Special Prosecutor. Further, the Justice Center’s prosecutors do not have independent prosecutorial authority because under *Soddano* delegation is permissible only when the District Attorney retains final authority and ultimate responsibility.

Our jurisprudence leads to the conclusion that the legislature may choose to allocate law enforcement powers among constitutional officers, and may permit non-District Attorneys to prosecute certain offenses, but it cannot diminish the essential discretionary prosecutorial power, which we have defined as the choice whether and who to prosecute. In cases of statutory appointments, other than in cases involving the Attorney General, the District Attorney must retain ultimate responsibility for the prosecution.

When interpreting statutes we must make every effort to do so in a manner that avoids a constitutional conflict (*Matter of Lorie C.*, 49 NY2d 161, 171 [1980]; *Rector, Church Wardens & Vestrymen of St. Bartholomew's Church v Committee to Preserve St. Bartholomew's Church*, 84 AD2d 309, 315-316 [1st Dept 1982]). We can do so in this case because the act provides significant limitations on the power of the Special Prosecutor, and requires that the Special Prosecutor exercise authority in cases where the District Attorney's powers are neither impeded nor undermined. Contrary to the Justice Center's view, the Special Prosecutor is not on equal footing with the local District Attorney.

First, the act provides that "nothing herein shall interfere with the ability of district attorneys at any time to receive complaints, investigate and prosecute any suspected abuse or neglect" (Executive Law § 552 [2] [a]). This means that the Special Prosecutor's authority is limited by the choices exercised by the District Attorney. For example, a Special Prosecutor who, without consent, seeks to prosecute an individual that the District Attorney has declined to prosecute would be interfering with the prosecutorial discretion of that District Attorney. Similarly, a prosecution unapproved by the District Attorney may very well interfere with an ongoing investigation—an outcome counter to the legislative intent.

Second, the act does not provide the Special Prosecutor with complete independence because it requires notification to the District Attorney of any warrant application, and also mandates that the Special Prosecutor consult with the District Attorney before appearing in County and Supreme Court or at a grand jury. Although nowhere in the act does it use the word "consent" or state that the District Attorney must give prior consent, given that the act clearly protects the authority of the District Attorney from any interference by the Special Prosecutor, the only manner by which interference can be avoided is by notice,

consultation and consent. While the legislative findings reference concurrent authority of the Special Prosecutor and District Attorney, this prefatory language is not in tension with a construction of the act that requires a local District Attorney's consent. The act is properly understood as granting the Special Prosecutor the full range of prosecutorial power available to the District Attorney, once the District Attorney has consented, and so long as the District Attorney retains ultimate responsibility to prosecute (*see Soddano*, 86 NY2d at 728). Nor does the inclusion of the Special Prosecutor within the definition of District Attorney, as set forth in CPL 1.20 (32), affect this analysis. That section recognizes that the Special Prosecutor's authority to act as a District Attorney only applies within the confines of the act, and, as discussed, the act requires that the District Attorney consent to any prosecution.

As explained above, the act may be interpreted in a manner that is congruent with the constitution and our case law. Specifically, because the District Attorney's essential prosecutorial power to determine whether, who and how to prosecute may not be diminished or transferred to an unelected official, the unelected Special Prosecutor may appear on criminal matters so long as the District Attorney does not object, and retains ultimate responsibility for any prosecution handled by the Special Prosecutor.⁵

In contrast, an independent Special Prosecutor, in the nature described by the Justice Center, would violate the constitution by transferring the essential power to choose whether and who to prosecute from elected District Attorneys to a non-elected official. This would diminish the District Attorneys' core responsibilities as constitutional officers to prosecute crimes and to choose what crimes to prosecute.

There is an important governmental public policy of ensuring independence for those charged with absolute discretion to pursue criminal matters. This policy furthers our democratic system of checks and balances and reaffirms this Court's prior recognition of the "awesome and sometimes coercive force of the State" (*People v Rogers*, 48 NY2d 167, 173 [1979]). This "awesome power" is illustrated by the State's ability to deprive individuals of their liberty and freedom. However, it is equally present when the State charges an individual with a crime.

5. On this appeal the Court need not consider the nature of the District Attorney's involvement in a criminal action initiated by the Special Prosecutor.

Indeed, the mere act of bringing charges can have profound and far-reaching effects on a person. A person's reputation can be ruined, employment terminated, and finances placed in jeopardy, regardless of whether that person is later acquitted or the charges are dropped. Under our constitution and case law the "awesome power" of unchecked prosecutorial authority requires public oversight and cannot be held by an unelected special prosecutor.

III.

The matter should be remanded to determine whether the District Attorney consented to defendant's prosecution. If consent was provided then the prosecution may proceed in Town Court. Otherwise, the Special Prosecutor may not unilaterally prosecute defendant.

Judges PIGOTT, STEIN, FAHEY and GARCIA concur. Judge RIVERA dissents in an opinion in which Judge ABDUS-SALAAM concurs; Chief Judge DiFIORE taking no part.

Order affirmed, in a memorandum.

[55 NE3d 1025, 36 NYS3d 52]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v SHANE MORRIS, Respondent.

Decided June 7, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 27, 2014. The Appellate Division reversed, on the law, a judgment of the Supreme Court, Queens County (Michael B. Aloise, J.), which had convicted defendant, upon a jury verdict, of assault in the first degree and criminal possession of a weapon in the second degree (two counts).

People v Morris, 120 AD3d 835, reversed.

HEADNOTES

Crimes — Jurors — Notice to Counsel of Substantive Juror Inquiry — Failure to Discuss Note before Recalling Jury Did Not Constitute Mode of Proceedings Error

1. In a prosecution wherein the jury sent a note during deliberations requesting a readback of a prosecution witness's testimony, the trial court's

failure to discuss the note and the court's intended response with counsel before recalling the jury into the courtroom did not constitute a mode of proceedings error. Since the trial court read the precise content of the note into the record in the presence of counsel, defendant, and the jury, and did not mislead counsel about the content of the note, it complied with its meaningful notice obligations under CPL 310.30, and counsel was required to object in order to preserve for appellate review any challenge to the trial court's procedure.

Crimes — Jurors — Meaningful Response to Substantive Juror Inquiry — No Mode of Proceedings Error

2. In a prosecution wherein the jury sent a note during deliberations requesting a readback of a prosecution witness's testimony and the court read the precise content of the note into the record in the presence of counsel, defendant, and the jury, but only the witnesses's direct examination testimony was read to the jury, the trial court's alleged failure to provide a meaningful response to the note did not constitute a mode of proceedings error for which no preservation was required. Any claim of error in a trial court's supplemental instructions to a deliberating jury must be preserved for appellate review with a timely objection. Since counsel had meaningful notice of the precise content of the note and was in the courtroom as the readback was conducted, counsel was aware that the court had failed to read the witness's cross-examination testimony. Counsel's knowledge of the precise content of the note and of the court's actual response, or lack thereof, removed the claimed error from the very narrow class of mode of proceedings errors.

APPEARANCES OF COUNSEL

Richard A. Brown, District Attorney, Kew Gardens (Sharon Y. Brodt of counsel), for appellant.

Lynn W.L. Fahey, Appellate Advocates, New York City (David P. Greenberg of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the case remitted to that Court for consideration of the facts and issues raised but not determined on the appeal to that Court.

During deliberations, the jury sent a note requesting a readback of the testimony of a prosecution witness. The trial court did not discuss the content of the note or the court's intended response with counsel on the record before recalling the jury into the courtroom, but the court read the precise content of the note into the record in the presence of counsel, defendant, and the jury. For reasons unknown, although the jury did not limit or narrow its readback request, it is undisputed that only the witness's direct examination testimony was read to the jury and that the witness's cross-examination testimony was not. Counsel did not object, either to the trial court's procedure or to its response to the note.

[1] On appeal, the Appellate Division held that two mode of proceedings errors had occurred and that each error therefore required reversal despite counsel's failure to object (120 AD3d 835 [2d Dept 2014]). First, the Appellate Division held that the trial court's failure to discuss the note and the court's intended response with counsel before recalling the jury into the courtroom constituted a mode of proceedings error (*id.* at 836). That holding was incorrect. The trial court read the precise content of the jury's note into the record in the presence of counsel, defendant, and the jury. Contrary to defendant's contention, the court did not mislead counsel about the content of the note. The court therefore complied with its meaningful notice obligations under CPL 310.30, and counsel was required to object in order to preserve for appellate review any challenge to the trial court's procedure (*see People v Nealon*, 26 NY3d 152, 160-162 [2015]).

[2] Second, the Appellate Division held that the trial court committed a separate mode of proceedings error by failing to fulfill its responsibility to provide a meaningful response to the jury's inquiry (120 AD3d at 836-837). We disagree. We have long held that any claim of error in a trial court's supplemental instructions to a deliberating jury must be preserved for appellate review with a timely objection (*see e.g. People v Keschner*, 25 NY3d 704, 721-722 [2015]; *People v Duncan*, 46 NY2d 74, 80 [1978], *rearg denied* 46 NY2d 940 [1979], *cert denied* 442 US 910 [1979]). That same reasoning applies to the circumstances of this case.

The trial court's alleged failure to provide a meaningful response to the jury's note does not constitute a mode of proceedings error for which no preservation is required (*see People v Mack*, 27 NY3d 534 [2016] [decided herewith]). Counsel had meaningful notice of the precise content of the jury's note and was in the courtroom as the readback was conducted. Counsel was therefore aware that the court had failed to read the witness's cross-examination testimony. Counsel's knowledge of the precise content of the note and of the court's actual response, or lack thereof, removes the claimed error from the very narrow class of mode of proceedings errors for which preservation is not required (*see id.*). "[C]ounsel's silence at a time when any error by the court could have been obviated by timely objection renders the claim unpreserved and unreviewable here" (*People v Starling*, 85 NY2d 509, 516 [1995]).

Inasmuch as defendant failed to preserve his claims regarding the alleged errors, we have no jurisdiction to consider them (*see* NY Const, art VI, § 3 [a]; *People v Kelly*, 5 NY3d 116, 119-120 [2005]).

Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Second Department, for consideration of the facts and issues raised but not determined on the appeal to that Court, in a memorandum.

[55 NE3d 1036, 36 NYS3d 63]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BAASIL
REYNOLDS, Appellant.

Argued April 27, 2016; decided June 7, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 8, 2014. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Michael R. Sonberg, J., at plea and sentencing; Ruth Pickholz, J., at *Outley* hearing), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the third degree and menacing in the second degree.

People v Reynolds, 117 AD3d 478, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Illegal Presentence Condition

1. Defendant failed to preserve for appellate review his claim that his guilty plea should have been vacated because it was conditioned on an alleged illegal presentence condition that he remain incarcerated for an additional six months prior to sentencing. While an illegal sentence is a narrow exception to the preservation rule, defendant's plea was not conditioned on an illegal sentence, nor was the actual sentence imposed illegal. Defendant's sentence was premised on a violation of an admittedly lawful presentence condition—he could not be arrested—and the issue of the propriety of the plea could have been raised prior to sentencing. Thus, defendant's challenge to the presentencing incarceration, which was not part of the sentence, was subject to the preservation rule.

Crimes — Plea Bargaining — Violation of No-Arrest Presentencing Condition — Sufficiency of Inquiry as to Legitimate Basis for Arrest

2. In a prosecution in which defendant pleaded guilty pursuant to a plea agreement by which he would be permitted to withdraw his plea and replead to a lesser charge if he complied with certain presentencing conditions, the trial court's finding and determination regarding defendant's postplea arrest in violation of those conditions comported with the standard articulated in *People v Outley* (80 NY2d 702 [1993]). The judge heard testimony from the complainant and the arresting officer, and defendant testified that the complainant had been the aggressor and had attacked him. The judge found that there was a legitimate basis for defendant's arrest, implicitly rejecting defendant's version of events. Thus, because defendant was given an opportunity to testify to his exculpatory explanation, and his testimony was evidently discredited by the court, the nature of the inquiry was sufficient under the *Outley* standard.

APPEARANCES OF COUNSEL

Richard M. Greenberg, Office of the Appellate Defender, New York City (Michael S. Woodruff and Margaret E. Knight of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Vincent Rivellese and Christopher P. Marinelli of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was charged by indictment with criminal possession of a weapon in the third degree (Penal Law § 265.02 [1]), and menacing in the second and third degrees (Penal Law §§ 120.14 [1]; 120.15). After having been incarcerated for approximately six months during the pendency of his case, defendant accepted a plea agreement whereby he would plead guilty to criminal possession of a weapon in the third degree, a felony, and his sentencing would be delayed to give him a chance to withdraw his plea and replead to a lesser charge—criminal possession of a weapon in the fourth degree, a misdemeanor—and be sentenced to time served if he complied with certain conditions. If defendant failed to comply with these conditions, he would not be permitted to withdraw his guilty plea to the felony and would be sentenced to 2 to 4 years.

The plea conditions required defendant to first, be remanded to the New York City Department of Correction for an additional six months and, second, be released on his own recognizance for a set period of time prior to the sentencing

date, during which time he could not be arrested or alleged to have violated an order of protection in favor of the complainants. Defendant completed the additional six months in jail, satisfying one condition of his plea agreement. After being released for over a year, however, defendant was arrested on the day of his sentencing.* After the court held a hearing pursuant to *People v Outley* (80 NY2d 702 [1993]), it imposed the promised 2-to-4-year prison sentence on the existing felony conviction.

[1] Defendant failed to preserve his claim that his plea of guilty should be vacated because it was conditioned on an alleged illegal presentence condition that he remain incarcerated for an additional six months prior to sentencing. As we recently stated in *People v Williams* (27 NY3d 212, 214 [2016]), “[w]hen a defendant pleads guilty to a crime, he or she generally must move to withdraw the plea or otherwise object to its entry prior to the imposition of sentence to preserve a challenge to the validity of the plea for appellate review.” While this Court has recognized an “illegal sentence” as “a narrow exception to the preservation rule” (see *People v Nieves*, 2 NY3d 310, 315 [2004] [internal quotation marks and citation omitted]), the Appellate Division correctly held that the plea was not conditioned on an illegal sentence, nor was the actual sentence imposed illegal. Contrary to the dissent’s view, defendant’s case is procedurally distinguishable from *People v Avery* (85 NY2d 503, 504 [1995]) and *People v Rodney E.* (77 NY2d 672, 673 [1991]) (dissenting op at 1103-1104) in an important respect. In those cases, the issue was violation of an allegedly illegal presentencing condition that triggered defendant’s sentence. Here, defendant’s sentence was premised on a violation of an admittedly lawful presentence condition—he could not be arrested—and the issue of the propriety of the plea could certainly have been raised prior to sentencing. Thus, defendant’s challenge to the presentencing incarceration, which was not part of the sentence, is subject to the preservation rule (see *Williams*, 27 NY3d at 224).

[2] With respect to the *Outley* hearing, the Appellate Division correctly concluded that the trial court’s finding and determination comported with the standard articulated in

* Defendant was released on December 9, 2009 and was arrested on October 19, 2010. Despite his violation of the no-arrest condition, with the consent of the People and the court, his sentencing was deferred for an additional six months, to June 14, 2011, with the same no-arrest condition. Defendant was arrested on June 14, 2011, hours before his sentencing.

People v Outley (80 NY2d 702 [1993]). There, we held that “proof that defendant actually committed the postplea offense which led to the arrest is not necessary” (80 NY2d at 713). We further noted:

“When an issue is raised concerning the validity of the postplea charge or there is a denial of any involvement in the underlying crime, the court must conduct an inquiry at which the defendant has an opportunity to show that the arrest is without foundation. The nature and extent of the inquiry—whether through a summary hearing pursuant to CPL 400.10 or some other fair means—is within the court’s discretion. The inquiry must be of sufficient depth, however, so that the court can be satisfied—not of defendant’s guilt of the new criminal charge but of the existence of a legitimate basis for the arrest on that charge.” (*Id.* [citations omitted].)

Here, the judge heard testimony from the complainant and the arresting officer. Defendant also testified that the complainant had been the aggressor and had attacked him. The judge found that there was a legitimate basis for defendant’s arrest, implicitly rejecting defendant’s version of events, and that finding was adopted by the sentencing court. Thus, because defendant was given an opportunity to testify to his exculpatory explanation, and his testimony was evidently discredited by the court, the nature of the inquiry was sufficient under our *Outley* standard.

RIVERA, J. (dissenting). A plea agreement conditioned on defendant’s presentence “interim incarceration” lacks statutory authority and renders the plea invalid. Based on our case law, I disagree with the majority that defendant’s claim is unpreserved for our review, and on the merits I conclude the plea should be vacated.

At the time of his plea agreement, defendant had been incarcerated for six months. In accordance with the terms of the agreement, after defendant pleaded guilty to criminal possession of a weapon in the third degree, a class D felony, and menacing in the second degree, a class A misdemeanor, the court would adjourn his sentencing so that he could complete several conditions, including an additional six months of incarceration. The prosecutor explained to defendant that this would result in an aggregate incarceratory period of “a hard

year. ‘Hard,’ meaning a full year in jail.” The other conditions required that upon his release, defendant had to “stay out of trouble” for a year, not be arrested, and also obey the orders of protection entered against him. Defendant would have to appear in court at every adjournment, approximately every three months, for the course of the year. If defendant complied with the terms, the court would allow him to withdraw his guilty plea on the felony charge and sentence him to the lesser offense of the misdemeanor charge alone. If he failed to comply with the plea terms he would be sentenced as a second felony offender to 2 to 4 years’ imprisonment on the felony charge.

The court described the arrangement as “a little unorthodox” and explained to defendant that

“[i]t’s sort of like probation but isn’t probation. In a sense, it’s better than a probationary sentence would be because it’s only -- you only have to stay out of trouble for a year.

“On the other hand, it’s worse than a probationary sentence would be because you have to be in jail for a year until you’re released. . . .

“Let me correct one thing I said. I said the -- IT’S [sic] sort of like probation but it isn’t because you don’t have a probation officer that you need to report to. There’s not a probation officer who’s going to come to wherever it is you’re living and make bed checks. It’s not a probation officer who you have to tell where it is that you’re living. That’s where you’re living?”

Defendant served the additional six months in jail and was released in accordance with the terms of his plea. On the day of his scheduled sentencing, defendant was arrested. The court subsequently concluded that he violated the terms of the plea, and defendant was sentenced to an indeterminate term of 2 to 4 years on the felony.

Defendant asserts that his plea is invalid because the court lacked authority to impose a presentence condition of incarceration. Defendant may pursue this claim on direct appeal, even though he did not object to the condition or move to withdraw his plea, because our rules of preservation do not apply to claims of unlawful “interim” conditions.

Defendant’s case is procedurally indistinguishable from *People v Rodney E.* (77 NY2d 672, 673 [1991]) and *People v*

Avery (85 NY2d 503, 504 [1995]), wherein the Court reached the merits of the defendants' challenges to their respective plea conditions, notwithstanding their failure to object prior to sentencing. Indeed, in describing the proceedings below, the *Avery* Court noted that the Appellate Division erroneously concluded the issue was unpreserved, citing *Rodney E. (Avery)*, 85 NY2d at 505). Like defendant here, the defendants in *Rodney E.* and *Avery* both claimed that the sentencing courts lacked authority to impose presentencing conditions. In *Rodney E.*, the defendant was placed on "interim probation" (77 NY2d at 673), and in *Avery* the defendant was required to participate in a private drug rehabilitation program before sentencing (85 NY2d at 504). Thus, this Court has previously rejected a preservation barrier to claims that a presentencing condition is illegal, and therefore we may consider defendant's challenge to the legality of his post-conviction, presentence period of "interim" incarceration.¹

Turning to the merits, a court has discretion to impose an appropriate sentence and to structure a plea on conditions that "do not violate any statute or contravene public policy" (*Avery*, 85 NY2d at 507 [citation omitted]). Here, the six months of presentence incarceration lacks a statutory basis, and constitutes a strictly penal sanction unrelated to any legislatively-approved conditions intended to promote a defendant's lawful conduct and rehabilitation.

Pursuant to CPL 400.10 (4), "[a]fter conviction and prior to sentencing the court may adjourn sentencing to a subsequent date and order the defendant to comply with any of the conditions" set forth in Penal Law § 65.10 (2) (a)-(f) and (l). The presentence incarceration imposed by the court here is not one of the specific conditions provided for in section 65.10 (2) (a)-(f). Those conditions relate to law abiding conduct and rehabilitation.² Nor does the presentence incarceration fit within the language of section 65.10 (2) (l), which provides a court with

1. The majority attempts to distinguish *Rodney E.* and *Avery* on the superficial ground that the defendants in those cases violated an illegal presentence condition, while here defendant's sentence is premised on his violation of a lawful no-arrest condition (majority mem at 1101). As illustrated in *Rodney E.* and *Avery* the dispositive and prefatory issue is the court's underlying authority to impose a condition post conviction and before sentencing (*Rodney E.*, 77 NY2d at 673; *Avery*, 85 NY2d at 505). Therefore, an illegal presentence condition, and its effect on the validity of the plea agreement, does not escape review because defendant complies with the condition.

2. Under Penal Law § 65.10 (2) (a)-(f)

(n. cont'd)

the discretion to require a defendant to “[s]atisfy any other conditions reasonably related to [defendant’s] rehabilitation.” Defendant’s six months in jail was not rehabilitative within the meaning of section 65.10 (2) (1), but rather quintessentially punitive.

The condition imposed on defendant is not authorized under any other provision that might arguably permit incarceration. He was not incarcerated in accordance with Penal Law § 65.10 (2), which allows the court to incarcerate a person who has taken a plea for the limited purpose of providing medical or substance abuse treatment. Further, defendant correctly argues that the condition imposed here does not fit under any version of a “split sentence” because the court imposed an aggregate term of one year of incarceration and a year of conditional discharge, which does not comport with any periods allowed by law. The court could only have sentenced defendant to a maximum of six months and a period of conditional discharge of no less than three years (*see* Penal Law §§ 60.01 [2] [d]; 65.00 [3] [a] [i]; 65.05 [3] [a]).

“[w]hen imposing a sentence of probation or of conditional discharge, the court shall, as a condition of the sentence, consider restitution or reparation and may, as a condition of the sentence, require that the defendant:

“(a) Avoid injurious or vicious habits;

“(b) Refrain from frequenting unlawful or disreputable places or consorting with disreputable persons;

“(c) Work faithfully at a suitable employment or faithfully pursue a course of study or of vocational training that will equip him for suitable employment;

“(d) Undergo available medical or psychiatric treatment and remain in a specified institution, when required for that purpose;

“(e) Participate in an alcohol or substance abuse program or an intervention program approved by the court after consultation with the local probation department having jurisdiction, or such other public or private agency as the court determines to be appropriate;

“(e-1) Participate in a motor vehicle accident prevention course. The court may require such condition where a person has been convicted of a traffic infraction for a violation of article twenty-six of the vehicle and traffic law where the commission of such violation caused the serious physical injury or death of another person. For purposes of this paragraph, the term ‘motor vehicle accident prevention course’ shall mean a motor vehicle accident prevention course approved by the department of motor vehicles pursuant to article twelve-B of the vehicle and traffic law;

“(f) Support his dependents and meet other family responsibilities.”

Defendant's presentence confinement was likewise not in accordance with a proper securing order under CPL 510.10 as the Appellate Division determined. That section is not intended to apply to persons, like defendant, held post conviction. CPL 510.10 provides

"[w]hen a principal, whose future court attendance at a criminal action or proceeding is or may be required, initially comes under the control of a court, such court must, by a securing order, either release him on his own recognizance, fix bail or commit him to the custody of the sheriff."

As the practice commentary states,

"[t]his section is one of several in the CPL establishing the duty of the court to issue a securing order when a principal (as defined in CPL § 500.10[1]) initially comes under its control in a criminal action or proceeding. For a defendant that means upon initial arraignment, unless of course the matter is finally disposed of at that time (see CPL §§ 170.10[7], 180.10[6], 210.15[6])" (Peter Preiser, Practice Commentaries, McKinney's Cons Laws of NY, CPL 510.10).

The provision applicable to post-conviction confinement is CPL 430.20 (3) (a), which allows for definite or intermittent sentences, "[i]n counties contained within New York City or in any county that has a county department of correction, commitment must be to the custody of the department of correction of such city or county."

For the reasons I have stated, there is no express statutory authority granting a court the discretion to impose a post-conviction, presentencing term of incarceration like the one imposed here. As a consequence, defendant's six-month incarceratory "interim" condition is illegal. Therefore, I dissent and would reverse the Appellate Division, vacate defendant's plea, and remit for further proceedings.³

Chief Judge DiFIORE and Judges PIGOTT, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Judge RIVERA dissents in an opinion.

Order affirmed, in a memorandum.

3. Based on my conclusion that the plea should be vacated, I do not address defendant's claims regarding the *Outley* hearing and express no opinion on the majority's analysis on that matter.

[55 NE3d 1058, 36 NYS3d 85]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
ANTHONY PARSON, JR., Appellant.

Argued April 26, 2016; decided June 14, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered November 21, 2014. The Appellate Division affirmed a judgment of the Erie County Court (Michael L. D'Amico, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree.

People v Parson, 122 AD3d 1441, affirmed.

HEADNOTE**Crimes — Right to Counsel — Effective Representation — Litigation of Suppression Motion Preceding Guilty Plea**

Defendant, who pleaded guilty to criminal possession of a weapon in the second degree after his motion to suppress the loaded firearm that was seized from the rear floor of his car during a traffic stop was denied, was not denied effective assistance of counsel based upon counsel's performance in the litigation of his motion, as counsel conducted a competent cross-examination of the witnesses at the suppression hearing and provided the court with cogent legal arguments to support the motion. In a plea context, where, as here, the voluntariness of the guilty plea is not in dispute, the defendant must show that there is a reasonable probability that, but for counsel's errors, he or she would not have pleaded guilty and would have insisted on going to trial, or that the outcome of the proceedings would have been different. While defendant's motion, if granted, would have resulted in the dismissal of the indictment, when viewed in its totality, the attorney's performance throughout the proceedings, including at the suppression hearing, did not deprive defendant of meaningful representation. In determining whether a defendant received meaningful representation, counsel's efforts should not be second-guessed with the clarity of hindsight to determine how the defense might have been more effective.

APPEARANCES OF COUNSEL

David C. Schopp, The Legal Aid Bureau of Buffalo, Inc., Buffalo (*Deborah K. Jessey* and *Timothy P. Murphy* of counsel), for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Ashley R. Lowry* and *Donna A. Milling* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed.

Defendant was convicted, upon his guilty plea, of criminal possession of a weapon in the second degree after the hearing court denied his motion to suppress the loaded firearm that was seized from the rear floor of the car he was driving. The charge stemmed from a traffic stop resulting in the search of the car. Defendant claims that he was denied effective assistance of counsel based upon counsel's performance in the litigation of the suppression motion. The record does not support defendant's contention.

In a plea context, where, as here, the voluntariness of the guilty plea is not in dispute, "the defendant 'must show that there is a reasonable probability that, but for counsel's errors, he would not have pleaded guilty and would have insisted on going to trial,' " or that the outcome of the proceedings would have been different (*People v Hernandez*, 22 NY3d 972, 975 [2013], quoting *Hill v Lockhart*, 474 US 52, 59 [1985]). On this record, it is evident that defendant's motion to suppress the gun that was recovered during defendant's encounter with the police, if granted, would have resulted in the dismissal of the indictment.

When viewed in its totality, the attorney's performance in this case throughout the proceedings, including at the suppression hearing, did not deprive defendant of "meaningful representation" (*People v Baldi*, 54 NY2d 137, 147 [1981]). To find otherwise on this record necessitates engaging in the exact form of hindsight review that this Court has cautioned against in analyzing ineffective assistance of counsel claims. In determining whether a defendant received meaningful representation, "counsel's efforts should not be second-guessed with the clarity of hindsight to determine how the defense might have been more effective" (*People v Benevento*, 91 NY2d 708, 712 [1998]).

The record demonstrates that defense counsel conducted a competent cross-examination of the witnesses at the suppression hearing and provided the court with cogent legal arguments to support his motion to suppress the gun. This Court will not engage in the supposition and conjecture required to evaluate defendant's criticism of the scope of counsel's cross-examination at the suppression hearing. We have examined defendant's other criticisms of counsel's performance and conclude that they are without merit.

Chief Judge DiFiore and Judges Pigott, Rivera, Abdus-Salaam, Stein and Garcia concur; Judge Fahey taking no part. Order affirmed, in a memorandum.

[55 NE3d 443, 35 NYS3d 683]

230 PARK AVENUE HOLDCO, LLC, Appellant, v KURZMAN KARELSEN & FRANK, LLP, et al., Respondents.

Argued June 1, 2016; decided June 23, 2016

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered January 20, 2015. The Appellate Division affirmed an order of the Supreme Court, New York County (Ellen M. Coin, J.; 2013 NY Slip Op 30963[U] [2013]), which had (1) granted so much of plaintiff's motion for summary judgment as sought dismissal of defendants' first and second affirmative defenses for surrender by operation of law; (2) denied so much of plaintiff's motion for summary judgment as sought dismissal of defendants' third affirmative defense for breach of the stipulation of settlement entered into by the parties on August 18, 2011; (3) granted so much of plaintiff's motion for summary judgment as sought dismissal of defendants' fourth affirmative defense; (4) denied so much of plaintiff's motion for summary judgment as sought judgment against defendant Kurzman Karelsen & Frank, LLP in the amount of \$716,104.14 and against defendants Stanley E. Margolies, Peter G. Goodman, Phyllis H. Weisberg, Deirdre A. Carson, Isaac A. Saufer, Richard E. Miller, Louis I. Newman, Joseph F. Seminara, Ernest L. Bial, M. Davis Johnson, also known as Malcolm Davis Johnson, Jr., Michael P. Graff, and Frank E. Karelsen, III in the amount of \$200,000; and (5) granted plaintiff's motion to amend the complaint in order to reflect all sums due and owing through the date of judgment. The following question was certified by the Appellate Division: "Was the order of Supreme Court, as affirmed by . . . this Court, properly made?"

In an action to recover rent and attorneys' fees due under a commercial lease, the Appellate Division determined that the motion court had correctly denied plaintiff, the landlord's successor in interest, summary judgment dismissing the third affirmative defense asserting that plaintiff breached a stipulation of settlement entered into by the parties following a

holdover proceeding brought by plaintiff to recover possession of the premises. Although nothing in the stipulation released defendant tenant from any further rent obligation under the terms of the lease, and the stipulation prohibited defendant tenant from subletting or assigning any of its rights or interests under the lease, it also provided that defendant tenant was not prohibited “from locating and/or offering [plaintiff] a potential tenant for the Premises.” In that regard, the Appellate Division found that there were triable issues of fact as to whether plaintiff improperly interfered with defendant tenant’s efforts, in violation of the stipulation, to find a tenant, which would, in turn, affect defendant tenant’s liability for future rent.

230 Park Ave. Holdco, LLC v Kurzman Karelsen & Frank, LLP, 124 AD3d 477, modified.

HEADNOTE

Landlord and Tenant — Lease — Recovery of Rent Due — Affirmative Defense of Breach of Stipulation of Settlement

In an action to recover rent and attorneys’ fees due under a commercial lease, an order of the Appellate Division was modified by granting the motion of plaintiff, the landlord’s successor in interest, for summary judgment dismissing defendants’ third affirmative defense alleging that plaintiff breached the stipulation of settlement entered into by the parties following a holdover proceeding brought by plaintiff to recover possession of the subject premises. Plaintiff met its initial burden of demonstrating its entitlement to summary judgment and defendants’ submissions in opposition to plaintiff’s motion failed to raise a material triable issue of fact.

APPEARANCES OF COUNSEL

Klein & Solomon, LLP, New York City (*Jay B. Solomon* of counsel), for appellant.

Kurzman Karelsen & Frank, LLP, New York City (*Charles Palella* and *Arthur R. Block* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by granting plaintiff’s motion for summary judgment dismissing defendants’ third affirmative defense, and, as so modified, affirmed and the certified question answered in the negative.

Plaintiff met its initial burden of demonstrating its entitlement to summary judgment dismissing defendants’ third affirmative defense alleging that plaintiff breached the stipulation between the parties (*see* CPLR 3212 [b]; *Zuckerman v City of New York*, 49 NY2d 557, 562 [1980]). Defendants’ submis-

sions in opposition to plaintiff's motion failed to raise a material triable issue of fact (*see* CPLR 3212 [b]; *see generally Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]).

Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA concur; Chief Judge DiFIORE taking no part.

Order modified, without costs, by granting plaintiff's motion for summary judgment dismissing the third affirmative defense and, as so modified, affirmed and certified question answered in the negative, in a memorandum.

[55 NE3d 1061, 36 NYS3d 88]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v CARLOS
PALENCIA, Respondent.

Decided June 23, 2016

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered July 29, 2015. The Appellate Division reversed, on the law and as a matter of discretion in the interest of justice, a judgment of the Nassau County Court (Robert H. Spergel, J.), which had convicted defendant, upon a jury verdict, of operating a motor vehicle while under the influence of alcohol in violation of Vehicle and Traffic Law § 1192 (3). The appeal to the Appellate Division brought up for review the denial, after a hearing before the Supreme Court, Nassau County (David J. Ayres, J.), of that branch of defendant's motion which was to suppress evidence of his refusal to submit to a chemical breath test, and the granting of the People's separate motion before the Nassau County Court (Robert H. Spergel, J.) to admit the results of a prior portable breath test into evidence.

The Appellate Division reversed a judgment convicting defendant of operating a motor vehicle while under the influence of alcohol in violation of Vehicle and Traffic Law § 1192 (3) upon determining that defendant was deprived of his right to a fair trial based on the trial court's admission of the results of a portable breath test (PBT) administered to him at the time and place of his arrest, which the People sought to introduce to

show defendant's state of mind and consciousness of guilt in refusing to submit to a chemical breath test subsequently offered to him at State Police barracks. The Appellate Division found that, although the PBT evidence was not introduced for the purpose of proving intoxication, permitting the jurors to hear that the PBT detected the presence of alcohol created an unacceptable risk that the jurors would improperly consider the PBT evidence for that impermissible purpose, and that the risk was magnified by the lack of a limiting instruction at the time the PBT evidence was presented. Further, the Appellate Division found that the exclusion of the PBT evidence was warranted since the limited testimony of the trooper who administered the test did not establish the reliability of the PBT, nor did it explain the potential differences, if any, in the duration and volume of breath needed to be exhaled by the defendant when submitting to the PBT, as opposed to the chemical breath test administered at State Police barracks.

People v Palencia, 130 AD3d 1072, appeal dismissed.

HEADNOTE

Crimes — Appeal — Dismissal

An appeal from an order of the Appellate Division, which reversed a judgment convicting defendant of operating a motor vehicle while under the influence of alcohol in violation of Vehicle and Traffic Law § 1192 (3) upon determining that defendant was deprived of his right to a fair trial based on the trial court's admission of the results of a portable breath test, was dismissed by the Court of Appeals upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

APPEARANCES OF COUNSEL

Madeline Singas, District Attorney, Mineola (*Donald Berk* of counsel), for appellant.

Russell Law Group, PLLC, Westbury (*Camille O. Russell* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed upon the ground that the reversal by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to reversal" (CPL 450.90 [2] [a]).

Concur: Chief Judge DiFIORE and Judges PIGOTT, RIVERA, ABDUS-SALAAM, STEIN, FAHEY and GARCIA.

[57 NE3d 26, 36 NYS3d 834]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LENNIE FRANKLINE, Appellant.

Argued May 4, 2016; decided June 9, 2016

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 11, 2014. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Ann M. Donnelly, J.), which had convicted defendant, upon a jury verdict, of attempted murder in the second degree, burglary in the first degree (two counts), assault in the third degree and endangering the welfare of a child.

People v Frankline, 123 AD3d 504, affirmed.

HEADNOTE

Crimes — Proof of Other Crimes — Prior Acts of Intimate Partner Violence — Scope of Background Information

In a prosecution of defendant for beating his former intimate partner after breaking into her mother's house, dousing her with gasoline and attempting to ignite lighters in front of her, reversal of defendant's conviction for attempted murder and related crimes was not warranted based upon the scope of the victim's testimony allowed by the trial court regarding an attack by defendant one week before the assault at issue, describing in detail how over the course of two to three days defendant physically, mentally, and sexually abused her, poured gasoline on her, and threatened to light her on fire. Both defects necessary for reversible error, namely, that the trial court abused its discretion by failing to limit the victim's testimony and that such error substantially prejudiced defendant so as to foreclose a determination of harmlessness, were not present. The victim's testimony concerned the same parties, and served the nonpropensity purpose of directly explaining her relationship with defendant and his motive. Moreover, the jury required a recital of such a prologue to understand fully what had taken place in defendant's encounters with the victim. Likewise, testimony that defendant previously attacked the victim would not have led the jury to marginalize, relegate to the background, or ignore the grievous nature of the assault for which he was charged, which was characterized by physical violence and several failed attempts at immolation.

APPEARANCES OF COUNSEL

Seymour W. James, Jr., The Legal Aid Society, New York City (Allen Fallek of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (Jordan K. Hummel, Joseph N. Ferdenzi and Nancy Killian of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of Appellate Division should be affirmed.

Defendant Lennie Frankline challenges his conviction, alleging that the victim's testimony about his prior act of violence against her, while generally admissible as nonpropensity evidence, was prejudicially excessive in scope. Given the trial record, we conclude reversal is unwarranted.

At defendant's trial on charges arising from his attempted murder and assault of his former intimate partner, A.H., she testified to an attack by defendant one week before the assault at issue. The court allowed this testimony as an exception to the general prohibition on evidence of prior bad acts because it served as background about A.H.'s relationship with defendant, as well as proof of his intent and motive.¹

On the stand, A.H. recounted how she and defendant came to live together, moved to Niagara County from New York City, and that sometime later she decided to leave defendant. However, when she returned to their apartment to pick up her possessions, defendant confronted her and words escalated to violence. A.H. described in detail how over the course of the next two to three days defendant physically, mentally, and sexually abused her, poured gasoline on her, and threatened to light her on fire. She eventually managed to escape, and reported the attack to the police before returning with her mother to New York City. A.H. next described that approximately a week later, defendant broke into her mother's home in New York City, and again beat her, doused her with gasoline, and attempted to ignite lighters in front of her, until she was once again able to escape.

1. Although the minutes of the *Molineux* hearing are apparently missing from the record, there is no dispute as to the court's evidentiary determination. The court restated several times during trial that its initial and continued ruling was that A.H. could testify about the previous assault because it was background, intent and motive evidence. Therefore, the record on appeal is sufficient to permit our review of defendant's challenge to the trial testimony.

The court provided the jury with three sets of limiting instructions regarding this evidence: the first before witness testimony, the second immediately preceding A.H.'s testimony about the Niagara County attack, and then once more during the court's final jury charge. Each time the court informed the jury that the testimony concerning the Niagara County attack was introduced solely to provide background regarding the relationship between defendant and A.H., that the People contended it was proof of defendant's intent and motive, that the testimony was not evidence of defendant's propensity to commit the crimes charged, nor sufficient to convict defendant of those New York City crimes, and that the People had the burden to prove beyond a reasonable doubt all elements of those charged crimes.

The jury convicted defendant of attempted murder in the second degree (Penal Law §§ 110.00, 125.25), assault in the third degree (Penal Law § 120.00 [1]), two counts of burglary in the first degree (Penal Law § 140.30 [2], [3]), and endangering the welfare of a child (Penal Law § 260.10 [1]). The Appellate Division affirmed (123 AD3d 504 [1st Dept 2014]), and a Judge of this Court granted defendant leave to appeal (25 NY3d 1072 [2015]). We now affirm.

The People may not rely on prior bad acts as evidence of a defendant's propensity to commit the crimes charged (*People v Molineux*, 168 NY 264, 313 [1901]), but the evidence may be admissible, as here, for background and to establish a defendant's motive (*id.* at 297; *see also People v Resek*, 3 NY3d 385, 390 [2004]; *People v Till*, 87 NY2d 835, 837 [1995]). Previous acts of intimate partner violence may be nonpropensity evidence "probative of [a defendant's] motive and intent to assault [the] victim" and which "provide[s] necessary background information on the nature of the [defendant and victim's] relationship" (*People v Dorm*, 12 NY3d 16, 19 [2009]). "Where there is a proper nonpropensity purpose, the decision whether to admit evidence of defendant's prior bad acts rests upon the trial court's discretionary balancing of probative value and unfair prejudice" (*id.*). A court's decision whether to admit the evidence is reviewed for abuse of discretion (*id.*). An error in the court's ruling, however, may be deemed harmless where the evidence of guilt is overwhelming and there is no significant probability that the jury would have acquitted but for the error (*People v Crimmins*, 36 NY2d 230, 241-242 [1975]).

Defendant concedes that the testimony about the Niagara County attack was admissible to show background and motive

for the New York City assault, but claims that he was denied a fair trial because A.H.'s testimony was excessive and highly inflammatory, making it impossible for the jury to fairly and objectively assess the evidence of the New York City assault.² Essentially defendant argues he was prejudiced by the court's failure to limit the testimony to a summary discussion of the Niagara County incident.

Defendant relies on *People v Stanard*, wherein the Court stated that lower courts must carefully monitor introduction of background evidence and take every precaution "lest it spill over its barriers and distort the jury's contemplation of the determinative and critical evidence" (32 NY2d 143, 146 [1973] [internal quotation marks and citation omitted]). In *Stanard*, the defendant was charged with perjury for lying to a grand jury investigating police corruption in a division of the New York City Police Department. This Court held that the defendant was entitled to a new trial because he was substantially prejudiced by Patrolman Frank Serpico's extensive testimonial accounts regarding numerous acts of corruption, which concerned specific transactions unconnected and plainly irrelevant to the defendant's alleged perjury. As the Court explained, where the background evidence is of such nature and amount that a court cannot "state with any conviction that evidence heard by a jury is not prejudicial to a defendant," "any substantial doubt" on where "to strike a neat balance between possible prejudice to the defendant, and the indispensability of the challenged evidence to the People's case . . . should weight the scales in favor of the defendant" (*id.* at 147). Thus, because Serpico's testimony did not help the jury to understand the defendant's actions, and instead "embroiled" him in general "reprehensible" police corruption, it destroyed "the reasonable balance between the claimed importance of this background evidence and its potential for prejudicing the defendant's case" (*id.* at 145-147). In light of the impact of the testimony, the trial court's limiting instructions did not cure the error, nor was the error harmless given "the improper totality of the explanatory evidence which substantially prejudiced the defendant's right to a fair trial" (*id.* at 147-148).

2. Defendant argued below that the testimony was inadmissible to show his intent because intent was inferable from his conduct during the New York City attack. Since defendant concedes, as the Appellate Division concluded, that the evidence of the prior assault was admissible as background and probative of defendant's motive, we have no reason to opine on his claim that the testimony should not have been admitted to show defendant's intent. Moreover, such claim has no impact on our analysis.

We cannot say that both defects necessary for reversible error are present in defendant's case, namely, that the trial court abused its discretion by failing to limit A.H.'s testimony *and* that such error substantially prejudiced the defendant so as to foreclose a determination of harmlessness. Unlike the evidence in *Stanard*, here, A.H.'s testimony concerned the same parties, and served the nonpropensity purpose of directly explaining her relationship with the defendant and his motive. This is far from a case where "the jury did not require a recital of such a prologue to understand fully what had taken place in the defendant's encounters with [the victim]" (*id.* at 147). In the same vein, testimony that the defendant previously attacked A.H. would not have led the jury to marginalize, relegate to the background, or ignore the grievous nature of the New York City assault, which was characterized by physical violence and several failed attempts at immolation.

Under these circumstances, we perceive no error that requires a reversal of defendant's conviction.

FAHEY, J. (concurring). The majority identifies two "defects necessary for reversible error" in this case, namely, that the trial court abused its discretion in failing to limit testimony that defendant assaulted the victim approximately one week before the instant crimes occurred, and that such error "substantially prejudiced the defendant so as to foreclose a determination of harmlessness" (majority mem at 1117). The majority also concludes that both of those defects are not present here (*see id.*). In doing so, the majority has determined that the trial court erred with respect to the volume of evidence it admitted pursuant to *People v Molineux* (168 NY 264 [1901]), but that the misstep is harmless. I respectfully concur in the result only because, in my view, the trial court did not abuse its discretion with respect to the quantity of *Molineux* evidence that it admitted.

The question whether to admit evidence of an uncharged crime or crimes is answered by a familiar balancing test: if evidence of an uncharged crime or crimes is relevant to an issue other than a defendant's criminal disposition, then it may be admitted with proper limiting instructions upon a finding that its probativeness outweighs its potential for prejudice (*see People v Morris*, 21 NY3d 588, 594-596 [2013]). "[T]he threshold [task] of identifying a material issue to which the evidence is relevant poses a question of law," but "the balancing of probative value against potential prejudice is a matter that lies

within the trial court's discretion" (*People v Israel*, 26 NY3d 236, 243 [2015] [internal quotation marks omitted]).

A question with respect to the volume of evidence of an uncharged crime or crimes to be admitted is subject to the same discretionary balancing of probative worth against prejudicial threat (*see generally People v Stanard*, 32 NY2d 143, 146 [1973]). Under the circumstances of this case, the trial court did not abuse its discretion in admitting all of the victim's testimony with respect to the prior assault. In this instance, the extensive nature of the prior assault, in which the victim was held against her will for over two days, required extensive testimony from the victim, even for the limited purpose for which that evidence was offered (*cf. id.* at 147).

Moreover, that testimony was admitted in conjunction with no less than three curative instructions, through which the court scrupulously advised that such evidence was to be considered for only two purposes: to explain the relationship between defendant and the victim, and as proof of defendant's intent and motive. Those instructions, which the jury is presumed to have followed, offset any potential for prejudice arising from the admission of the disputed testimony (*see Morris*, 21 NY3d at 598).

Consequently, for the foregoing reasons, I conclude that the trial court did not abuse its discretion in admitting the subject evidence, and I would affirm the Appellate Division order without reference to the harmless error doctrine.

Chief Judge DiFiore and Judges Pigott, Rivera and Abdus-Salaam concur; Judge Fahey concurs in result in a separate concurring opinion in which Judges Stein and Garcia concur.

Order affirmed, in a memorandum.

In the Matter of KEVIN BANKS, Appellant, v JOHN B. RHEA, as
Chairperson of the New York City Housing Authority, Re-
spondent.

Submitted May 9, 2016; decided June 23, 2016

Reported below, 133 AD3d 745.

Motion for leave to appeal denied. Motion for poor person relief dismissed as academic. Motion for a stay dismissed as academic.

In the Matter of BOHDAN S. CHOMYN, Appellant, v M. WILLIAM BOLLER, an Acting Supreme Court Justice in His Capacity as Licensing Officer for Pistol Permits in Erie County, et al., Respondents.

Decided June 23, 2016

Reported below, 137 AD3d 1705.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

FAYE M. EATON, Appellant, et al., Plaintiffs, v SYLVIA HUNGERFORD, Individually and as Special Education Teacher of Wayne Central School District, et al., Respondents.

Decided June 23, 2016

Reported below, 137 AD3d 1614.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

ENDURANCE AMERICAN SPECIALTY INSURANCE COMPANY et al., Respondents, v UTICA FIRST INSURANCE COMPANY, Appellant, et al., Defendant.

Submitted April 18, 2016; decided June 23, 2016

Reported below, 132 AD3d 434.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ENTERGY NUCLEAR OPERATION, INC., et al., Respondents, v NEW YORK STATE DEPARTMENT OF STATE et al., Appellants.

Submitted June 13, 2016; decided June 23, 2016

Reported below, 125 AD3d 21.

Motion by Nuclear Energy Institute for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and an original and nine copies filed within seven days.

ESTEE LAUDER INC., Respondent, v ONEBEACON INSURANCE GROUP, LLC, et al., Appellants.

Submitted June 13, 2016; decided June 23, 2016

Reported below, 130 AD3d 497.

Motion by Century Indemnity Company for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. One copy of the brief must be served and an original and two copies filed within seven days.

In the Matter of FAHARI ACADEMY CHARTER SCHOOL, Appellant, v BOARD OF EDUCATION OF CITY SCHOOL DISTRICT OF CITY OF NEW YORK, Doing Business as NEW YORK CITY DEPARTMENT OF EDUCATION, et al., Respondents.

Submitted May 9, 2016; decided June 23, 2016

Reported below, 137 AD3d 1127.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

In the Matter of HENRY PHIPPS PLAZA SOUTH ASSOCIATES, Appellant, v JUDITH QUIJANO et al., Respondents.

Decided June 23, 2016

Reported below, 137 AD3d 602.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of JANINE JOHNSON, Appellant, v COUNTY OF ORANGE et al., Respondents.

Decided June 23, 2016

Reported below, 138 AD3d 850.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

BETTY L. KIMMEL, Respondent, v STATE OF NEW YORK et al.,
Appellants. EMMELYN LOGAN-BALDWIN, Interested Party-
Respondent.

Submitted May 9, 2016; decided June 23, 2016

Reported below, 115 AD3d 1323.

Motion by Empire Justice Center et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

Judges PIGOTT and FAHEY taking no part.

MANJULA PATEL, Respondent, v VINOD PATEL, Appellant.

Submitted May 23, 2016; decided June 23, 2016

Reported below, 2016 NY Slip Op 70025(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JEFFREY
BRYANT, Respondent.

Submitted June 20, 2016; decided June 23, 2016

Reported below, 137 AD3d 401.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 120 Wall Street, 28th Floor, New York, NY 10005 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALAIN
FORGET, Appellant.

Submitted June 6, 2016; decided June 23, 2016

Reported below, 136 AD3d 1115.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EUGENE FRANCIS, Appellant.

Submitted June 13, 2016; decided June 23, 2016

Reported below, 132 AD3d 893.

Motion to vacate this Court's April 25, 2016 dismissal order granted [*see* 27 NY3d 990 (2016)]. Motion for assignment of counsel granted and Andrew W. Sayegh, Esq., 95 Church Street, Suite B, White Plains, New York 10601 assigned as counsel to the appellant on the appeal herein.

Chief Judge DiFIORE taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRANK DINEHART LANGDON, Appellant. GRANT DINEHART LANGDON, Nonparty Appellant.

Decided June 23, 2016

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Court of Appeals does not have jurisdiction to entertain it (NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

Judge PiGOTT taking no part.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. FRANK MONTE, Appellant, v MAXSOLAINE MINGO et al., Respondents.

Submitted May 16, 2016; decided June 23, 2016

On the Court's own motion, appeal transferred, without costs, to the Appellate Division, First Department, upon the ground that a direct appeal does not lie when questions other than the constitutional validity of a statutory provision are involved (NY Const, art VI, §§ 3 [b] [2]; 5 [b]; CPLR 5601 [b] [2]). Motion for poor person relief etc. dismissed as academic.

ROBERT L. SCHULZ, Appellant, v SHELDON SILVER, Individually and as Speaker of the New York State Assembly, Respondent.

Submitted May 16, 2016; decided June 23, 2016

Reported below, 134 AD3d 1369.

Motion for reconsideration of this Court's March 31, 2016 dismissal order denied [*see* 27 NY3d 959 (2016)]. Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from the October 2014 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

Chief Judge DiFIORE taking no part.

ROBERT L. SCHULZ, Appellant, v STATE OF NEW YORK EXECUTIVE et al., Respondents.

Decided June 23, 2016

Reported below, 138 AD3d 1197.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of THE 60 EAST 12TH STREET TENANTS' ASSOCIATION et al., Appellants, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL et al., Respondents.

In the Matter of 12 BROADWAY REALTY LLC, Appellant, v NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RENEWAL, Respondent, and THE 60 EAST 12TH STREET TENANTS' ASSOCIATION et al., Intervenors-Respondents.

Submitted June 6, 2016; decided June 23, 2016

Reported below, 134 AD3d 586.

Motion by Urban Justice Center for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. One copy of the brief must be served and an original and two copies filed within seven days.

STONEHILL CAPITAL MANAGEMENT, LLC, et al., Appellants, v
BANK OF THE WEST, Respondent, et al., Defendant.

Submitted June 13, 2016; decided June 23, 2016

Reported below, 127 AD3d 429.

Motion by Loan Syndications and Trading Association for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and nine copies filed within seven days.

In the Matter of the Claim of JOSHUA A. ARNOLD, Respondent.
JUST ENERGY NEW YORK CORPORATION, Appellant; COMMISSIONER OF LABOR, Respondent. (And 14 Other Related Proceedings.)

Submitted May 23, 2016; decided June 30, 2016

Reported below, 138 AD3d 1188.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

RAMANDEEP BADWAL, Respondent, v AVTAR S. BADWAL, Appellant.

Submitted May 31, 2016; decided June 30, 2016

Reported below, 2016 NY Slip Op 70694(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ELVIS CASTILLO, Appellant, v ANTHONY ANNUCCI, Acting Commissioner, New York State Department of Corrections and Community Supervision, Respondent.

Submitted May 23, 2016; decided June 30, 2016

Reported below, 133 AD3d 1380.

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 972 (2016)].

JACOB GOTTLIEB, Respondent, v ALEXANDRA LUMIERE GOTTLIEB,
Appellant.

Submitted May 23, 2016; decided June 30, 2016

Reported below, 138 AD3d 30.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

HUDSON CITY SAVINGS BANK, Respondent, v DAVID BERRY et al.,
Appellants, et al., Defendants.

Submitted May 23, 2016; decided June 30, 2016

Reported below, 138 AD3d 778.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NICHOLAS THOMAS MARCHESE, Appellant, v GREAT NECK TERRACE ASSOCIATES, L.P., et al., Respondents, et al., Defendants.

Submitted May 23, 2016; decided June 30, 2016

Reported below, 138 AD3d 698.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SHAWN GLOVER,
Appellant, v MICHAEL ARTUS, Respondent.

Submitted May 31, 2016; decided June 30, 2016

Motion for leave to appeal dismissed upon the ground that the March 14, 2016 and April 1, 2016 letters sought to be appealed from are neither judgments nor orders from which an appeal to the Court of Appeals may be taken (*see* CPLR 5512 [a]; 5602 [a]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. MICHAEL AZIZ ZARIF SHABAZZ, Also Known as MICHAEL HURLEY, Appellant, v JEROME J. RICHARDS, Acting Judge of Franklin County Court, et al., Respondents.

Submitted May 31, 2016; decided June 30, 2016

Reported below, 2015 NY Slip Op 70507(U), 2012 NY Slip Op 66089(U).

Motion for reargument of motion for leave to appeal denied [see 27 NY3d 976 (2016)].

In the Matter of KEVIN REAVES, Appellant, v ONE POLICE PLAZA, Respondent.

Submitted May 31, 2016; decided June 30, 2016

Reported below, 2016 NY Slip Op 69265(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

KAMEL R. SADEK, Respondent, v JENKINS A. WESLEY et al., Appellants.

Submitted June 13, 2016; decided June 30, 2016

Reported below, 117 AD3d 193.

Motion for reargument denied [see 27 NY3d 982 (2016)].

In the Matter of SUZANNE QQ., Respondent, v BEN RR., Appellant.

Submitted May 23, 2016; decided June 30, 2016

Reported below, 138 AD3d 1210.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.
